Court File No. SC-25-00014152-0000

ONTARIO SUPERIOR COURT OF JUSTICE — SMALL CLAIMS COURT

BETWEEN: Alexander John Aders (Plaintiff) and The Governing Council of the University of Toronto (Defendant)

TAB 1 — REPRESENTATION OF THE PROGRAM AT THE POINT OF SALE

Purpose. This tab contains the three communications the Plaintiff received on January 28, 2025, at the point of enrolment and payment. They establish how the Program was represented to the purchaser at the moment of the transaction. They are responsive to paragraph 3 of the Defence, which characterizes the matter as a *"contract with a third-party that had a licensing agreement with the University."*

Note on identity. The Plaintiff's former email address ([redacted] appears on the enrolment records in this tab; his current address, used in this proceeding, is [redacted]. Both addresses belong to the Plaintiff.

Documents in this tab

- **1.1** Order #3762 — purchase confirmation / receipt (28 January 2025)
- **1.2** Course enrolment and login email (28 January 2025)
- **1.3** "Welcome to the OISE TEFL course" email (28 January 2025)

1.1 Order #3762 — Purchase Confirmation (28 January 2025)

(a) Sender. The confirmation was sent from a sender identified as *"OISE University of Toronto TEFL Certification."* The University's name is the identity on the message; the domain "teachaway.com" appears only within the underlying email address.

(b) Branding. The University of Toronto crest and the "OISE | Ontario Institute for Studies in Education" wordmark appear at the head of the confirmation.

(c) The product. The item purchased is described as a *"150-hour OISE TEFL online course,"* for $1,196.00 USD.

(d) Hierarchy. The University is presented as the source of the Program; "Teach Away" appears only at the foot of the document, in a support and contact capacity.

Significance. The face of the purchase is the University's brand. A purchaser reading this confirmation would reasonably understand that they had bought a University of Toronto / OISE course.

1.2 Course Enrolment and Login Email (28 January 2025)

(a) The enrolment email states: *"Teach Away is proud to administer the courses for OISE at the University of Toronto, the International House at UC Berkeley, the Teachers College of Columbia University, CEDER at the University of Michigan and many more!"*

(b) By its own description, Teach Away *administers* the courses *for* the University — i.e., it presents itself as the University's delivery agent, not as an independent vendor selling its own product.

(c) The University of Toronto is listed alongside Berkeley, Columbia, and Michigan, lending the Program the apparent endorsement and stability of established institutions.

Significance. This is the defendant's own delivery partner describing its role as administering courses "for OISE at the University of Toronto." A reasonable purchaser would take the University to stand behind the Program.

1.3 "Welcome to the OISE TEFL course" Email (28 January 2025)

(a) Sender again identified as *"OISE University of Toronto TEFL";* the University crest is displayed.

(b) The University of Toronto / OISE is named three times: *"Thank you for enrolling in the OISE University of Toronto TEFL course"; "getting started with your OISE TEFL course"; "Thank you once again for choosing OISE University of Toronto and Teach Away for your TEFL journey."*

(c) The email directs the purchaser to confirm the address where the University will *"mail your certificate to once you've completed the course"* — the credential being purchased carries the University's name.

Significance. The welcome communication consistently frames the Program as the University's own, and the certificate — the entire object of the purchase — is a University-branded credential.

SIGNIFICANCE OF TAB 1 — RESPONSE TO PARAGRAPH 3 OF THE DEFENCE

Paragraph 3 of the Defence states that the Plaintiff *"entered a contract with a third-party that had a licensing agreement with the University,"* and that he *"was not … a student enrolled in a degree program at the University."* The documents in this tab show the relationship as it was actually presented to the Plaintiff at the point of sale:

1. The Program was marketed, confirmed, and delivered under the University's name and crest — *"OISE University of Toronto TEFL Certification," "150-hour OISE TEFL online course,"* and the *"OISE University of Toronto TEFL course."*
2. The delivery partner described itself as administering courses "for OISE at the University of Toronto," placing the University in the principal position and Teach Away in a supporting role.
3. The certificate the Plaintiff paid to obtain was a University-branded credential.

The University's own admissions are consistent with this. The University admits it *"provided the professional learning content for the Program"* (Defence, para. 6) and that it *"was responsible for the course content and quality"* (para. 11). It further admits that, on each enrolment, *"the University was entitled to subsequently receive royalty fees"* from the platform provider (para. 7).

Taken together, the University supplied the content, was responsible for its quality, lent its name and crest to the Program, and stood to be paid on every enrolment. That a separate entity processed the payment on the back end does not displace the representation made to the purchaser — namely, that this was a University of Toronto / OISE program. The Plaintiff's decision to purchase was made in reliance on that representation.

Paragraph 3's reference to a *"degree program"* is not responsive to the Claim. The Claim does not allege a degree program; it concerns a certificate program sold under the University's brand. Whether the Program was credit-bearing has no bearing on whether the University held the Program out as its own.

EXHIBIT 1.1

Outlook

Order #3762 confirmed

From OISE University of Toronto TEFL Certification <teflonline@teachaway.com>
Date Tue 1/28/2025 5:10 PM
[redacted]

UNIVERSITY OF TORONTO
OISE | ONTARIO INSTITUTE
FOR STUDIES IN EDUCATION

ORDER #3762

Thank you for your purchase!

Hi Alexander, you will receive an email from Teach Away shortly with a login key to access your course dashboard.

View your order or Visit our store

Order summary



150-hour OISE TEFL online course × 1
Teaching Business English / Teaching Test Preparation Courses — $1,196.00

Subtotal	**$1,196.00**
Delivery	**$0.00**
Taxes	**$0.00**
Total	**$1,196.00 USD**

EXHIBIT 1.1

Customer information

Student Information

Alexander Aders
[redacted]nue
[redacted]
United States

Billing address

Alexander Aders
[redacted]nue
[redacted]
United States

Delivery

Course access sent via email after purchase

If you have any questions, reply to this email or contact us at teflonline@teachaway.com

EXHIBIT 1.2

Outlook

You've been enrolled! Important Course Log-in Details

From Teachaway <system@litmos.com>
Date Tue 1/28/2025 5:10 PM
To Alexander Aders <[redacted]>

Dear Alexander,

Thank you for registering for your Teach Away course!

Teach Away is proud to administer the courses for OISE at the University of Toronto, the International House at UC Berkeley, the Teachers College of Columbia University, CEDER at the University of Michigan and many more!

Below is all the information you need to get started:

Login Details

Username: [redacted]

To login and complete your training courses please click on the following link:
https://lms.teachaway.com/login.aspx?loginkey=71eafe58-ff78-4cd8-87f1-8cec6419fe23

If you are having trouble with the above link, please follow the steps below:
1. Try using a secure version of the above link (i.e. **https**://lms.teachaway.com/login [...]) and an up-to-date browser.
2. If that does not work, click here: https://lms.teachaway.com/account/forgot
3. In the 'Username' field enter the email address you used to purchase the course, and click 'Continue'. You will be sent an email with a link to create a password for the course.
4. Follow the link in the email; create a password, agree to the Terms & Conditions, and click 'Continue'. You are now inside your course!

Continue your course at any time by visiting the log-in page:
https://lms.teachaway.com/account/login

Questions & Technical Support: For any questions related to your course, please email teflsupport@teachaway.com and our support team will reach out to assist you.

Sincerely,

The Professional Development Team
Teach Away

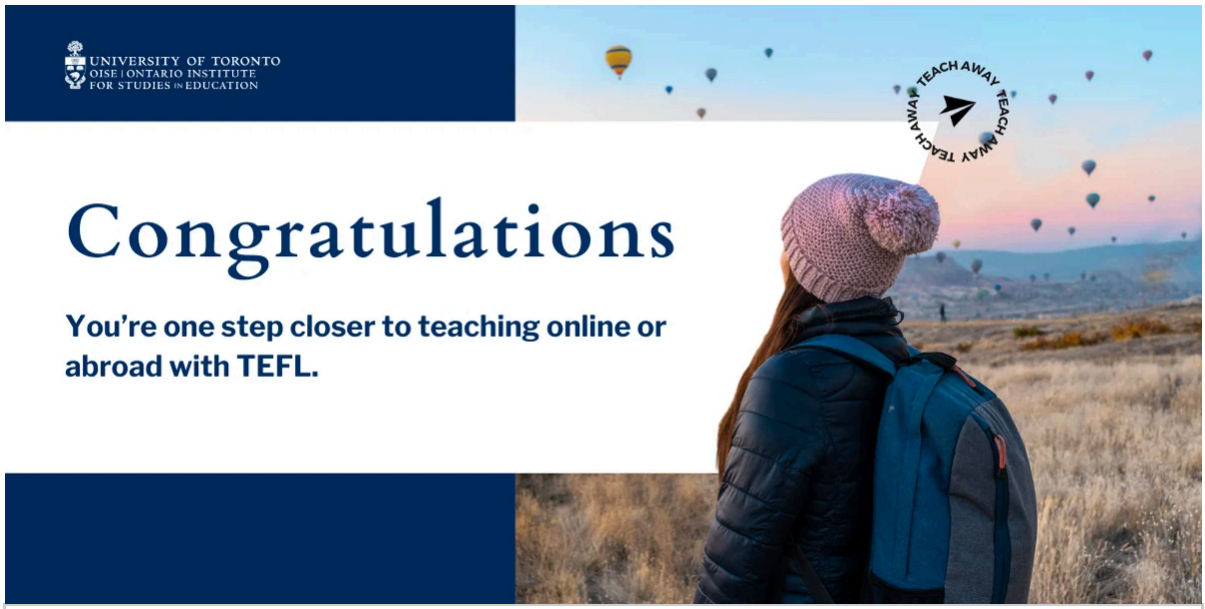
EXHIBIT 1.3

Outlook

Alexander, welcome to the OISE TEFL course!

From OISE University of Toronto TEFL <teflonline@teachaway.com>
Date Tue 1/28/2025 5:11 PM
[redacted]

View in browser



Hi Alexander,

Thank you for enrolling in the OISE University of Toronto TEFL course! We're thrilled to embark on this educational journey with you.

We've sent you an email with details on how to set up your password and begin your course. Be sure to keep an eye on your inbox and your spam folder.

Here are some tips on getting started with your OISE TEFL course:

- Log in to your course at any time at lms.teachaway.com.
- Check out the Course Syllabus for a thorough overview of what to expect in your course.
- Bookmark the Help Center where you can find answers to other questions about the course and teaching English online and abroad.
- Update your name and address in your student profile. **Be sure it matches your name as it appears on your passport** and let us know the best address to mail your certificate to once you've completed the course.

EXHIBIT 1.3

- If you haven't done so yet, create a Teach Away account to find jobs onl and abroad!

If you have any further inquiries, simply reply to this email, and our team will be delighted to assist you.

Thank you once again for choosing OISE University of Toronto and Teach Away for your TEFL journey. We wish you the best of luck in your course!

Cheers,
Your friends at Teach Away

Looking For More Teaching Abroad Inspiration?

Connect with us for endless ways to find inspiration on your teaching journey:

🔍 **Read Articles** | ❤️ **Follow us on Instagram** | 🎧 **Listen to our Podcast**

🗓️ **See Upcoming Events** | 💻 **Attend a Webinar**

🏆 **Become a Premium Member**

Teach Away, 111 Peter St., Suite 50, Toronto, Ontario M5V 2H1, Canada
Unsubscribe Manage preferences

Court File No. SC-25-00014152-0000

ONTARIO SUPERIOR COURT OF JUSTICE — SMALL CLAIMS COURT

BETWEEN: Alexander John Aders (Plaintiff) and The Governing Council of the University of Toronto (Defendant)

TAB 2 — POST-DISRUPTION CORRESPONDENCE AND THE "MIGRATION" REPRESENTATION

Purpose. This tab contains the Plaintiff's correspondence with OISE Continuing & Professional Learning ("OISE CPL") from June 6, 2025 through October 31, 2025, together with the public-facing OISE TEFL Certification FAQ. The documents establish three things: (i) the sequence and timing of the University's communications after the Program was disrupted, including the instruction to the Plaintiff to wait; (ii) the University's representation, on August 8, 2025, that the Program had been "successfully migrated" and could be resumed where the Plaintiff left off; and (iii) the University's own subsequent admission, in September 2025, that the Plaintiff's previous progress did not transfer to the new platform. They are responsive to paragraph 28 of the Defence (page 009), which pleads that the Plaintiff "failed to mitigate his damages" and that the University and Teach Away "each offered the Plaintiff options that would have enabled him to receive a service equivalent to the Program that he paid for." The documents in this tab show that the options offered were not equivalent, and that the Plaintiff did engage with the remedy before concluding it could not restore what he had lost.

Note on identity. The correspondence in items 2.1–2.3 was conducted from the Plaintiff's former email address ([redacted]); the correspondence in item 2.4 was conducted from his current address, used in this proceeding ([redacted]). Both addresses belong to the Plaintiff.

Documents in this tab

2.1 June 6, 2025 — Plaintiff's inquiry and OISE CPL's instruction to wait

2.2 August 8, 2025 — "TEFL – Next Steps on your Learning Journey" (the "migration" email)

2.3 August 1–11, 2025 — OISE CPL correspondence: the two-option framework, reduced hours, loss of specializations, and refund redirect

2.4 September 25 – October 31, 2025 — OISE CPL correspondence: contradiction of the migration representation and extension approval

2.5 OISE TEFL Certification public FAQ — the University's public account of the disruption and refunds

2.1 June 6, 2025 — Plaintiff's Inquiry and OISE CPL's Instruction to Wait

(a) **Plaintiff's email (June 6, 2025, 9:27 AM).** The Plaintiff wrote to OISE CPL stating that he had been "unable to complete the TEFL Online Certificate Program," that he had enrolled in late January 2025 and was "making steady progress towards

completion," and asking where to go from there and whether his progress in the course had been deleted.

(b) **OISE CPL reply (June 6, 2025, 3:42 PM).** OISE CPL apologized for "the current disruption to the TEFL Program," stated that it was "working to review all learner files individually," and said the Plaintiff would receive "a follow-up email with specific next steps as soon as possible."

(c) **Instruction not to follow up.** The same reply asked the Plaintiff to "refrain from sending additional emails until we reply to your original email."

Significance. On the date of first contact the University acknowledged a "disruption," directed the Plaintiff to wait, gave no defined timeline, and asked him not to follow up. The Plaintiff complied. The next substantive communication did not arrive until August 8, 2025 — a gap of approximately two months — a delay material to the timeline of the refund sequence and to any question of the Plaintiff's diligence.

2.2 August 8, 2025 — "TEFL – Next Steps on your Learning Journey" (the "Migration" Email)

(a) **Date and sender.** Sent August 8, 2025 at 12:05 AM from OISE CPL, University of Toronto.

(b) **The core representation.** The email states: "the TEFL program has now been successfully migrated into our learning management system called Quercus."

(c) **Resumption representation.** It continues: "Should you wish to continue with the program, you will be granted access to Quercus … The course content itself will remain largely the same in terms of structure and appearance."

(d) **The survey.** The email directs the Plaintiff to a survey asking, among other things, "Where you last left off in your TEFL learning."

Significance. Read as a whole — "successfully migrated," "continue with the program," "where you last left off," content "largely the same" — the communication conveys to a reasonable reader that the Plaintiff's existing progress had been preserved and that he could resume from his prior position. Item 2.4 establishes that this was not so.

2.3 August 1–11, 2025 — The Two-Option Framework, Reduced Hours, Loss of Specializations, and Refund Redirect

(a) **The two options (August 8, 2025, 2:10 PM).** OISE CPL (signed "Taleb") explained that, "due to the restructuring process at Teach Away, the collaboration between Teach Away and OISE has concluded," and offered two options. Solution One — the "TEFL Legacy Program" on Quercus — was described as a program that "follows the exact same structure as the original Teach Away program," available until October 31, 2025, with "extensions … arranged with documentation, if needed." Solution Two — the "New TEFL Program" launching November 2025 — expressly "will not follow the same specialization pathways," "Progress from the Teach Away program cannot be transferred," and "Specialization pathways will not be listed on the new certificate." It offered "125 hours of content."

(b) **Mismatch with what was purchased.** The Plaintiff had purchased a “150-hour OISE TEFL online course” with specializations in Business English and Test Preparation (Tab 1, Exhibit 1.1). The New Program offered 125 hours and no specializations; the Legacy Program offered no recovery of the lost time and conditioned extension on documentation.

(c) **First mention of a refund (August 11, 2025, 10:30 AM).** The Plaintiff raised, for the first time, the prospect of a refund — noting that he had paid for the 150-hour course while the new course was 125 hours, and asking about extensions and a refund for the specializations (Business English and Test Preparation) that would not carry forward.

(d) **The refund redirect (August 11, 2025, 11:20 AM).** OISE CPL responded that extension details for the New Program “have not been determined just yet” and “will be communicated to learners via the OISE CPL website,” and that “All inquiries regarding refunds for services that were meant to be provided by Teach Away must be addressed to info@pluribustechnologies.com.”

(e) **Documentation condition (August 11, 2025, 10:05 AM).** OISE CPL stated that an extension to the Legacy Program beyond October 31, 2025 “will require a medical note and/or other supporting documentation for approval.”

Significance. This exchange establishes three points material to the Claim. First, each forward path the University offered delivered less than what the Plaintiff purchased — a shorter program (125 vs. 150 hours) and the elimination of the two specializations he had paid for. This is the direct answer to the Defence’s plea, at paragraph 28, that the options offered amounted to “a service equivalent to the Program that he paid for”: a 125-hour program stripped of the Business English and Test Preparation specializations is not equivalent to the 150-hour, two-specialization course actually purchased (Tab 1, Exhibit 1.1). Second, the moment the Plaintiff raised a refund, the University redirected him to info@pluribustechnologies.com — a corporate entity the University’s own FAQ (item 2.5) acknowledges was by then in court-supervised creditor protection. Third, the promise that extension details “will be communicated … via the OISE CPL website” did not, on the Plaintiff’s evidence, materialize.

2.4 September 25 – October 31, 2025 — Contradiction of the Migration Representation; Extension Approval

(a) **Plaintiff’s opening inquiry (September 25, 2025, 8:23 AM).** Having just enrolled in the Legacy Program, the Plaintiff asked the advisor: “How do I see the progress that I already made before?” — indicating that, on first access, his prior progress was not visible on the new platform.

(b) **Advisor: progress not reflected (September 25, 2025, 11:55 AM).** OISE CPL advisor Shareef Alshareef replied that “due to some technical limitations, we are unable to reflect your previous progress on the new platform,” and that the data received from Teach Away showed only “Unit 4” complete. He offered to “update your records manually” if the Plaintiff had completed more.

(c) **Plaintiff identifies his actual completion (September 25, 2025, 12:03 PM).** The Plaintiff explained that for Units 1–3 he had "completed the modules and tests, but … didn't finish the writing assignments."

(d) **Advisor's assurance (September 25, 2025, 3:32 PM).** The advisor again stated that "we are unable to reflect your previous progress in the new platform," said the work was "saved now in our backend data," and assured the Plaintiff that "you do not need to re-do any work that you have completed previously." He recorded the completion as Unit 4 (written assignment and test) and Units 1–3 (tests).

(e) **Plaintiff's contemporaneous response (September 25, 2025, 3:39 PM).** The Plaintiff replied that he "was not sure because nothing changed in the new platform," and that he "might still have to go back and review materials for the prior units to complete the writing assignments."

(f) **Extension approved in principle; term left open (September 25, 2025).** In the 11:55 AM email the advisor stated, "we have an approval for your extension to complete the course," and asked how much time the Plaintiff would need. The Plaintiff proposed "about 6 months" (12:03 PM). At 1:12 PM the advisor wrote that he had "talked to our program manager, and she will be in touch with you regarding the extension period."

(g) **No follow-up; the extension term was never settled (October 31, 2025).** The program manager did not contact the Plaintiff. With the course about to close, the Plaintiff raised the extension again himself on October 31; the advisor's reply was indefinite — his access would "remain active for the period of your extension," and there "might" be "a new course shell" for extension learners. No specific extension period was ever confirmed.

Significance. This exchange is the University's own advisor confirming — roughly six weeks after the August 8 "successfully migrated" email — that the Plaintiff's "previous progress" could not be reflected on the new platform, which recognized only a single unit and required him to self-report his prior work. The contradiction with August is direct. The Plaintiff's own contemporaneous words in the same thread corroborate that, in practice, nothing carried over: on first access he had to ask "How do I see the progress that I already made before?", and after the "manual" update he reported that "nothing changed in the new platform" and that he expected to "go back and review materials for the prior units." Those statements, recorded at the time, are consistent with the Plaintiff's evidence that each unit's writing assignment could be reached only after completing that unit's modules and test in sequence — so that a note in the University's "backend data" did not unlock it, and the Plaintiff was required to redo modules and tests he had already completed. The advisor's assurance — "you do not need to re-do any work that you have completed previously" — was therefore not borne out; it was upon discovering this, after redoing Unit 1, that the Plaintiff concluded the Legacy Program could not restore the position he had built before the disruption. Separately, the extension the University now points to was approved only in principle: its term was never finalized, the program manager's promised follow-up never came, and the Plaintiff had to raise the matter himself again on October 31 — another promised follow-up, after those of June 6 and August 11, that did not materialize. These points are material to

paragraph 28: the “equivalent” remedy neither preserved the Plaintiff’s prior progress, nor spared him from repeating work, nor even settled the time he would have to finish — contrary to the University’s own advisor’s assurance and undertakings.

2.5 OISE TEFL Certification Public FAQ — the University’s Public Account

(a) **“Run its course” framing.** The public page characterizes the end of the Teach Away relationship as a planned evolution: “this successful partnership has run its course and we are now concluding our relationship with Teach Away.” The narrative section contains no reference to insolvency or creditor protection.

(b) **Refund question.** Under “CAN I GET A REFUND FOR THE COURSE?” the FAQ states that enrolment and payment were managed by Kesson Group Inc. (operating as Teach Away), later acquired by Pluribus Technologies Corp., “which entered court-supervised creditor protection in 2024,” and directs affected learners that they “may wish to contact the provider at info@pluribustechnologies.com.”

(c) **“Did not collect tuition” answer.** Under “WHY CAN’T OISE CPL PROVIDE ME A REFUND?” the FAQ states that payment “was made directly to our delivery partner,” that “OISE CPL did not collect tuition payments,” and that it is “therefore not in a position to process refunds.”

(d) **Learner records.** Under “WHAT HAPPENS TO MY LEARNER RECORD?” the FAQ states that OISE CPL “has securely received TEFL learner records” and will retain them — a representation in tension with the non-transfer admission in item 2.4.

Significance. The FAQ is the University’s public account of the same events. Two features bear on the Claim. First, the refund questions route every affected learner to info@pluribustechnologies.com — i.e., to a corporate entity the same FAQ acknowledges was in court-supervised creditor protection as of 2024. Second, the “run its course” narrative presents the conclusion of the Teach Away relationship as routine and planned, with no mention of insolvency in that section, while the “did not collect tuition” answer is in tension with the representation established in Tab 1 — that the Program was sold, branded, and delivered as the University’s own, and that the University was entitled to royalties on each enrolment (Defence, paras. 6–7). Whether OISE CPL itself processed the card payment does not alter how the transaction was presented to the purchaser, or that the University stood to benefit from it.

SIGNIFICANCE OF TAB 2 — RESPONSE TO PARAGRAPH 28 OF THE DEFENCE

Taken together, the documents in this tab establish the following:

1. **Timeline and instruction to wait.** On June 6, 2025 the University acknowledged a “disruption,” directed the Plaintiff to wait without a defined timeline, and instructed him not to follow up. The Plaintiff complied; the next substantive communication came roughly two months later. That delay is material: for approximately two months the Plaintiff had no actionable path and received no information about any refund avenue. By the time the University first directed him

toward a refund — on August 11, toward info@pluribustechnologies.com — that company was already in court-supervised creditor protection, a fact the University's own FAQ acknowledges (item 2.5).

2. **The migration representation.** On August 8, 2025 the University represented that the Program had been "successfully migrated" and that the Plaintiff could "continue with the program" from "where you last left off," with content "largely the same."
3. **The contradiction.** On September 25, 2025 the University's own advisor stated twice that it was "unable to reflect [the Plaintiff's] previous progress" on the new platform, which recognized only a single unit, and required the Plaintiff to self-report his prior work.
4. **Neither option restored all material features of the original program.** The New Program offered 125 hours against the 150 hours purchased; Business English and Test Preparation specializations were eliminated from both options; and progress from the Teach Away program could not be transferred into the New Program.
5. **The refund redirect.** When the Plaintiff first raised a refund, and again in its public FAQ, the University routed refund inquiries to info@pluribustechnologies.com — a company the University itself acknowledged was in court-supervised creditor protection.
6. **Response to paragraph 28 of the Defence.** The Defence pleads that the Plaintiff "failed to mitigate his damages" and that the options offered amounted to "a service equivalent to the Program that he paid for." They were not equivalent: each delivered fewer hours (125 vs. 150) and stripped the Business English and Test Preparation specializations he purchased. Nor did the August migration or the Legacy Program preserve the progress he had made — contrary to the advisor's written assurance that he would not need to redo completed work, the platform required him to start over. Nor did the Plaintiff refuse to mitigate: he enrolled in the Legacy Program, completed and self-reported work, and obtained an approved extension before concluding that the remedy offered could not restore what he had lost.

EXHIBIT 2.1

June 6, 2025 — Plaintiff’s Inquiry and OISE CPL’s Instruction to Wait

Plaintiff’s first contact after the disruption, and the University’s reply directing him to wait.

Outlook

Re: Alexander Aders TEFL Online Certificate Program question

From OISE CPL <oise.cpl@utoronto.ca>
Date Fri 6/6/2025 3:42 PM
[redacted]

Dear Alex,

Thank you for getting in touch about the TEFL Program.

We sincerely apologize for the current disruption to the TEFL Program. Please be assured that we are working to review all learner files individually, and you will receive a follow-up email with specific next steps as soon as possible.

In the meantime, due to an exceptionally high volume of inquiries, we kindly ask for your continued patience as we work through this process. (If you could kindly refrain from sending additional emails until we reply to your original email, it will help to ensure we manage all inquiries more efficiently.)

We truly appreciate your continued patience and understanding during this time.

Kind regards,
OISE CPL

DEFY GRAVITY

OISE Continuing & Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

Office: 416-978-2474
Email: oise.cpl@utoronto.ca

cpl.oise.utoronto.ca

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InnovED

From: alex aders <[redacted]>
Sent: Friday, June 6, 2025 9:27 AM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: Alexander Aders TEFL Online Certificate Program question

You don't often get email from [redacted]. Learn why this is important

Dear University of Toronto,

I was unable to complete the TEFL Online Certificate Program. I enrolled in late January 2025 and was making steady progress towards completion. It says on the website to contact this email address. Where do I go from here? Is all my progress in the course deleted?

Thanks,
Alexander Aders

EXHIBIT 2.2

August 8, 2025 — “TEFL – Next Steps on your Learning Journey”

The “successfully migrated” email.

Outlook

TEFL – Next Steps on your Learning Journey

From OISE CPL <oise.cpl@utoronto.ca>
Date Fri 8/8/2025 12:05 AM
[redacted]

Dear Alexander,

Thank you for your patience over the past few weeks as we've worked through the changes affecting the TEFL program, your access, and your progress towards completion. We understand how unsettling this period has been, and we truly appreciate your understanding.

Behind the scenes, our team has been working diligently to find the best path forward. We are pleased to share that the TEFL program has now been successfully migrated into our learning management system called Quercus**.**

Should you wish to continue with the program, you will be granted access to Quercus. While the platform itself may be new to you, rest assured that we will provide clear video tutorials and step-by-step instructions to help you navigate it with ease. The course content itself will remain largely the same in terms of structure and appearance.

You may now be wondering: *What's my next step?*

To help us best support your continued learning, please begin by completing the following short survey:

https://forms.office.com/r/TXi2SSN7Gr

In the survey, you'll let us know:

1. Whether you'd like to continue and complete the legacy TEFL program
2. Where you last left off in your TEFL learning

If you prefer to wait for the new TEFL program launching this fall, we recommend sending us an email request or clicking the "Request Information" button on the OISE TEFL Certification course page link – OISE TEFL Certification – OISE Continuing and Professional Learning

By submitting your contact details here, you'll be notified directly once the updated program opens for enrollment.

We're committed to supporting you every step of the way and are excited to help you move forward in your TEFL journey. Please don't hesitate to reach out should you have any questions.

Best Regards,
OISE CPL

DEFY GRAVITY

OISE Continuing & Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

EXHIBIT 2.3

August 1–11, 2025 — The Two-Option Framework, Reduced Hours, and Refund Redirect

OISE CPL (Taleb) correspondence on the Legacy and New programs, and the redirect to Pluribus.

Office: 416-978-2474
Email: oise.cpl@utoronto.ca

cpl.oise.utoronto.ca

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From: Alexander Aders <cpl.inquiry@utoronto.ca>
Sent: Friday, August 1, 2025 2:15 PM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: New submission from Single Program / Certificate Contact

First Name

Alexander

Last Name

Aders

Email Address

[redacted]

Message

Dear University of Toronto,

I would like to request an update on the TEFL course. I was previously enrolled but was unable to finish. Has a date been decided for the new course?

Thanks,
Alex Aders

Submitted on: OISE TEFL Certification

Outlook

Re: New submission from Single Program / Certificate Contact

From OISE CPL <oise.cpl@utoronto.ca>
Date Mon 8/11/2025 11:20 AM
[redacted]

Hi Alex,

Details regarding extensions for the New TEFL Program have not been determined just yet. Once the program is finalized this information will be communicated to learners via the OISE CPL website. All inquiries regarding refunds for services that were meant to be provided by Teach Away must be addressed to info@pluribustechnologies.com.

I hope this helps. Please let me know if you have any other questions.

Kind regards,
Taleb

DEFY GRAVITY

OISE Continuing & Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

Office: 416-978-2474
Email: oise.cpl@utoronto.ca

cpl.oise.utoronto.ca

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Continuing & Professional Learning

InnovED

From: [redacted]
Sent: Monday, August 11, 2025 10:30 AM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: Re: New submission from Single Program / Certificate Contact

Dear Taleb,

Thank you very much for this information. I am leaning towards choosing the new TEFL program. My only concern with this option is that I paid for the 150-hour course and it said in a previous email that the new course is 125 hours. Are there any extensions planned with the new course? If not, will prior students be eligible for a refund for these extensions (Business English and Test prep)?

Best,
Alex Aders

From: OISE CPL <oise.cpl@utoronto.ca>
Sent: Monday, August 11, 2025 10:05 AM
To: [redacted]
Subject: Re: New submission from Single Program / Certificate Contact

Good morning, Alex.

Thank you for your follow up email.

We would need to assess the students request for an extension for the Legacy Program before approving it. Should learners require an extension beyond 31 October, 2025, we will require a medical note and/or other supporting documentation for approval.

I hope you find this information helpful. Please let me know if you have any other questions.

Kind regards,
Taleb

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InnovED

From: [redacted]
Sent: Friday, August 8, 2025 5:49 PM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: Re: New submission from Single Program / Certificate Contact

Dear OISE CPL,

I would like to know more about the section “Extensions may be arranged with documentation, if needed” on the legacy course. I am considering this option, but I did not complete more than half. If I decide to join into the legacy course, could I get a three to four week extension since I joined in later than the launch (mid July)? What sort of documentation would qualify for an extension and for how long?

Thank you,
Alex Aders

From: OISE CPL <oise.cpl@utoronto.ca>
Sent: Friday, August 8, 2025 4:25 PM
To: [redacted]
Subject: Re: New submission from Single Program / Certificate Contact

Good afternoon, Alex.

Thank you for your follow up email.

The New TEFL program has not been finalized just yet but it will offer an updated curriculum with new learning outcomes. More detailed information regarding the program will be available soon. Please let me know if you have any other questions.

Kind regards,
Taleb

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Email: oise.cpl@utoronto.ca

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From: [redacted]
Sent: Friday, August 8, 2025 2:28 PM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: Re: New submission from Single Program / Certificate Contact

Dear Taleb,

I paid for the 150-hour course with the specializations in Business English and Test Preparation. Are you saying that these sections will no longer be offered in the new course?

Thank you,
Alex Aders

From: OISE CPL <oise.cpl@utoronto.ca>
Sent: Friday, August 8, 2025 2:10 PM
To: [redacted]
Subject: Re: New submission from Single Program / Certificate Contact

Dear Alexander,

Thank you for connecting with us.

As you may know, due to the restructuring process at Teach Away, the collaboration between Teach Away and OISE has concluded. To ensure affected learners can complete their program with OISE, we have developed two free-of-charge options to choose from:

Solution One: The TEFL Legacy Program

The TEFL program is now available on our learning platform, Quercus, and follows the exact same structure as the original Teach Away program. You will be able to self-assess where you left off and continue your studies from that point. Our instructors are available to support you with content-related questions and guide you toward program completion.

Key details:

- Available until **October 31, 2025**
- Extensions may be arranged with documentation, if needed
- Flexible self-paced learning, starting where you left off

If you'd like to choose this pathway, please complete the survey here: 🔗 TEFL Legacy Program Survey

Solution Two: The New TEFL Program (Launching November 2025)

We are currently developing a redesigned TEFL program that will have a completely new structure. Please note that:

- It will not follow the same specialization pathways as the Teach Away version
- Progress from the Teach Away program cannot be transferred
- Specialization pathways will not be listed on the new certificate

Program details:

- 125 hours of content
- 6-month access period (about 5 hours of learning week)
- Updated curriculum with new learning outcomes (to be announced)
- Waitlist now open for launch updates and registration details

I hope you find this information helpful. Please let me know if you have any other questions.

Kind regards,
Taleb

DEFY GRAVITY

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Continuing & Professional Learning

InnovED

From: Alexander Aders <cpl.inquiry@utoronto.ca>
Sent: Friday, August 8, 2025 8:19 AM
To: OISE CPL <oise.cpl@utoronto.ca>
Subject: New submission from Single Program / Certificate Contact

First Name

Alexander

Last Name

Aders

Email Address

[redacted]

Message

Dear University of Toronto,

I would like to request an update on the TEFL course. I was previously enrolled but was unable to finish. Has a date been decided for the new course? If not, when is the projected start date? I had the 150 hour course with a specialization on Business English and Test Preparation. How will previously enrolled students be able to transfer into the new course? Will there be a time extension for the lost time?

Thanks,
Alex Aders

Submitted on: OISE TEFL Certification

EXHIBIT 2.4

September 25 – October 31, 2025 — Contradiction of the Migration Representation

OISE CPL (Shareef Alshareef) correspondence: progress not reflected; extension never finalized.

[redacted]

New Student Alexander Aders

11 messages

[redacted]
areef.alshareef@utoronto.ca

Dear Shareef Al-Shareef,

My name is Alexander Aders. I recently enrolled in the legacy 150-hour course. How do I see the progress that I already made before? Also, I was told that extensions were possible with medical documentation. What sort of extension is possible?

Thank you,

Alex Aders

Shareef Alshareef <shareef.alshareef@utoronto.ca> 25 septembre 2025 à 11:55
À : [redacted]

Dear Alex,

Thank you for reaching out and welcome to the TEFL Legacy Program!

Due to some technical limitations, we are unable to reflect your previous progress on the new platform, however, we have received some data from TeachAway which shows that you have completed the following:

- **Unit 4**

We have encountered some incomplete data from TeachAway before, which is why if you think that you have finished more than what is mentioned above, please let me know and I will happily update your records manually from my end.

Kindly note, we have an approval for your extension to complete the course, could you please recommend how much time would you need to complete the 150-hour program so we can submit it to our course administration?

If there is anything else I can help you with, please let me know.\

Regards
Shareef

SHAREEF ALSHAREEF

Content & Networking Advisor

Ontario Institute for Studies in Education
University of Toronto

From: [redacted]
Sent: Thursday, September 25, 2025 8:23 AM

To: Shareef Alshareef <shareef.alshareef@utoronto.ca>
Subject: New Student Alexander Aders

You don't often get email from [redacted]. Learn why this is important

[Texte des messages précédents masqué]

Alex Aders <[redacted]> 25 septembre 2025 à 12:03
À : Shareef Alshareef <shareef.alshareef@utoronto.ca>

Dear Shareef,

I think the issue is that for Units 1-3, I completed the modules and tests, but I didn't finish the writing assignments. Also, I would need about 6 months to complete the course. I feel like this would help take off a lot of the pressure. I bought the course in late January, and I was interrupted in June.

Thank you,
Alex Aders
[Texte des messages précédents masqué]

Shareef Alshareef <shareef.alshareef@utoronto.ca> 25 septembre 2025 à 12:11
À : Alex Aders <[redacted]>

Hi Alex,

Thank you for getting back to me promptly!

I will update your records with units 1-3 tests.

I will forward your extension period suggestion to our course admin and will keep you posted.

Regards
Shareef

SHAREEF ALSHAREEF

Content & Networking Advisor

Ontario Institute for Studies in Education
University of Toronto

From: Alex Aders <[redacted]>
Sent: Thursday, September 25, 2025 12:03 PM
To: Shareef Alshareef <shareef.alshareef@utoronto.ca>
Subject: Re: New Student Alexander Aders

[Texte des messages précédents masqué]

Shareef Alshareef <shareef.alshareef@utoronto.ca> 25 septembre 2025 à 13:12
À : Alex Aders <[redacted]>

Hi Alex,

I have talked to our program manager, and she will be in touch with you regarding the extension period.

Regards

Shareef

SHAREEF ALSHAREEF

Content & Networking Advisor

Ontario Institute for Studies in Education
University of Toronto

From: Shareef Alshareef <shareef.alshareef@utoronto.ca>
Sent: Thursday, September 25, 2025 12:11 PM
To: Alex Aders <[redacted]>
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

Alex Aders <[redacted]> 25 septembre 2025 à 15:25
À : Shareef Alshareef <shareef.alshareef@utoronto.ca>

Dear Shareef,

Thank you, when can I expect to see these changes? Also, I wanted to confirm that my Unit 4 progress will be counted as well (as the prior system noted). I look forward to starting the new course.

Best,
Alex Aders

[Texte des messages précédents masqué]

Shareef Alshareef <shareef.alshareef@utoronto.ca> 25 septembre 2025 à 15:32
À : Alex Aders <[redacted]>

Hi Alex,

Unfortunately, due to some technical limitations we are unable to reflect your previous progress in the new platform, however, it is saved now in our backend data, and you do not need to re-do any work that you have completed previously.

Your updated completed work as of now:

- Unit 4 written assignment and test
- Units 1-3 tests

Does that sound correct?

Regards

Shareef

SHAREEF ALSHAREEF

Content & Networking Advisor

Ontario Institute for Studies in Education
University of Toronto

From: Alex Aders <[redacted]>
Sent: Thursday, September 25, 2025 3:25 PM
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

Alex Aders <[redacted]> 25 septembre 2025 à 15:39
À : Shareef Alshareef <shareef.alshareef@utoronto.ca>

Dear Shareef,

Yes, that's correct. I was not sure because nothing changed in the new platform. I might still have to go back and review materials for the prior units to complete the writing assignments.

Thanks,
Alex Aders
[Texte des messages précédents masqué]

Shareef Alshareef <shareef.alshareef@utoronto.ca> 25 septembre 2025 à 15:41
À : Alex Aders <[redacted]>

Sounds perfect!

Please let me know whenever you have any questions or need any support.

Regards
Shareef

SHAREEF ALSHAREEF

Content & Networking Advisor

Ontario Institute for Studies in Education
University of Toronto

From: Alex Aders <[redacted]>
Sent: Thursday, September 25, 2025 3:39 PM
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

Alex Aders <[redacted]> 31 octobre 2025 à 11:35
À : Shareef Alshareef <shareef.alshareef@utoronto.ca>

I noticed that the TEFL course is about to close. Since I was approved for an extension because of medical reasons, what are the next steps from here?

Thanks,
Alex Aders
[Texte des messages précédents masqué]

Shareef Alshareef <shareef.alshareef@utoronto.ca> 31 octobre 2025 à 11:42

À : Alex Aders <[redacted]>

Hi Alex,

Thank you for reaching out!

Your access will remain active for the period of your extension withing the same course shell.

There might a new course shell specifically for learners who were granted an extension, and in this case our office will notify you via email.

I hope this helps.

Regards

Shareef

SHAREEF ALSHAREEF

Content & Networking Advisor

Ontario Institute for Studies in Education
University of Toronto

From: Alex Aders <[redacted]>
Sent: Friday, October 31, 2025 11:35 AM
To: Shareef Alshareef <shareef.alshareef@utoronto.ca>
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

EXHIBIT 2.5

OISE TEFL Certification Public FAQ

The University’s public account of the disruption and refunds.

PROGRAM

OISE TEFL Certification

TEFL Online Certificate Program – A New Chapter Begins

The TEFL Online Certificate Program was previously delivered through a partnership between OISE Continuing and Professional Learning (CPL) and a third-party platform provider, Kesson Group Inc., which then operated under the name Teach Away. This innovative partnership enabled the TEFL Online Certificate Program to reach learners globally at a time when OISE CPL did not yet have the in-house platforms to support large-scale program implementation.

As technologies evolve and pedagogical standards shift, so too must our delivery models. With that in mind, we are pleased to share that this successful partnership has run its course and we are now concluding our relationship with Teach Away.

TEFL Online Program Update – What You Need to Know

- The current TEFL Online Certificate Program, formerly administered in partnership with Teach Away, is no longer accepting new enrolment
- If you enrolled in the last year, on or after April 15 2024 , and have not been able to complete the program please contact oise.cpl@utoronto.ca.

Coming Fall 2025: A New TEFL Online Experience

We're excited to announce a renewed and enhanced TEFL Online Certificate Program launching Fall 2025 – designed and administered directly by OISE Continuing & Professional Learning.

Please click on REQUEST INFORMATION to receive early updates and priority access when registration opens.

FREQUENTLY ASKED QUESTIONS

WHY IS THE TEFL ONLINE CERTIFICATE PROGRAM NO LONGER ACCEPTING ENROLMENTS?

- The TEFL Online Certificate Program was previously delivered through a partnership between OISE Continuing and Professional Learning (CPL) and a third-party platform provider, Kesson Group Inc., which then operated under the name Teach Away. That agreement has now concluded. OISE CPL is transitioning

- We want to support all learners who were affected by this transition.
    - We recommend waiting to join the newly redeveloped TEFL Online Certificate Program when it launches in Fall 2025.

  This option is free for learners who were previously enrolled.

CAN I GET A REFUND FOR THE COURSE?

- All enrolment and payment processing was managed by Kesson Group Inc. (then operating as Teach Away). That company was later acquired by Pluribus Technologies Corp., which entered court-supervised creditor protection in 2024. If you believe your circumstances are exceptional or you were affected during the creditor protection process, you may wish to contact the provider at info@pluribustechnologies.com.

WHY CAN'T OISE CPL PROVIDE ME A REFUND?

- When you registered, your payment was made directly to our delivery partner, Kesson Group Inc. (then operating as Teach Away). OISE CPL did not collect tuition payments and is therefore not in a position to process refunds.

IS THIS THE SAME AS THE TEACH AWAY TEFL PROGRAM?

No. The OISE TEFL Certificate was developed and credentialed by OISE Continuing and Professional Learning at the University of Toronto. From 2014 to early 2025, the program was delivered by Kesson Group Inc. (then operating as Teach Away).

In 2025, the Teach Away name and brand were acquired by East Hill Education Inc., which has no affiliation with the OISE or OISE Continuing & Professional Learning.

CAN I STILL RECEIVE MY CERTIFICATE?

- Yes. If you completed the course and we can confirm your learner record, we'll be happy to issue your certificate. Please email oise.cpl@utoronto.ca.

WHAT HAPPENS TO MY LEARNER RECORD?

- OISE CPL has securely received TEFL learner records and will retain them in accordance with University of Toronto data governance and privacy policies.

I FINISHED THE COURSE BUT STILL HAVEN'T RECEIVED MY PHYSICAL CERTIFICATE.

- We're currently resolving a delay in mailing physical certificates. In the meantime, we'd be happy to send you a digital version. Please contact us.

WHO CAN I CONTACT WITH QUESTIONS?

- For learner records, certificate questions, or upcoming TEFL program information: oise.cpl@utoronto.ca
- For payment/refund-related inquiries: info@pluribustechnologies.com

Not ready to enroll but
want to know more?

REQUEST INFORMATION

Enroll in an available course

Start Your Academic Journey and Enroll Today

CHOOSE A COURSE

Have questions? Get in touch with a member of our team.

FIRST NAME

LAST NAME

EMAIL ADDRESS

MESSAGE

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Court File No. SC-25-00014152-0000

ONTARIO SUPERIOR COURT OF JUSTICE — SMALL CLAIMS COURT

BETWEEN: Alexander John Aders (Plaintiff) and The Governing Council of the University of Toronto (Defendant)

TAB 3 — THE REFUND RUNAROUND, THE UNIVERSITY'S KNOWLEDGE TIMELINE, AND THE EXHAUSTION OF EXTERNAL REMEDIES

Purpose. This tab gathers the Plaintiff's correspondence and complaints from September 3, 2025 through February 20, 2026, as the Plaintiff sought a refund or other accountability after the Program was disrupted. The documents are organized into two streams, each presented in date order: **Stream A**, the Plaintiff's dealings inside the University (Ombudsperson → Dean → OISE CPL management); and **Stream B**, the Plaintiff's dealings outside the University (the insolvency estate, the former delivery partner, and the consumer-protection and law-enforcement bodies he approached). The tab establishes four things: (i) the University's own written statement, on September 23, 2025, that a University of Toronto contact received the Notice to Creditors in December 2024 — before the Plaintiff's January 28, 2025 payment; (ii) that the University, having taken sole carriage of the Program, repeatedly directed the Plaintiff's refund elsewhere; (iii) that the University's representatives made commitments of support that were not kept; and (iv) that every external forum the Plaintiff approached declined or disclaimed jurisdiction, leaving this Court as the only venue in which the matter can be adjudicated.

Note on identity. The correspondence in this tab was conducted from both of the Plaintiff's email addresses — his former address ([redacted] and his current address used in this proceeding ([redacted]). Both addresses belong to the Plaintiff.

Note on sequence. The Plaintiff first approached the University's Office of the Ombudsperson on September 4, 2025. It was that Office's declination of jurisdiction, and its direction that he raises the matter with OISE leadership, that prompted the September 5 letter to the Dean. The internal stream is presented in that order.

Documents in this tab

Stream A — Internal University Track

3.1 Sept. 4–5, 2025 — Office of the Ombudsperson: demand and declination of jurisdiction

3.2 Sept. 5–8, 2025 — Dean Walker: formal refund demand and acknowledgment

3.3 Sept. 9, 2025 — OISE CPL (Hanadi Abdullah): referral and the Plaintiff's written refund request

3.4 Sept. 23, 2025 — OISE CPL (Hanadi Abdullah, cc Cassidy): the knowledge-timeline statement

3.5 Sept. 23–24, 2025 — OISE CPL (Michael Cassidy): carriage of the file and an unfulfilled commitment

3.6 Sept. 25, 2025 — Legacy Program onboarding (cross-reference to Tab 2, Exhibit 2.4)

Stream B — External Remedy Track

3.7 Sept. 3–11, 2025 — Pluribus / GlassRatner and the trustee: no funds; Statement of Affairs

3.8 Sept. 8, 2025 — Teach Away: refund declined

3.9 Sept. 16, 2025 — Canadian Anti-Fraud Centre (Ref. 2025-81555)

3.10 Sept. 18 / Oct. 21, 2025 — Consumer Protection Ontario (MPBSDP): declination

3.11 Sept. 18, 2025 / Feb. 20, 2026 — Ministry of Colleges and Universities: declination

3.12 Sept. 19, 2025 — Federal Trade Commission (No. 193107834)

3.13 Sept. 23 / Dec. 15–16, 2025 — RCMP: declination and the Plaintiff's renewed request

3.14 Dec. 13–16, 2025 — U.S. Consulate General Toronto (American Citizen Services): declination

3.15 Dec. 17, 2025 — FBI Internet Crime Complaint Center (IC3)

Master timeline

The following timeline lists, in date order, every event referenced in this tab, with the documents in which each appears. The one item marked "to attach" — the provider's January 23, 2025 public announcement — is a public record filed with the exhibits to this tab.

Date	Event	Source
Dec. 17, 2024	Pluribus and subsidiaries (incl. Kesson Group Inc.) begin court-supervised creditor protection under the CCAA; a U of T Accounts Receivable contact receives the Notice to Creditors in December 2024.	Defence para. 14; Item 3.4
Jan. 23, 2025	Pluribus announces a court-supervised restructuring and sale process.	Press release (to attach)
Jan. 28, 2025	Plaintiff pays $1,196.00 USD (Order #3762).	Tab 1, Ex. 1.1
Feb. 12, 2025	Date the Defendant pleads OISE CPL first became aware of the CCAA proceedings.	Defence para. 15
Jun. 6, 2025	Program taken offline; Plaintiff's first inquiry; instruction to wait.	Tab 2, Ex. 2.1
Jul. 10, 2025	1000128977 Ontario Inc. (formerly Pluribus Technologies Corp.) declares bankruptcy.	Item 3.7
Sep. 3, 2025	Plaintiff emails Teach Away (7:57 PM) and info@pluribustechnologies.com (8:19 PM).	Items 3.7–3.8
Sep. 4, 2025	Plaintiff emails the Office of the Ombudsperson (8:32 PM).	Item 3.1
Sep. 5, 2025	Ombudsperson declines jurisdiction; directs Plaintiff to OISE leadership (8:44 AM).	Item 3.1
Sep. 5, 2025	Plaintiff emails Dean Walker (cc Flessa, Vieta): ten-business-day refund demand (9:52 AM).	Item 3.2
Sep. 7, 2025	GlassRatner (Pluribus CCAA) directs Plaintiff to the trustee, Adam Fisher (3:02 PM).	Item 3.7
Sep. 8, 2025	Dean Walker acknowledges receipt (10:01 AM).	Item 3.2
Sep. 8, 2025	Teach Away replies; states it cannot process a refund (9:57 AM).	Item 3.8
Sep. 8, 2025	Plaintiff emails the trustee, citing exceptional/hardship circumstances (12:20 AM).	Item 3.7
Sep. 9, 2025	Hanadi Abdullah offers a call (12:18 PM); Plaintiff requests refund by cheque, in writing (1:16 PM).	Item 3.3
Sep. 11, 2025	Trustee: company is bankrupt, no funds for refunds; attaches Statement of Affairs (4:40 PM).	Item 3.7
Sep. 16, 2025	Canadian Anti-Fraud Centre complaint filed (Ref. 2025-81555).	Item 3.9
Sep. 18, 2025	Complaints to Consumer Protection Ontario (MPBSDP) and to the Ministry	Items 3.10–3.11

Date	Event	Source
	of Colleges.	
Sep. 19, 2025	FTC report filed (No. 193107834).	Item 3.12
Sep. 23, 2025	Hanadi Abdullah's substantive email (cc Cassidy): the knowledge-timeline statement (10:26 AM).	Item 3.4
Sep. 23, 2025	Michael Cassidy assumes carriage of the file (11:17 AM).	Item 3.5
Sep. 23, 2025	RCMP declines the complaint as "wholly civil" (10:42 AM).	Item 3.13
Sep. 24, 2025	Cassidy: matter is "a priority … hoping to connect tomorrow or Friday." No personal follow-up.	Item 3.5
Sep. 25 – Oct. 31, 2025	Legacy enrolment; progress not reflected; extension never finalized.	Tab 2, Ex. 2.4; Item 3.6
Oct. 21, 2025	Consumer Protection Ontario declines to act (dispute is against a bankrupt business).	Item 3.10
Dec. 13, 2025	Plaintiff emails the U.S. Consulate General Toronto (American Citizen Services).	Item 3.14
Dec. 15, 2025	Plaintiff recontacts the RCMP with new evidence.	Item 3.13
Dec. 16, 2025	Consulate declines (10:41 AM); RCMP routes the foreign complaint to the FBI (12:35 PM).	Items 3.13–3.14
Dec. 17, 2025	Plaintiff files an FBI Internet Crime Complaint Center (IC3) complaint (2:12 PM).	Item 3.15
Feb. 20, 2026	Ministry of Colleges declines to intervene (institutional autonomy).	Item 3.11

STREAM A — THE INTERNAL UNIVERSITY TRACK

3.1 September 4–5, 2025 — Office of the Ombudsperson

(a) On September 4, 2025, the Plaintiff wrote to the University's Office of the Ombudsperson, demanding a full refund of $1,196.00 and setting out the same grounds advanced throughout: the Program was not delivered, the alternatives offered were not equivalent, and his payment was made in January 2025 while the delivery partner's parent was already in insolvency proceedings.

(b) On September 5, 2025, Ombuds Officer Emma Thacker replied that the Office could not consider the complaint because continuing-education programs at OISE fall outside its Terms of Reference, and suggested the Plaintiff bring his concerns to the leadership at OISE.

Significance. The first body the Plaintiff approached was the University's own internal oversight office, and it disclaimed jurisdiction over continuing-education learners. That declination is doubly relevant: it is why the Plaintiff next wrote to the Dean, and it is the first instance of a pattern — developed across this tab — in which each forum the Plaintiff approached pointed him elsewhere.

3.2 September 5–8, 2025 — Dean Walker: formal demand and acknowledgment

(a) On September 5, 2025 (9:52 AM), the Plaintiff emailed Dean Erica Walker, copying Joseph Flessa and Marcelo Vieta, formally demanding a full refund within ten business days. The letter set out the January 23, 2025 restructuring announcement, the January 28, 2025

payment “in reliance on the University’s reputation,” the non-disclosure of the provider’s instability, and the June 6, 2025 loss of access.

(b) On September 8, 2025 (10:01 AM), Dean Walker acknowledged receipt: “We will review and will be in touch again from the Dean’s office.”

Significance. The demand was specific, dated, and addressed to the most senior officer of the faculty, with a defined ten-business-day deadline. The Dean acknowledged it and undertook to follow up. The substantive reply did not come from the Dean; the file was redirected to OISE CPL (Item 3.3), and the ten-business-day deadline passed without a refund or a substantive response from the Dean’s office.

3.3 September 9, 2025 — OISE CPL (Hanadi Abdullah): referral and the written refund request

(a) On September 9, 2025 (12:18 PM), Senior Program Manager Hanadi Abdullah wrote that the Plaintiff’s correspondence to the Dean had been “redirected to our team,” and offered to schedule a call with the Associate Director, International & Innovation.

(b) On September 9, 2025 (1:16 PM), the Plaintiff replied confirming his request: a full refund of $1,196.00 by cheque to his home address, and a preference that all communication be kept in writing.

Significance. Two points are established. First, the matter was moved from the Dean’s office into the program team — the same office that had administered the Program — rather than addressed by the Dean. Second, the Plaintiff stated his remedy in plain terms (a refund, by cheque, in writing). His preference for written communication is material: it is why the record in this tab is documentary and contemporaneous, and it stands against any suggestion that matters were resolved or clarified in unrecorded calls.

3.4 September 23, 2025 — OISE CPL (Hanadi Abdullah, cc Cassidy): the knowledge-timeline statement

(a) On September 23, 2025 (10:26 AM), Ms. Abdullah wrote, copying Michael Cassidy, to give “further context about the administrative transition.” On the timeline, she stated: *“while a general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024, OISE CPL was not made aware of this information until late March 2025. The formal legal disclaimer of the Master Agreement between OISE and Teach Away (Kesson/Pluribus) was finalized in May 2025.”*

(b) She added that the situation “unfolded under the constraints of a court-supervised creditor protection process, which imposed legal limitations on communication and action by all involved parties, including OISE CPL and the University,” and, on refunds, repeated that payment was made to Kesson Group Inc., that “OISE CPL did not collect tuition payments,” and that it could not refund.

Significance. This is the keystone document of the tab, and it is the direct answer to paragraph 15 of the Defence. Paragraph 15 pleads that *“OISE CPL only became aware of Pluribus’s CCAA proceedings on February 12, 2025.”* But the defendant in this proceeding is **the University** — The Governing Council of the University of Toronto — not OISE CPL, which is an internal unit of the

University and not a separate legal person. This email is the University's own written admission that **a University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024** — more than a month before the University accepted the Plaintiff's January 28, 2025 payment. Paragraph 15 does not address this; it answers a different question (when OISE CPL became aware) while omitting the one the Claim raises (when the University became aware). The date this email gives for OISE CPL's awareness — "late March 2025" — is itself some six weeks later than the "February 12, 2025" the Defendant later pleaded; the University's own accounts of its awareness do not agree. For the purposes of this tab, however, the December 2024 receipt is taken at face value, because it is the Defendant's own statement and is sufficient on its own to place knowledge of the insolvency within the University before the transaction.

3.5 September 23–24, 2025 — OISE CPL (Michael Cassidy): carriage of the file and an unfulfilled commitment

(a) On September 23, 2025 (11:17 AM) — roughly fifty minutes after Item 3.4 — Associate Director Michael Cassidy wrote that he would be the Plaintiff's "point of contact in resolving this matter" and would "manage this matter directly until resolution." He described the parent company's "bankruptcy and court-supervised restructuring in June 2025" as having ended the arrangement, and restated that tuition was paid to Kesson and that the University "cannot issue refunds."

(b) On September 23, 2025 (8:28 PM), the Plaintiff elected the Legacy pathway and asked what extension was possible given his medical circumstances.

(c) On September 24, 2025 (12:11 PM), Mr. Cassidy replied that the matter was "a priority," that he would "connect with my team who can reach out," and that he was "hoping to connect tomorrow or Friday." Mr. Cassidy did not personally follow up; carriage reverted to Ms. Abdullah and to advisor Shareef Alshareef.

Significance. Two points. First, the same-day correspondence contains an internal inconsistency on the central fact in this case: Ms. Abdullah dates the University's receipt of the Notice to Creditors to **December 2024** and OISE CPL's awareness to "late March 2025" (Item 3.4), while Mr. Cassidy, writing about fifty minutes later, dates the parent's "bankruptcy and court-supervised restructuring" to **"June 2025"** — a date that cannot be reconciled with the January 23, 2025 public announcement or the July 10, 2025 bankruptcy (Item 3.7). Two of the University's own representatives gave the Plaintiff materially different accounts of when the insolvency arose, on the same day. Second, Mr. Cassidy expressly took carriage "until resolution" and undertook to connect within days; that commitment was not kept. It is the fourth promised follow-up that did not materialize — after those of June 6 and August 11 (Tab 2) and the program manager's undertaking of September 25 (Tab 2, Ex. 2.4).

3.6 September 25, 2025 — Legacy Program onboarding (cross-reference)

On September 25, 2025, Ms. Abdullah sent the Plaintiff his Quercus access credentials for the Legacy Program, stating that access "generally" expires October 31 but that the University was "happy to offer" an extension to be arranged with the course instructor. The substance of what followed — that the Plaintiff's prior progress was not reflected on the new platform, that advisor Shareef Alshareef recorded completion manually, and that the extension was approved only in

principle and never finalized — is set out in **Tab 2, Exhibit 2.4**, and is not reproduced here. This item is included so the internal stream is complete: the Plaintiff did enroll in and attempt the Legacy Program in good faith before concluding it could not restore his position.

Significance. The Plaintiff engaged the very remedy the University now relies upon. His good-faith attempt, and the reasons it failed, are documented in Tab 2 and answer any suggestion that he refused the alternatives offered.

STREAM B — THE EXTERNAL REMEDY TRACK

Note on the Plaintiff's state of knowledge. The complaints in this stream were prepared on the information available to the Plaintiff at the time — principally the University's public FAQ and the September 8, 2025 Teach Away email. The Plaintiff did not then have the University's internal records, and his understanding of the sequence developed as further documents came to light. The characterizations in his early external filings reflect that limited information and his good-faith reading of it. The filings are tendered here not for the legal labels they used, but as evidence that the Plaintiff pursued every available avenue and that each one declined.

3.7 September 3–11, 2025 — Pluribus / GlassRatner and the trustee

(a) Following the University's FAQ, which directed affected learners who believed their "circumstances are exceptional" to contact info@pluribustechnologies.com, the Plaintiff emailed that address on September 3, 2025 (8:19 PM), setting out his hardship grounds.

(b) On September 7, 2025 (3:02 PM), Emily Klein of GlassRatner (handling the Pluribus CCAA matter) directed the Plaintiff to the bankruptcy trustee, Adam Fisher of Harris & Partners Inc.

(c) On September 8, 2025 (12:20 AM), the Plaintiff emailed the trustee with the same hardship grounds. On September 11, 2025 (4:40 PM), the trustee replied: "The company is bankrupt and there is no money for the creditors or any refunds," attaching the Statement of Affairs.

(d) The bankruptcy records confirm that 1000128977 Ontario Inc. (formerly Pluribus Technologies Corp.) filed an assignment in bankruptcy on July 10, 2025, with total liabilities of $10,763,998.59 against $0 in realizable assets.

Significance. This item disposes, on the documents, of the refund avenue the University directed the Plaintiff to use. The estate has no money; a refund from Pluribus was impossible by the time the University pointed him there. The bankruptcy was effective July 10, 2025 — weeks before the University's August 11, 2025 redirect to info@pluribustechnologies.com (Tab 2, Ex. 2.3) and before its FAQ continued to route learners to the same address. The University directed the Plaintiff toward a remedy that did not exist.

3.8 September 8, 2025 — Teach Away: refund declined

(a) On September 3, 2025 (7:57 PM), the Plaintiff also emailed Teach Away directly. On September 8, 2025 (9:57 AM), Teach Away replied that OISE CPL "now solely owns and operates the OISE TEFL course," and that Teach Away "no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress."

(b) On refunds, Teach Away stated that during the CCAA process "all financial matters — including student payments — became part of the formal restructuring proceedings," and that, because "the new organization (Teach Away) never received your course payment," it could not refund. It offered, as a goodwill gesture, complimentary access to its own 120-hour TEFL course.

Significance. Teach Away's reply completes the circle of deflection: the University's FAQ pointed refund inquiries to the Pluribus address; the Pluribus matter pointed to the trustee; the trustee said

there was no money; and Teach Away said it no longer had any authority over payments and that the funds had been absorbed into the restructuring estate. No entity in the chain accepted responsibility for a refund, and the money sits in an insolvency estate with no realizable assets. The Plaintiff's earlier characterization, in filings prepared before disclosure, that the University "retained control of student funds" reflected his reading of this email at the time; the conservative and documented reading is the one stated here — a complete refund runaround in which each party disclaimed the obligation.

3.9 September 16, 2025 — Canadian Anti-Fraud Centre (Ref. 2025-81555)

On September 16, 2025, the Plaintiff filed a complaint with the Canadian Anti-Fraud Centre (Reference 2025-81555), summarizing the transaction and the timeline as he then understood it. The CAFC issued a receipt; it does not adjudicate individual complaints.

Significance. Tendered as evidence of diligence. The classification and wording reflect the Plaintiff's information at the time (see the note opening this stream); the filing's significance here is that the Plaintiff pursued the matter and that the CAFC, by design, provided no individual remedy.

3.10 September 18 / October 21, 2025 — Consumer Protection Ontario (MPBSDP)

(a) On September 18, 2025, the Plaintiff filed an e-complaint with the Ministry of Public and Business Service Delivery and Procurement (Consumer Protection Ontario), file CAS-118208-X0W3T, naming the University of Toronto / OISE CPL.

(b) On October 21, 2025, the Ministry replied that it would "not take action at this time" because "your dispute is against a business that has closed and/or has filed for bankruptcy," and directed the Plaintiff to the Ministry of the Attorney General, a lawyer, or the Ministry of Education.

Significance. The provincial consumer-protection body declined to act, treating the matter as a dispute with the bankrupt provider. Whether or not that framing fully captured the Plaintiff's complaint against the University, the outcome is what matters here: another avenue closed, with an express direction to pursue the matter in court.

3.11 September 18, 2025 / February 20, 2026 — Ministry of Colleges and Universities

The Plaintiff also wrote to the Ministry of Colleges, Universities, Research Excellence and Security on September 18, 2025. On February 20, 2026, Manager Rachel Houpt replied that Ontario universities are "autonomous institutions" responsible for their own program and refund decisions, that the Ministry "is not in a position to intervene in individual cases," and directed the Plaintiff to the University's Student Accounts Office or the Ontario Ombudsman.

Significance. The responsible provincial ministry likewise declined, on autonomy grounds, and — like the Ombudsperson — pointed the Plaintiff back toward the University or onward to another body. The five-month delay in responding is itself part of the picture of how long the Plaintiff pursued non-judicial avenues before this proceeding could resolve the matter.

3.12 September 19, 2025 — Federal Trade Commission (No. 193107834)

On September 19, 2025, the Plaintiff filed a report with the United States Federal Trade Commission (No. 193107834). The FTC confirmed receipt and stated that it does not resolve individual reports.

Significance. Tendered as evidence of diligence across both jurisdictions in which the Plaintiff has a connection (he is resident in the United States). As with the CAFC, no individual remedy was available.

3.13 September 23 / December 15–16, 2025 — RCMP: declination and renewed request

(a) On September 23, 2025 (10:42 AM), RCMP officer John Elgie advised that the Central Intake Unit had reviewed the complaint and determined it to be a "wholly civil matter," reasoning that Kesson Group Inc. collected the tuition, that the Plaintiff was therefore a general creditor in the bankruptcy, and that OISE was "correct in referring the complainant to the bankrupt."

(b) On December 15, 2025, the Plaintiff wrote again, citing the University's own December 2024 receipt of the Notice to Creditors (Item 3.4) and asking that the file be reconsidered. On December 16, 2025 (12:35 PM), the RCMP advised that, as a foreign complainant, the Plaintiff would need a U.S. police agency — the FBI — to review the complaint and forward it to the RCMP, which would likely refer it to the Toronto Police Service.

Significance. The RCMP's September assessment rested on the premise that tuition was collected by Kesson and that the University had no funds and was right to refer the Plaintiff to the bankrupt — the same premises the University advanced and the same premises the December 2024 admission (Item 3.4) calls into question. The Plaintiff's December renewal of the complaint is tendered for the fact that it was made and that the matter was routed, on jurisdictional grounds, between agencies and across borders rather than investigated. The criminal characterization in that renewal reflects the Plaintiff's own view; for the purposes of this civil proceeding, it is offered only to show that this avenue, too, produced no adjudication.

3.14 December 13–16, 2025 — U.S. Consulate General Toronto (American Citizen Services)

(a) On December 13, 2025, the Plaintiff — a U.S. citizen resident in Florida — emailed the U.S. Consulate General in Toronto requesting consular assistance, setting out the transaction, the December 2024 institutional knowledge, and the exhaustion of Canadian avenues.

(b) On December 16, 2025 (10:41 AM), the Consulate replied that it was "unable to provide assistance in matters related to consumer fraud or disputes with foreign institutions," recommended that the Plaintiff continue through the Canadian authorities and consult a private attorney, and suggested the U.S. Federal Trade Commission.

Significance. The Plaintiff also sought assistance in his own country. The Consulate, like the Canadian bodies, declined and directed him onward — back to the Canadian authorities, to a private lawyer, and to the FTC. The reference, in the Plaintiff's message, to disability and accommodation reflects his own characterization; it is noted for completeness and is not advanced in this tab.

3.15 December 17, 2025 — FBI Internet Crime Complaint Center (IC3)

On December 17, 2025 (2:12 PM), following the RCMP's December 16 direction that a foreign complaint be routed through the FBI (Item 3.13) and the Consulate's suggestion of a U.S. federal avenue (Item 3.14), the Plaintiff filed a complaint with the FBI's Internet Crime Complaint Center (IC3).

Significance. This filing completes the sequence created by the December 16 referrals: directed by the RCMP to the FBI and by the Consulate to U.S. federal channels, the Plaintiff filed with IC3 the next day. Like the other external bodies, IC3 affords no individual remedy. The cumulative effect of Stream B is that no administrative or law-enforcement forum — Canadian or U.S. — took up the matter; each declined or redirected, and several expressly pointed to the courts.

SIGNIFICANCE OF TAB 3 — RESPONSE TO PARAGRAPH 15 OF THE DEFENCE

Paragraph 15 of the Defence pleads that *"OISE CPL only became aware of Pluribus's CCAA proceedings on February 12, 2025."* Paragraph 14 admits that Pluribus and its subsidiaries, including Kesson Group Inc., *"on December 17, 2024, began court-supervised creditor protection,"* and that Kesson *"continued to enroll participants in the Program and collect payments from them"* thereafter. Read with the documents in this tab, those pleadings establish the following:

1. **The defendant is the University, not OISE CPL.** The party named in this proceeding is The Governing Council of the University of Toronto — the legal entity comprising the whole University. OISE CPL is an internal unit of that entity, not a separate legal person. The Program was marketed, branded, sold, and credentialed as the University's own (Tab 1). The question the Claim raises is what the University knew when it accepted the Plaintiff's payment — not what one of its units knew.

2. **The University's own admission places knowledge in December 2024.** The University's Senior Program Manager wrote, on September 23, 2025, that "a general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024" (Item 3.4). Accounts Receivable is a function of the University — the defendant. That statement places the Notice to Creditors within the University more than a month before the University accepted the Plaintiff's January 28, 2025 payment. This is consistent with paragraph 14's own admission that creditor protection began December 17, 2024.

3. **Paragraph 15 answers the wrong question.** By pleading only when OISE CPL became aware (February 12, 2025), paragraph 15 omits the question the Claim turns on — when the University became aware. The University cannot rely on the fact that its Accounts Receivable function did not pass the Notice to Creditors to its program unit: a failure to circulate material information among its own departments is the University's own conduct, not an answer to its knowledge.

4. **The University's accounts of its awareness are inconsistent.** The Defence pleads OISE CPL awareness on February 12, 2025; the University's own program manager put it at "late March 2025" (Item 3.4); and Associate Director Cassidy dated the parent's "bankruptcy and court-supervised restructuring" to "June 2025" (Item 3.5) — a date irreconcilable with the December 17, 2024 commencement admitted in paragraph 14 and the July 10, 2025 bankruptcy (Item 3.7). On the documents in this tab alone, the University has given three different accounts of when it learned of the insolvency.

5. **The refund runaround.** Having directed refund inquiries to info@pluribustechnologies.com, the University pointed the Plaintiff to an estate that, by July 10, 2025, had no realizable assets; the trustee confirmed there was no money, and Teach Away disclaimed any authority over payments absorbed into the insolvency (Items 3.7–3.8).

6. **Paragraph 17's "good faith" actions did not restore the Plaintiff's position.** The alternatives offered were not equivalent and did not preserve the Plaintiff's progress, as set out in Tab 2 (Ex. 2.3–2.4) and Item 3.6.

7. **Exhaustion of every other avenue.** The Ombudsperson, Consumer Protection Ontario, the Ministry of Colleges, the CAFC, the FTC, the RCMP, the U.S. Consulate, and the FBI's IC3 each declined or disclaimed jurisdiction, several expressly directing the Plaintiff to the courts. This Court is, on the documents, the only forum in which the matter can be adjudicated.

8. **The Plaintiff's good faith and evolving information.** Throughout, the Plaintiff acted on the information available to him — principally the University's public FAQ and the September 8, 2025 Teach Away email — before he had the University's internal records. The characterizations in his early external filings reflect that limited information; that his understanding developed as further documents came to light explains those filings rather than undermining them, and is consistent with a litigant pursuing every reasonable avenue in sequence.

In sum, this tab answers paragraph 15. The University's reliance on OISE CPL's February 2025 awareness does not answer for the University's own knowledge: by the Defendant's own admission, a University of Toronto contact held the Notice to Creditors in December 2024 — before the transaction — and paragraph 14 admits creditor protection began December 17, 2024. The University then directed the Plaintiff's refund to an estate with no money, its representatives' commitments were not kept, and every external body the Plaintiff approached, in two countries, declined to act — leaving this proceeding as the sole avenue for resolution.

TAB 3

STREAM A

The Internal University Track

The Plaintiff's dealings inside the University — Office of the Ombudsperson → Dean Walker → OISE CPL management.

Documents in this stream

3.1 Sept. 4–5, 2025 — Office of the Ombudsperson: demand and declination of jurisdiction

3.2 Sept. 5–8, 2025 — Dean Walker: formal refund demand and acknowledgment

3.3 Sept. 9, 2025 — OISE CPL (Hanadi Abdullah): referral and the Plaintiff's written refund request

3.4 Sept. 23, 2025 — OISE CPL (Hanadi Abdullah, cc Cassidy): the knowledge-timeline statement

3.5 Sept. 23–24, 2025 — OISE CPL (Michael Cassidy): carriage of the file and an unfulfilled commitment

3.6 Sept. 25, 2025 — Legacy Program onboarding (cross-reference to Tab 2, Exhibit 2.4)

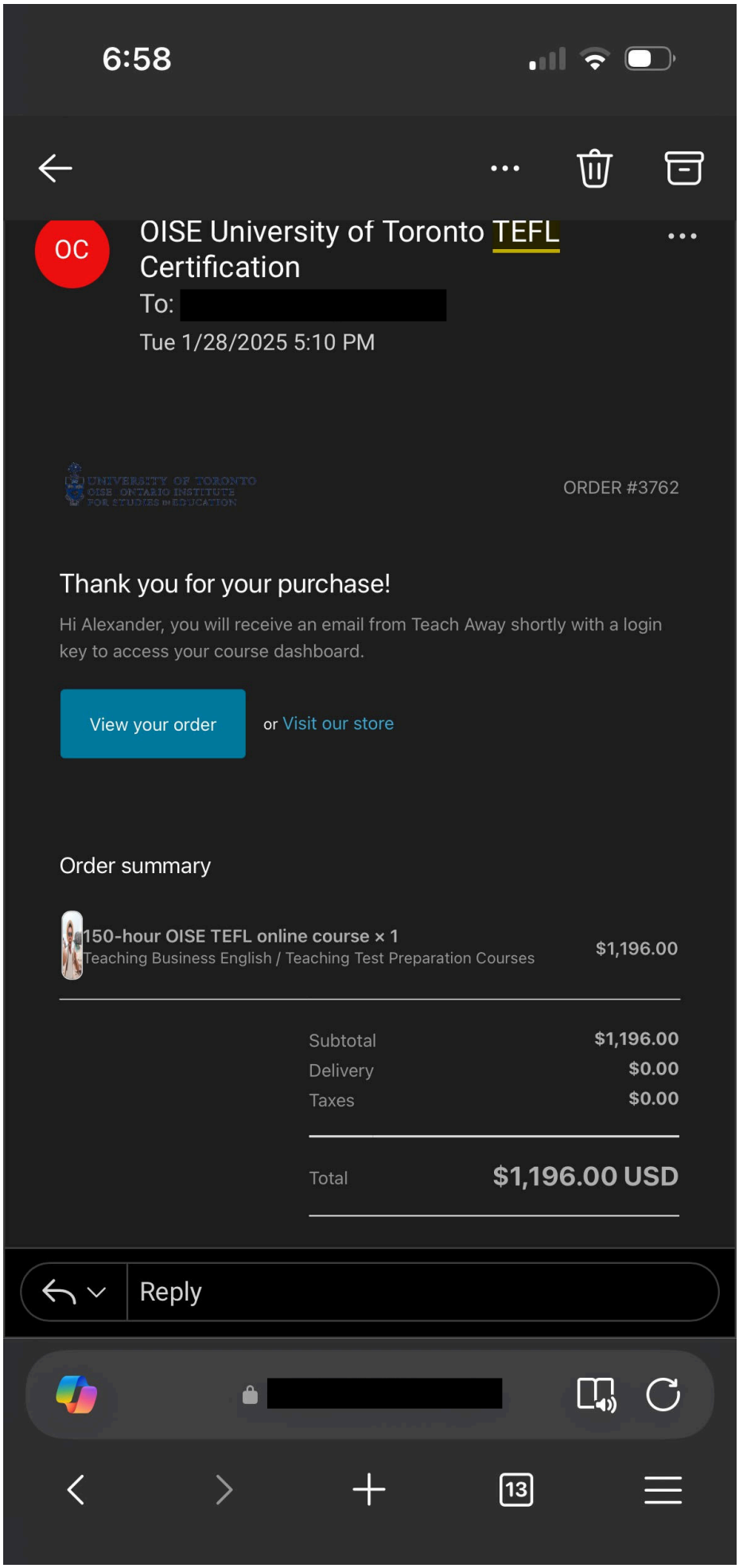
[redacted]

Formal Demand for Refund – Failure to Deliver TEFL Certification Program

2 messages

[redacted]

buds.person@utoronto.ca


6:58
OC
OISE University of Toronto TEFL Certification
To: [redacted]
Tue 1/28/2025 5:10 PM
UNIVERSITY OF TORONTO
OISE ONTARIO INSTITUTE FOR STUDIES IN EDUCATION
ORDER #3762
Thank you for your purchase!
Hi Alexander, you will receive an email from Teach Away shortly with a login key to access your course dashboard.
View your order
or Visit our store
Order summary
150-hour OISE TEFL online course × 1
Teaching Business English / Teaching Test Preparation Courses
$1,196.00
Subtotal $1,196.00
Delivery $0.00
Taxes $0.00
Total $1,196.00 USD
Reply
[redacted]
13

[redacted]

Dear Officer of the Ombudsperson,

I am writing to formally demand a full refund of the $1,196.00 I paid for the 150-hour TEFL certification with specializations in Business English and Test Preparation.

The program I purchased has not been delivered. The University's partnership with Teach Away collapsed only months after my enrollment, leaving me without access to the service I paid for. The "solutions" offered by OISE Continuing & Professional Learning are not equivalent:

- The Legacy Program requires completion by October 31, 2025, less than a year from purchase. When I requested a modest extension to account for the University's delayed rollout, I was told I must submit medical documentation. This is unreasonable. I live with documented health conditions (TBI, PTSD, and a herniated disc) that already require flexibility, and I should not be forced to provide additional documentation simply to access a fair timeline—especially when the disruption was caused by the University's failed partnership.
- The New Program launching in November 2025 is a clear downgrade. It removes the Business English and Test Preparation specializations I paid for, erases all progress I made, and reduces the certificate to 125 hours instead of 150. This is not the product I purchased.

Furthermore, I paid in January 2025—at the same time Teach Away's parent company, Pluribus Technologies, was already undergoing bankruptcy proceedings. Students like myself were not informed of this instability at the time of purchase.

This situation is time-sensitive. I am expected to accept a November program that strips out the value I originally paid for, or else scramble to finish the Legacy Program in less than two months under inappropriate conditions. Neither option is acceptable.

Accordingly, I request a full refund to my original method of payment within 10 business days. If this is not resolved promptly, I will file formal complaints with Consumer Protection Ontario and the Ontario Ministry of Colleges and Universities regarding the University of Toronto's practice of accepting payment for services it cannot deliver.

I trust the University will take responsibility for its partnerships and do the right thing.

Sincerely,

Alexander Aders

Ombuds Office <ombuds.person@utoronto.ca> 5 septembre 2025 à 08:44
À : [redacted]

Dear Alex,

Thank you for contacting the Office of the Ombudsperson. I am sorry to hear of your concerns with the TEFL program at OISE.

Unfortunately, due to this Office's Terms of Reference, I am not able to consider your complaint – continuing education programs at OISE are not within our jurisdiction.

If you have not already done so, what I would suggest is that you consider bringing your concerns to the leadership at OISE. Contact information can be found at the link below:

https://www.oise.utoronto.ca/about/dean

I am sorry I cannot be of more assistance, and I hope you are able to resolve your concerns.

With regards,

Emma Thacker, EdD
Ombuds Officer
University of Toronto
ombuds.person@utoronto.ca
https://ombudsperson.utoronto.ca/

From: Alex Aders <[redacted]>
Sent: September 4, 2025 8:32 PM
To: Ombuds Office <ombuds.person@utoronto.ca>
Subject: Formal Demand for Refund – Failure to Deliver TEFL Certification Program

You don't often get email from [redacted]. Learn why this is important

[Texte des messages précédents masqué]

[redacted]

Formal Demand for Refund – TEFL Certification (OISE / Teach Away)

2 messages

[redacted]

ican.walker@utoronto.ca
Cc : joseph.flessa@utoronto.ca, marcelo.vieta@utoronto.ca

Dear Dean Erica Walker,

I am writing to formally demand a full refund of the $1,196.00 I paid on January 28, 2025 for the 150-hour TEFL certification with specializations in Business English and Test Preparation.

The University accepted my payment while its contracted provider, Teach Away, was already under financial collapse:

January 23, 2025 – Pluribus Technologies Corp. (Teach Away's parent company) publicly announced it was entering restructuring and a court-supervised sale process.

January 28, 2025 – I paid the University of Toronto $1,196.00 in reliance on its reputation. No disclosure was made regarding the instability of the program provider.

June 6, 2025 – The TEFL course was taken offline entirely, leaving students without access to the service purchased.

The University has since proposed "solutions" that are not equivalent:

The Legacy Program – Requires completion by October 31, 2025 (less than one year from purchase). When I requested a modest extension due to delays caused by the University's failed partnership, I was told I must submit additional medical documentation. This is inappropriate and discriminatory, as I already live with documented conditions (TBI, PTSD, herniated disc) that require flexibility.

The New Program (November 2025) – Represents a clear downgrade:

Reduced from 150 hours to 125 hours

Removal of Business English and Test Preparation specializations

Erasure of all progress already made

This is not the product I purchased, nor the one advertised under the University's name.

The University of Toronto continued to accept payment for a program it could not deliver, during a period when its contracted provider was already insolvent. This raises not only ethical concerns but also potential consumer protection violations.

Accordingly, I request a full refund within 10 business days. If this matter is not resolved, I will be compelled to escalate by filing formal complaints with Consumer Protection Ontario, the Ontario Ministry of Colleges and Universities, and exploring further avenues for accountability.

I trust the University will take responsibility for its partnerships and protect the integrity of its name by resolving this matter promptly.

Sincerely,
Alexander Aders

5 pièces jointes

150 hour class.pdf
253K

correspondence Taleb.pdf
641K

June 6 2025 correspondence.pdf
257K

Pluribus Technologies Corp. Begins Restructuring and Sales Process.pdf
85K

Pluribus Technologies Corp. Completes Acquisition of the Kesson Group.pdf
110K

OISE Dean <dean.oise@utoronto.ca> 8 septembre 2025 à 10:01
À : [redacted]

Many thanks for your email, Mr Aders, and for bringing this to our attention. We will review and will be in touch again from the Dean's office.

Best regards

ENW

--

Erica N Walker

Dean

Ontario Institute for Studies in Education

University of Toronto

From: [redacted]
Date: Friday, September 5, 2025 at 9:53 AM
To: Erica Walker <erican.walker@utoronto.ca>
Cc: Joseph Flessa <joseph.flessa@utoronto.ca>, Marcelo Vieta <marcelo.vieta@utoronto.ca>
Subject: Formal Demand for Refund – TEFL Certification (OISE / Teach Away)

[redacted]

[Texte des messages précédents masqué]

[redacted] [redacted]

[redacted]

Your Concerns about the TEFL Program

6 messages

Hanadi Abdullah <hanadi.abdullah@utoronto.ca> 9 septembre 2025 à 12:18
À : [redacted]

Hello Alex,

Your correspondence to the OISE Dean regarding your concern about the TEFL program has been redirected to our team, who manages the TEFL program and working closely with professionals like yourself who are seeking to complete it.

To better understand your specific needs, I'd be happy to schedule a call between you and the Associate Director for International & Innovation at OISE Continuing & Professional Learning, who is leading the team overseeing the TEFL program.

We're committed to helping you find a path forward and would be glad to support you in finding a solution that works for you. If this works, please let me know what your preferred day/time to connect and I would be happy to schedule a meeting accordingly.

Best regards,
Hanadi

DEFY GRAVITY

HANADI ABDULLAH

Senior Program Manager

OISE Continuing &

Professional Learning

University of Toronto

252 Bloor St West

Toronto, ON, M5S 1V6

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

cpl.oise.utoronto.ca

UNIVERSITY OF TORONTO
OISE | ONTARIO INSTITUTE FOR STUDIES IN EDUCATION
Continuing & Professional Learning

InnovED

[redacted] [redacted]

anadi Abdullah <hanadi.abdullah@utoronto.ca>

Dear Hanadi,

I hope you are doing well. Thank you for confirming that my letter has been received by the Dean's office and that your team is reviewing the concerns I raised. My request is for a full refund of $1,196.00 to be issued by check to my home address, which is listed on the receipt attached in my previous email. I would also prefer to keep all communication in writing.

Sincerely,

Alexander Aders

[Texte des messages précédents masqué]

Hanadi Abdullah <hanadi.abdullah@utoronto.ca> 23 septembre 2025 à 10:26
À : [redacted]
Cc : Michael Cassidy <michael.cassidy@utoronto.ca>

Dear Alexander,

Apologies for the delay in getting back to you, and I completely understand your preference to have communications in writing only. I'm happy to provide further context about the administrative transition of the TEFL program from Teach Away to OISE.

The sudden TeachAway closure due to the bankruptcy of their owner company Pluribus Technology company has been very frustrating for us all, but especially for the learners. Although this company entanglement ended an arrangement that existed for more than 10-years – operating as our "TEFL program," we remain committed in offering access to the Legacy Program with a time period to finish the program with any necessary extensions, and also offer you enrolment in the new program that launches in November, 2025.

Regarding the timeline, while a general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024, OISE CPL was not made aware of this information until late March 2025. The formal legal disclaimer of the Master Agreement between OISE and Teach Away (Kesson/Pluribus) was finalized in May 2025.

It is also important to note that this situation unfolded under the constraints of a **court-supervised creditor protection process**, which imposed legal limitations on communication and action by all involved parties,

including OISE CPL and the University

We would really like you to consider participating in the newly offered program if you feel that you are unable to finish with the current program. We've put a series of supports for all learners to help them make that decision (continue with or pause to start a new program). We currently have an active facilitator who is guiding learners individually and through group sessions through the completion of the asynchronous TEFL program that you purchased and have access to. Our team would be happy to connect you directly to that support and/ or communicate further about supporting your completion.

Regarding Refunds:

As outlined in the FAQs, when you registered, your payment was made directly to our delivery partner, Kesson Group Inc. (then operating as Teach Away). OISE CPL did not collect tuition payments and is therefore not able to process refunds. That said, we're here to support you in moving forward through one of the two pathways designed to provide you the options to complete your program. You can continue with the program that you started, or you can start a new program that starts end of next month.

Please don't hesitate to reach out with further questions. We remain committed to helping you find a path forward.

Best regards,

Hanadi

HANADI ABDULLAH

Senior Program Manager

OISE Continuing & Professional Learning

University of Toronto

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

From: Alex Aders <[redacted]>
Sent: Tuesday, September 9, 2025 1:16 PM
To: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: Re: Your Concerns about the TEFL Program

[Texte des messages précédents masqué]

Michael Cassidy <michael.cassidy@utoronto.ca> 23 septembre 2025 à 11:17
À : Hanadi Abdullah <hanadi.abdullah@utoronto.ca>, Alex Aders <[redacted]>

Dear Mr. Aders,

Thank you for your correspondence regarding the TEFL program. You have been directed appropriately to me and this office, as I serve as the Associate Director, International & Innovation, with responsibility for the TEFL portfolio. I will be your point of contact in resolving this matter.

As shared by Hanadi, Teach Away operated the TEFL program for more than a decade as OISE's contracted delivery partner. Its parent company's bankruptcy and court-supervised restructuring in June 2025 brought that arrangement to an abrupt end. While this development was beyond the University's control, we fully appreciate the disruption it has caused you and other learners.

To mitigate this disruption, OISE CPL has implemented two pathways:

1. **Legacy Completion Pathway** – You retain access to the 150-hour TEFL program you purchased. An active facilitator is available to guide learners individually and in groups. Extensions are being managed case by case in accordance with University policy.
2. **Transition to New Program** – Launching in late October 2025, this program provides a restructured pathway to certification. While the content differs from the legacy program (125 hours, without the Business English and Test Preparation specializations), it is supported and recognized as a credible credential.

As outlined in program FAQs and at the time of enrolment, tuition fees were paid directly to Kesson Group Inc. (Teach Away), not to the University of Toronto. Under University policy, OISE CPL did not receive these funds and therefore cannot issue refunds.

Although refunds cannot be processed by the University, I am committed to working with you to ensure you can complete a TEFL certification pathway of value. I would welcome confirmation of which option you wish to pursue so that my team and I can provide you with tailored support.

Thank you again for raising your concerns. With this referral, I will now manage this matter directly until resolution.

Sincerely, Michael

MICHAEL CASSIDY
Associate Director

Office of Continuing & Professional Learning

Research Partnership and Innovation

Ontario Institute for Studies in Education

University of Toronto

Michael.Cassidy@utoronto.ca

[redacted]

[Texte des messages précédents masqué]

Alex Aders <[redacted]> 23 septembre 2025 à 20:28
À : Michael Cassidy <michael.cassidy@utoronto.ca>

Dear Mr. Cassidy,

Thank you for your message and for clarifying the options available. After considering both pathways, I would like to continue with the Legacy TEFL program rather than transition to the new program.

Because of my medical circumstances (TBI, nerve damage, and related injuries from a car accident), I will need additional time beyond the current October 31 deadline in order to complete the program successfully. Could you let me know what type of extension may be possible under University policy?

I appreciate your support and look forward to your guidance on the next steps.

Sincerely,

Alexander Aders

[Texte des messages précédents masqué]

Michael Cassidy <michael.cassidy@utoronto.ca> 24 septembre 2025 à 12:11
À : Alex Aders <[redacted]>

Dear Mr. Aders, I appreciate your situation and I'm sorry to learn about the accident and subsequent medical circumstances.

Please know that this is a priority for us and I'll be more than happy to connect with my team who can reach out to you to determine the best way we can support you to complete your intended certification. I'm off today but will be back tomorrow – hoping to connect tomorrow or Friday.

Sincerely, Michael

MICHAEL CASSIDY
Associate Director

Office of Continuing & Professional Learning

Research Partnership and Innovation

Ontario Institute for Studies in Education

University of Toronto

Michael.Cassidy@utoronto.ca

[redacted]

[Texte des messages précédents masqué]

[redacted]

[redacted]

TEFL Legacy Program - Quercus Access Information

Hanadi Abdullah <hanadi.abdullah@utoronto.ca> Thu, Sep 25, 2025 at 7:25 AM
To: [redacted]

Dear Alexander,

I am happy to hear that you have decided to pursue the TEFL Legacy Program with us. I am here to support and onboard you onto the program. This email contains important information regarding accessing your Teaching English as a Foreign Language (TEFL) – Legacy Program, **please read carefully.**

You are registered for the following course with OISE Continuing and Professional Learning at the University of Toronto (UofT):

Teaching English as a Foreign Language (TEFL) – Legacy Program

Access Expiry
Generally, access expires on October 31 at 11:59pm EST. However, we're happy to offer you an extension to accommodate your needs and circumstances. As you approach the end of October, kindly communicate with the course instructor to see what arrangement would work best for you to complete any remaining tests and assignments, and download any materials you may require for future study or reference.

Learning Management System
To access your course, you will need to log in to UofT's Learning Management System called Quercus.

Please see below for your login credentials:

Quercus Link: https://q.utoronto.ca
Username (UTORid): qq579961
Password: civei7jaeY

Program Content
Whether you are enrolled in the 100-hour, 120-hour or 150-hour certificate program, all content will be available to you in Quercus. You are invited to review past units and modules as needed or simply pick up where you left off. Specific instructions on units and/or electives will be available in Quercus. The instructor is also available to further support with your onboarding and course progress on Quercus.

Troubleshooting

If you experience any difficulties while attempting to access your course **after** the course date, please try the following troubleshooting solutions:

Restart your device and run any updates if prompted by your operating system.
Clear your web browser's cache history.
Try an alternative web browser or private window.
Copy/paste your credentials into Quercus, ensuring not to leave any blank spaces.

Course Completion

A course reader has been assigned to review your assignments and tasks. They will notify our office once you've successfully completed the TEFL Legacy Program.

Certificate of Completion

Once completion confirmed, we will provide you a digital and physical certificates of completion. We will prepare and distribute digital certificates on a weekly basis and physical certificates on a monthly basis. However, please note that based on your geographic location, it may take anywhere from 2-6 weeks to receive your physical certificate.

For any questions regarding prior completion, the new TEFL program, certificates and more, please contact oise.cpl@utoronto.ca

Wishing you a wonderful learning experience,

OISE Continuing and Professional Learning Team
University of Toronto
oise.cpl@utoronto.ca



HANADI ABDULLAH

Senior Program Manager

OISE Continuing &

Professional Learning

University of Toronto

252 Bloor St West

Toronto, ON, M5S 1V6

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

cpl.oise.utoronto.ca





TAB 3

STREAM B

The External Remedy Track

The Plaintiff's dealings outside the University — the insolvency estate, the former delivery partner, and the consumer-protection and law-enforcement bodies he approached.

Documents in this stream

3.7 Sept. 3–11, 2025 — Pluribus / GlassRatner and the trustee: no funds; Statement of Affairs

3.8 Sept. 8, 2025 — Teach Away: refund declined

3.9 Sept. 16, 2025 — Canadian Anti-Fraud Centre (Ref. 2025-81555)

3.10 Sept. 18 / Oct. 21, 2025 — Consumer Protection Ontario (MPBSDP): declination

3.11 Sept. 18, 2025 / Feb. 20, 2026 — Ministry of Colleges and Universities: declination

3.12 Sept. 19, 2025 — Federal Trade Commission (No. 193107834)

3.13 Sept. 23 / Dec. 15–16, 2025 — RCMP: declination and the Plaintiff's renewed request

3.14 Dec. 13–16, 2025 — U.S. Consulate General Toronto (American Citizen Services): declination

3.15 Dec. 17, 2025 — FBI Internet Crime Complaint Center (IC3)

Outlook

RE: Refund request: Alexander Aders

From Pluribus CCAA <pluribus@glassratner.com>
Date Sun 9/7/2025 3:02 PM
[redacted]

Hi Alex, please contact the bankruptcy trustee and they will provide you with the information to file a claim: adam@harrispartners.ca

GlassRatner
glassratner.com

Emily Klein, CIRP, LIT
Director

Email: eklein@glassratner.com **NEW!**
Mobile: [redacted]

150 York Street, Suite 1600
Toronto, ON, Canada, M5H 3S5



From: [redacted]
Sent: Wednesday, September 3, 2025 8:19 PM
To: info@pluribustechnologies.com
Subject: Refund request: Alexander Aders

[EXTERNAL]
Dear Pluribus Technologies,

I would like to request a refund for my purchase of the 150-hour TEFL course through the University of Toronto. I believe that my circumstances were exceptional because I was recovering from the injures related to a serious car accident on 10/05/2024. I was in a head-on collision on I-4 (a major highway in Orlando, Florida) at 65 miles per hour due to no fault of my own. As a result, I have a herniated disk, TBI (Traumatic Brain Injury), PTSD, and nerve damage. I was making slow progress during the course and had the impression that there was a full year to complete the course. I was not aware that the partnership with Teach Away would end a few months after the date of my purchase. Thus, I am not eligible to complete the legacy course. Would it be possible to receive a refund for this purchase?

Thank you,
Alex Aders

Outlook

RE: Refund request: Alexander Aders

From Adam Fisher <adam@harrispartners.ca>
Date Thu 9/11/2025 4:40 PM
To 'alex aders' <[redacted]>

1 attachment (4 MB)
Statement of Affairs (Creditors).pdf;

Hi Alex,

I am so sorry for your situation. The company is bankrupt and there is no money for the creditors or any refunds.

Regards,

Adam

From: alex aders <[redacted]>
Sent: September 8, 2025 12:20 AM
To: Adam Fisher <adam@harrispartners.ca>
Subject: Refund request: Alexander Aders

Dear Pluribus Technologies,

I would like to request a refund for my purchase of the 150-hour TEFL course through the University of Toronto. I believe that my circumstances were exceptional because I was recovering from the injures related to a serious car accident on 10/05/2024. I was in a head-on collision on I-4 (a major highway in Orlando, Florida) at 65 miles per hour due to no fault of my own. As a result, I have a herniated disk, TBI (Traumatic Brain Injury), PTSD, and nerve damage. I was making slow progress during the course and had the impression that there was a full year to complete the course. I was not aware that the partnership with Teach Away would end a few months after the date of my purchase. Thus, I am not eligible to complete the legacy course. Would it be possible to receive a refund for this purchase?

Thank you,
Alex Aders

Licensed Insolvency Trustee
8920 Woodbine Ave., Suite 104
Markham, Ontario, L3R 9W9
poc@harrispartners.ca / fax: 905.479.2346

District of: Ontario
Division No: 9
Court No: 31-3245905
Estate No: 31-3245905

FORM 68

Notice of Bankruptcy, First Meeting of Creditors

(Subsection 102(1) of the Act)

In the matter of the Bankruptcy of 1000128977 ONTARIO INC. FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP. A COMPANY DULY INCORPORATED UNDER THE LAWS OF THE PROVINCE OF ONTARIO HAVING ITS HEAD OFFICE IN THE CITY OF TORONTO AND PROVINCE OF ONTARIO

☑ Original ☐ Amended

Take notice that:

1. 1000128977 ONTARIO INC. FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP. filed an assignment on the 10th day of July, 2025, and the undersigned, Harris & Partners Inc., was appointed as trustee of the estate of the bankrupt by the official receiver, subject to affirmation by the creditors of the trustee's appointment or substitution of another trustee by the creditors.
2. The first meeting of creditors of the bankrupt will be held on 28th day of July, 2025, at 11:30 at Join Zoom Meeting
   https://us02web.zoom.us/j/5488272273?pwd=VjhFQUZ6WFdBTGk1a2Q2bmc0VHYydz09
   Meeting ID: 548 827 2273
   Passcode: 203572

   One tap mobile
   +15074734847,,5488272273#,,,,*203572# US
   +15642172000,,5488272273#,,,,*203572# US

   Dial by your location
   • +1 507 473 4847 US
   • +1 564 217 2000 US
   • +1 646 931 3860 US
   • +1 669 444 9171 US
   • +1 669 900 68.
3. To be entitled to vote at the meeting, a creditor must file with the trustee, before the meeting, a proof of claim and, where necessary, a proxy.
4. Enclosed with this notice are a proof of claim form, proxy form and list of creditors with claims amounting to $25 or more showing the amounts of their claims.
5. Creditors must prove their claims against the estate of the bankrupt to share in any distribution of the proceeds realized from the estate.

Dated at Markham, Ontario, this 11th day of July, 2025.



Harris & Partners Inc.
Licensed Insolvency Trustee

Industry Canada | Industrie Canada
Office of the Superintendent of Bankruptcy Canada | Bureau du surintendant des faillites Canada

District of: Ontario
Division No.: 09 - Toronto
Court No.: 31-3245905
Estate No.: 31-3245905

In the Matter of the Bankruptcy of:

1000128977 ONTARIO INC.

Debtor

HARRIS & PARTNERS INC

Licensed Insolvency Trustee

Ordinary Administration

Date and time of bankruptcy:	July 10, 2025, 15:39	Security:	$0.00
Date of trustee appointment:	July 10, 2025		
Meeting of creditors:	July 28, 2025, 11:30 https://us02web.zoom.us/j/5488272273?pwd=VjhFQUZ6WFdBTGk1a2Q2bmc0VHYydz0, Meeting ID: 548 827 2273 , Ontario Canada,		
Chair:	Trustee		

CERTIFICATE OF APPOINTMENT - Section 49 of the Act; Rule 85

I, the undersigned, official receiver in and for this bankruptcy district, do hereby certify that:

- the aforenamed debtor filed an assignment under section 49 of the *Bankruptcy and Insolvency Act*;
- the aforenamed trustee was duly appointed trustee of the estate of the debtor.

The said trustee is required:

- to provide to me, without delay, security in the aforementioned amount;
- to send to all creditors, within five days after the date of the trustee's appointment, a notice of the bankruptcy; and
- when applicable, to call in the prescribed manner a first meeting of creditors, to be held at the aforementioned time and place or at any other time and place that may be later requested by the official receiver.

Date: July 10, 2025, 15:47

E-File/Dépôt Electronique

Official Receiver
151 Yonge Street, 4th Floor, Toronto, Ontario, Canada, M5C2W7, (877)376-9902

Canada

District of: Ontario
Division No: 9
Court No:
Estate No:

Form 78

Statement of Affairs (Corporate Bankruptcy)

(Subsection 49(2) and paragraph 158(d) of the Act)

In the matter of the Bankruptcy of 1000128977 ONTARIO INC. (FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP.)
A COMPANY DULY INCORPORATED UNDER THE LAWS OF THE PROVINCE OF ONTARIO HAVING ITS HEAD OFFICE IN THE CITY OF TORONTO AND PROVINCE OF ONTARIO

☑ **Original** ☐ **Amended**

To the bankrupt:

You are required to carefully and accurately complete this form and the applicable attachments showing the state of your affairs on the date of your bankruptcy on the 7th day of July, 2025. When completed, this form and the applicable attachments will constitute your Statement of Affairs and must be verified by oath or solemn declaration by a duly authorized director, if the bankrupt is a corporation, or by yourself, in other cases.

Give reasons for the bankrupt's financial difficulty:

Economic Downturn (Economic Downturn)

Assets (totals from the list of assets as stated and estimated by bankrupt/debtor)			
1.	Cash on hand		$0.00
2.	Deposits in financial institutions		$0.00
3.	Accounts receivable and other receivables		
	Total amount	$195,000.00	
	Estimated realizable value	$0.00	$0.00
4.	Inventory		$0.00
5.	Trade fixtures, etc.		$0.00
6.	Livestock		$0.00
7.	Machinery and equipment		$0.00
8.	Real property or immovables		$0.00
9.	Furniture		$0.00
10.	Intangible assets (intellectual properties, licences, cryptocurrencies, digital tokens, etc.)		$0.00
11.	Vehicles		$0.00
12.	Securities (shares, bonds, debentures, etc.)		$0.00
13.	Other property		$0.00
Total of lines 1 to 13			**$0.00**
If Bankrupt is a corporation, add:			
	Amount of subscribed capital		
	Amount paid on capital		
	Balance subscribed and unpaid		
	Estimated to produce	$0.00	$0.00
Total Assets			**$0.00**
Deficiency			**$-10,763,998.59**

Liabilities (totals from the list of liabilities as stated and estimated by bankrupt/debtor)		
1.	Secured creditors	$9,034,000.00
2.	Preferred creditors, securities, and priorities	$0.00
3.	Unsecured creditors	$1,729,998.59
4.	Contingent, trust claims or other liabilities estimated to be provable for	$0.00
Total liabilities		**$10,763,998.59**
Surplus		**$10,763,998.59**

I, **1000128977 ONTARIO INC. (FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP.)** of the city of Toronto in the Province of Ontario, do swear (or solemnly declare) that this statement and the attached lists are, to the best of knowledge, a full, true and complete statement of the affairs of the bankrupt corporation on the 7th day of July, 2025 and fully disclose all property of every description that is in the possession of the bankrupt corporation or that may devolve on the bankrupt corporation in accordance with the Act.

SWORN (or SOLEMNLY DECLARED) remotely by 1000128977 ONTARIO INC. (FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP.) stated as being located in at Toronto the city, in the Province of Ontario, before me at Toronto the city, in the Province of Ontario, on this 7th day of July, 2025 in accordance with provincial Regulation on Administering Oath or Declaration Remotely

Sara Corcoran

Sara Corcoran,
Commissioner of Oaths
for the Province of Ontario

Signature of the affiant
for the bankrupt/debtor
corporation

SARA ELIZABETH CORCORAN, A Commissioner, etc., Province of Ontario, for B. Riley Farber Inc. Expires: April 17, 2026.

Form 78 – Continued

List of Assets

No.	Nature of asset[1]	Address/Location	Asset located outside Canada	Details	Percentage of bankrupt's interest	Total value of the bankrupt's interest	Estimated realizable value	Equity or surplus	Placeholder (values on this line are for notification only)
3	Accounts receivable and other receivables	Canada	☐	HST Refund	100	$195,000.00	$0.00	$0.00	☑
					Total:	**$0.00**	**$0.00**		

[1] Choose one option for each item: Cash on hand; Deposits in financial institutions; Accounts receivable and other receivables; Inventory; Trade fixtures, etc.; Livestock; Machinery and equipment; Residential rental property; Commercial building; Industrial building; Land; Immovable industrial equipment; Other real property; Furniture; Intangible assets (intellectual properties, licences, cryptocurrencies, digital tokens, etc.); Vehicles; Securities (shares, bonds, debentures, etc.); Bills of exchange, promissory note, etc.; Tax refunds; Other personal property.

Bankrupt

7th day of July, 2025
Date

Form 78 – Continued

List of Liabilities

No.	Name of creditor or claimant / Address	Nature of liability[2] / Details	Date given/ incurred	Amount of claim					Asset securing the liability	Ground for the right to a priority[3]	Estimated surplus or (deficit) from security	Placeholder (values on this line are for notification only)
				Unsecured	Secured	Preferred / Priorities	Contingent, trust claims or Other liabilities	Total amount of claim				
2	Dorsey & Whitney LLP 701 5th ave, Suite 1600, Seattle, Washington, USA, 98104-	Accounts payable	2025-05	$2,478.99				$2,478.99			$0.00	☐
3	McCarthy Pacific Consulting Group 1438 Richards St, Vancouver, British Columbia, Canada, V6Z 3B8	Accounts payable	2025-05	$6,195.34				$6,195.34			$0.00	☐
5	Miller Thomson LLP 40 King Street West, Suite 5800, Toronto, Ontario, Canada, M5H 3S1	Accounts payable	2025-05	$207,615.24				$207,615.24			$0.00	☐
6	OurProjectcts LLC 430 Ridge Lane, Alpine, Utah, USA	Accounts payable	2025-05	$16,748.58				$16,748.58			$0.00	☐
9	CNW Group Ltd. 3000-88 Queens Quay W, Toronto, Ontario, Canada, M5J 0B8	Accounts payable	2025-05	$7,762.23				$7,762.23			$0.00	☐
10	Concur Technologies Inc. 601 108 ave NE, Suite 1000, Bellevue, Washington, USA	Accounts payable	2025-05	$7,301.00				$7,301.00			$0.00	☐

Bankrupt

7th day of July, 2025
Date

Form 78 – Continued

List of Liabilities

No.	Name of creditor or claimant / Address	Nature of liability[2] / Details	Date given/ incurred	Amount of claim					Asset securing the liability	Ground for the right to a priority[3]	Estimated surplus or (deficit) from security	Placeholder (values on this line are for notification only)
				Unsecured	Secured	Preferred / Priorities	Contingent, trust claims or Other liabilities	Total amount of claim				
11	Crown Property Management Inc. 123 Edward St, Toronto, Ontario, Canada, M5G 1E2	Accounts payable	2025-05	$13,166.96				$13,166.96			$0.00	☐
12	CT Corporation PO Box 4349, Carol Stm, Illinois, USA, 60197-	Accounts payable	2025-05	$1,036.35				$1,036.35			$0.00	☐
14	International Deal Blockchain inc. 1610- 777 Dunsmuir Street, Vancouver, British Columbia, Canada, V7Y 1K4	Accounts payable	2025-05	$15,357.38				$15,357.38			$0.00	☐
15	Jolera Inc. 365 Bloor St E, Toronto, Ontario, Canada, M4W 3L4	Accounts payable	2025-05	$1,493.31				$1,493.31			$0.00	☐
18	Synap Technologies Ltd. 3 Manyhorses Pk, Redwood Meadows, Alberta, Canada, T3Z 1A2	Accounts payable	2025-05	$9,416.67				$9,416.67			$0.00	■
20	Ernst & Young LLP 100 Adelaide St W, Toronto, Ontario, Canada, M5H 1S3	Accounts payable	2025-05	$527,209.04				$527,209.04			$0.00	☐

Bankrupt

7th day of July, 2025
Date

Form 78 – Continued

List of Liabilities

No.	Name of creditor or claimant / Address	Nature of liability[2] / Details	Date given/ Incurred	Amount of claim					Asset securing the liability	Ground for the right to a priority[3]	Estimated surplus or (deficit) from security	Placeholder (values on this line are for notification only)
				Unsecured	Secured	Preferred / Priorities	Contingent, trust claims or Other liabilities	Total amount of claim				
21	2338701 Ontario Inc. 59 Rockridge Dr, Whistler, British Columbia, Canada, V8E 0A7	Accounts payable	2025-05	$8,750.00				$8,750.00			$0.00	☐
22	Insightsoftware, LLC 8529 SIX FORKS ROAD, Suite 300, Raleigh, North Carolina, USA, 27615-	Accounts payable	2025-05	$7,520.58				$7,520.58			$0.00	☐
23	National Bank of Canada 600 Rue De La Gauchetiere Ouest,West Bureau Office, 1665-8, Montreal, Quebec, Canada, H3B 5B4	Bank loans (except real property mortgage)	2025-05		$9,034,000.00			$9,034,000.00	3		$8,839,000.00	☐
24	various employees Canada	Severance pay	2025-05	$415,394.39				$415,394.39			$0.00	☐
25	CDW Canada 1 Toronto Street,3rd Floor, Toronto, Ontario, Canada, M5C 2V6	Accounts payable	2025-05	$4,238.10				$4,238.10			$0.00	☐
26	Q4 Inc. 469-A King St. W., Toronto, Ontario,, Canada, M5V 1K4	Accounts payable	2025-05	$4,508.45				$4,508.45			$0.00	☐

Bankrupt

7th day of July, 2025
Date

Form 78 – Continued

List of Liabilities

No.	Name of creditor or claimant / Address	Nature of liability[2] / Details	Date given/ incurred	Amount of claim					Asset securing the liability	Ground for the right to a priority[3]	Estimated surplus or (deficit) from security	Placeholder (values on this line are for notification only)
				Unsecured	Secured	Preferred / Priorities	Contingent, trust claims or Other liabilities	Total amount of claim				
27	Firmex Inc. 110 SPADINA AVENUE SUITE 700, Toronto, Ontario, Canada, M5V 1K4	Accounts payable	2025-05	$1,837.10				$1,837.10			$0.00	☐
28	TSX Trust Company 100 Adelaide St W, Suite 301, Toronto, Ontario, Canada, M5H 4H1	Accounts payable	2025-05	$2,373.14				$2,373.14			$0.00	☐
29	Computershare Governance Services Limited 100 University Ave, 11th Floor, South Tower, TORONTO, Ontario, Canada, M4J 2Y1	Accounts payable	2025-05	$2,689.40				$2,689.40			$0.00	☐
30	Brian Hill 6 Kilham Lane, Winchester, GB, Great Britain, S0225PS	Accounts payable	2025-05	$26,097.88				$26,097.88			$0.00	☐
31	Shoosmith LLP The Lakes, Bedford Road, Northampton, GB, Great Britain, NN47SH	Accounts payable	2025-05	$686.58				$686.58			$0.00	☐

Bankrupt

7th day of July, 2025
Date

Form 78 – Continued

List of Liabilities

No.	Name of creditor or claimant / Address	Nature of liability[2] / Details	Date given/ incurred	Amount of claim					Asset securing the liability	Ground for the right to a priority[1]	Estimated surplus or (deficit) from security	Placeholder (values on this line are for notification only)
				Unsecured	Secured	Preferred / Priorities	Contingent, trust claims or Other liabilities	Total amount of claim				
32	KAM Consulting Services Inc. 3314 Merion Gardens, Oakville, Ontario, Canada, L6M 5K9	Accounts payable	2025-05	$144,158.75				$144,158.75			$0.00	☐
33	RSM Canada Consulting LP 700-11 King St W, Toronto, Ontario, Canada, M5H 4C7	Accounts payable	2025-05	$23,729.99				$23,729.99			$0.00	☐
34	Ray Zwiefelhofer 8054 s Stephanie lane, Tempe, Arizona, USA, 85284-	Accounts payable	2025-05	$22,631.27				$22,631.27			$0.00	☐
35	Richard Christiansen 617 N Seven Peaks Blvd, #16, Provo, Utah, USA, 84606-	Accounts payable	2025-05	$11,718.25				$11,718.25			$0.00	☐
36	Tipalti, Inc. 1051 E. Hillsdale Blvd, Foster City, California, USA, 94404-	Accounts payable	2025-06	$12,015.00				$12,015.00			$0.00	☐
37	HI BOB CANADA INC. Suite 6000, 1 First Canadian Place,100 King street West, Toronto, Ontario, Canada, M5X 1E3	Accounts payable	2025-06	$7,174.00				$7,174.00			$0.00	☐

Bankrupt

7th day of July, 2025
Date

Form 78 – Continued

List of Liabilities

No.	Name of creditor or claimant / Address	Nature of liability[2] / Details	Date given/ incurred	Amount of claim					Asset securing the liability	Ground for the right to a priority[3]	Estimated surplus or (deficit) from security	Placeholder (values on this line are for notification only)
				Unsecured	Secured	Preferred / Priorities	Contingent, trust claims or Other liabilities	Total amount of claim				
38	William Kostenko 3 St. Johns Road, Brampton, Ontario, Canada, L6P 0C5	Other claim or liability Special Commitee Fees Special Commitee Fees	2025-07	$78,561.29				$78,561.29			$0.00	☐
39	Warner Sulz 141 Perry Crescent, Toronto, Ontario, Canada, M9A 1K8	Other claim or liability Special Commitee Fees Special Commitee Fees	2025-07	$65,900.00				$65,900.00			$0.00	☐
40	James Dunbar Canada	Other claim or liability Special Fees Commitee Special Fees Commitee	2025-07	$65,900.00				$65,900.00			$0.00	☐
41	2338701 Ontario Inc.(David Frey) 59 Rockridge Dr., Whistler, British Columbia, Canada, V8E 0A7	Accounts payable Accrued Consulting Accrued Consulting	2025-07	$8,333.33				$8,333.33			$0.00	■
			Total:	$1,729,998.59	$9,034,000.00	$0.00	$0.00	$10,763,998.59				

[2] Choose one option for each item: Accounts payable; Owed rent; Owed wages; Severance pay; Corporate taxes; Sales taxes; Employee source deductions; Litigation/legal costs and awards; Subordinated debenture; Bills of exchange; Promissory notes; Lien notes; Mortgages or hypothec on real or immovable property; Chattel mortgages or movable hypothec; General Security Agreement; Intercompany loans; Bank loans (except real property mortgage); Finance company loans; Shareholder loans; Shares and subscribed capital; Other claim or liability.

[3] Choose one option for each item with a preferred or priority amount: Unpaid supplier; Farmer, fisherman or aquaculturist; Owed wages; Unpaid amount regarding pension plan; Municipal taxes; Rent; Customer of a bankrupt securities firm; Deemed trust in favour of the Crown; Priming charges and interim financing; Environmental liabilities; Other.

Bankrupt

7th day of July, 2025
Date

NOTE: If a copy of this Form is sent electronically by means such as email, the name and contact information of the sender, prescribed in Form 1.1, must be added at the end of the document

Harris & Partners
Licensed Insolvency Trustee
8920 Woodbine Ave., Suite 104
Markham, Ontario, L3R 9W9
poc@harrispartners.ca / fax: 905.479.2346

Form 31
Proof of Claim

(Sections 50.1, 81.5, 81.6, subsections 65.2(4), 81.2(1), 81.3(8), 81.4(8), 102(2), 124(2), 128(1), and paragraphs 51(1)(e) and 66.14(b) of the Act)

The creditor's preference is to receive all notices and correspondence regarding this claim at the following address and/or facsimile number and/or email address (a mailing address must be provided in all cases):

Address: _____
Facsimile: _____
Email: _____
Contact person name or position: _____
Telephone number for contact person: _____

In the matter of the bankruptcy (or the proposal or the receivership) of 1000128977 ONTARIO INC. FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP. 31-3245905 of , and the claim of _____, creditor.

I, _____ (name of creditor or representative of the creditor), of _____ (city and province), do hereby certify:

1. That I am a creditor of the above-named debtor (or that I am _____ (state position or title) of _____ (name of creditor or representative of the creditor) and that I am authorized to represent and (if the creditor is a corporation) that I have authority to bind the creditor of the above-named debtor).

2. That I have knowledge of all of the circumstances connected with the claim referred to below.

3. That the debtor was, at the date of bankruptcy (or the date of the receivership or, in the case of a proposal, the date of the notice of intention or of the proposal, if no notice of intention was filed), namely the 10th day of July, 2025, and still is, indebted to the creditor in the sum of $_____, as specified in the statement of account (or affidavit) attached and marked Schedule "A", after deducting any counterclaims to which the debtor is entitled. Any debt payable in a currency other than Canadian currency was converted to Canadian currency as of the date of bankruptcy (or the date of the receivership or, in the case of a proposal, the date of the notice of intention or of the proposal, if no notice of intention was filed).
(The attached statement of account or affidavit must specify the supporting documents or other evidence in support of the claim)

4. That, to the best of my knowledge, this debt has never been (or this debt has been or part of this debt has been) statute-barred as determined under the relevant legislation.

5. That payment for this debt by the debtor to the creditor has been due (or has been in default) since the _____ day of _____ _____, and that the last payment, if any, on this debt by the debtor to the creditor was made on the _____ day of _____ _____, and/or that the last acknowledgement, if any, of liability for this debt by the debtor to the creditor was made on the _____ day of _____ _____, as follows:
(Give full particulars of the claim, including its history, any acknowledgement or legal action)

6. *(Check and complete appropriate category)*

☐ **A. Unsecured claim of $ _____**

(Other than as a customer contemplated by section 262 of the Act)

That in respect of this debt, I do not hold any assets of the debtor as security and:
(Check appropriate description)

☐ Regarding the amount of $ _____, I do not claim a right to a priority.

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(d) of the Act (Complete paragraph 6E below.)

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(d.01) of the Act.

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(d.02) of the Act

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(d.1) of the Act.

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(e) of the Act.

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(f) of the Act.

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(g) of the Act.

☐ Regarding the amount of $ _____, I claim a right to a priority under paragraph 136(1)(i) of the Act.

(Set out on an attached sheet details to support priority claim)

☐ **B. Claim of Lessor for disclaimer of a lease of $ _____**

That I make a claim under subsection 65.2(4) of the Act, the particulars of which are as follows:
(Give full particulars of the claim, including the calculations upon which the claim is based)

☐ **C. Secured claim of $ _____**

That in respect of this debt, I hold assets of the debtor valued at $ _____ as security, the particulars of which are as follows:
(Give full particulars of the security, including the date on which the security was given and the value at which you assess the security, and attach a copy of the security documents)

A trustee may, pursuant to subsection 128(3) of the Act, redeem a security on payment to the secured creditor of the debt or the value of the security as assessed, in the proof of security, by the secured creditor.

☐ **D. Claim by Farmer, Fisherman or Aquaculturist of $ _____**

That I make a claim under subsection 81.2(1) of the Act for the unpaid amount of $ _____
(Attach a copy of sales agreement and delivery receipts)

☐ **E. Claim by Wage Earner of $ _____**

☐ That I make a claim under subsection 81.3(8) of the Act in the amount of $ _____

☐ That I make a claim under subsection 81.4(8) of the Act in the amount of $ _____

☐ **F. Claim by Pension Plan for unpaid amount of $ _____**

☐ That I make a claim under section 81.5 of the Act in the amount of $ _____

☐ That I make a claim under section 81.6 of the Act in the amount of $ _____

☐ **G. Claim against Director of $ _____**

(To be completed when a proposal provides for the compromise of claims against directors)
That I make a claim under subsection 50(13) of the Act, the particulars of which are as follows:
(Give full particulars of the claim, including the calculations upon which the claim is based)

☐ **H. Claim of a Customer of a Bankrupt Securities Firm of $ _____**

That I make a claim as a customer for net equity as contemplated by section 262 of the Act, the particulars of which are as follows:
(Give full particulars of the claim, including the calculations upon which the claim is based)

7. That, to the best of my knowledge, I am (or the above-named creditor is) (or am not or is not) related to the debtor within the meaning of section 4 of the Act, and have (or has) (or have not or has not) dealt with the debtor in a non-arm's-length manner.

8. That the following are the payments that I have received from the debtor, the credits that I have allowed to the debtor, and the transfers at undervalue within the meaning of section 2 of the Act that I have been privy to or a party to with the debtor within the three months (or, if the creditor and the debtor are related within the meaning of section 4 of the Act or were not dealing with each other at arm's length, within the 12 months) immediately before the date of the initial bankruptcy event within the meaning of section 2 of the Act:
(Provide details of payments, credits and transfers at undervalue)

9. (Applicable only in the case of the bankruptcy of an individual)

☐ Whenever the trustee reviews the financial situation of a bankrupt to redetermine whether or not the bankrupt is required to make payments under section 68 of the Act, I request to be informed, pursuant to subsection 68(4) of the Act, of the new fixed amount or of the fact that there is no longer surplus income.

☐ I request that a copy of the report filed by the trustee regarding the bankrupt's application for discharge pursuant to subsection 170(1) of the Act be sent to the above address.

Warning: Subsection 201(1) of the Act provides for the imposition of severe penalties in the event that a creditor or person claiming to be a creditor makes any false claim, proof, declaration or statement of account.

Dated at _____, this _____ day of _____.

_____
Signature of creditor or representative

NOTE: If an affidavit is attached, it must have been made before a person qualified to take affidavits.

PROXY

Subsection 102(2) and paragraphs 51(1)(e) and 66.15(3)(b) of the Act)

IN THE MATTER OF THE BANKRUPTCY / PROPOSAL / RECEIVERSHIP of 1000128977 ONTARIO INC. FORMERLY KNOWN AS PLURIBUS TECHNOLOGIES CORP. (Debtor)

I, _____(Name of Creditor), of _____(City), in _____(Province) a creditor in the above matter, hereby appoint _____ (Name of Proxy) of _____ , to be my proxyholder in the above matter except as to the receipt of dividends with / without power to appoint another proxyholder in his / her place

Dated at _____(City), in the Province of _____ , this _____(day) of _____(Month) , _____(Year)

_____
Individual Creditor

_____
Witness

_____
Name of Corporate Creditor

_____
Witness

Per_____
Name and Title of Signing Officer

General Proxy Information

The Bankruptcy and Insolvency Act permits a Proof of Claim to be made by a duly authorized agent of a creditor; however, this does not give such a person power to vote at the First Meeting of Creditors or to act as the proxy of the creditors.

GENERAL

- A creditor may vote either in person or by proxy.
- The Trustee may be appointed as a proxy for any creditor.
- A Corporation may vote by an authorized agent at a meeting of creditors.
- Debtors may not be appointed a proxy to vote at any meeting of their creditors.
- In order for a duly authorized person to have a right to vote, they must be a creditor themselves or be the holder of a properly executed proxy, showing the name of the creditor.

Directions to Completing a Proof of Claim Form

The checklist below is provided to assist in the preparation of a Proof of Claim (Form31) and if required a Proxy (form36). Every creditor who does not prove his claim is not entitled to share in any distribution. Claims not completed correctly in every respect will be returned.

GENERAL

- The signature of a witness is required.
- This document must be signed personally by the person completing the Proof of Claim.
- Give the complete address, including postal code, where any notice or correspondence is to be forwarded.
- The amount on the Statement of Account must correspond with the amount indicated on the Proof of Claim.

PARAGRAPH I

- The creditor must state the full and complete legal name of the company or firm.
- If the individual completing the Proof of Claim is not the creditor himself, he must state his position or title.

PARAGRAPH III

- The Schedule A or Statement of Account must be complete and detailed, showing the date, number and amount of all invoices or charges, together with the date, number and amount of all creditors or payments. A Statement of Account is not complete if it begins with an amount brought forward.

PARAGRAPH IV

- An unsecured creditors must specify if they do or do not have a right to a priority. A schedule must be attached to support the priority claim. Details of Section 136 are available from the trustee upon request
- Secured creditors must attach a certified copy of the security documents to the proof of claim for each claim
- For claims arising from a realization of lease the creditor must provide full details of the claim including the relating calculations
- A claim by a farmer, fisherman or aquaculturist must attach a copy of the sales agreement and delivery documents.

PARAGRAPH V

- All claimants must indicate if they are / are not related to the debtor, as defined in Section 4 of the Bankruptcy and Insolvency Act, “If you are related by blood or marriage to the bankrupt, then you should consider yourself to be a related person pursuant to Section 4. If the bankrupt is a corporation, you would be considered to be related to it if you were a shareholder or if your company was controlled by the same shareholders as the bankrupt corporation.”

PARAGRAPH VI

- All claimants must attach a detailed list of all payments or credits received or granted as follows:
- Within the three months preceding the bankruptcy / proposal, in the case where the claimant and debtor are not related;
- Within the twelve months preceding the bankruptcy / proposal, in the case where the claimant and debtor are related.

Pluribus Technologies Corp. Begins Restructuring and Sales Process

NEWS PROVIDED BY
Pluribus Technologies Inc. →
Jan 23, 2025, 13:48 ET

TORONTO, Jan. 23, 2025 /CNW/ - Pluribus Technologies Corp. (TSXV: **PLRB**) ("Pluribus" or the "Company") announces that B. Riley Farber Inc., in its capacity as Court-appointed monitor (the "Monitor") of Pluribus and its subsidiaries (collectively, the "Pluribus Group" or the "Companies"), is undertaking a court-supervised sale and investment solicitation process ("SISP") to identify potential buyers or investors for all or part of the Pluribus Group's assets and business operations.

The Pluribus Group includes Pluribus Technologies Corp., and numerous other subsidiaries in the eLearning and Education Technology (EdTech) and eCommerce sectors. Among its notable assets is The Learning Network (TLN), which comprises six businesses offering integrated online learning software and digital training services to over 350 customers. It also includes Kesson Group, which provides a teacher recruitment and jobs platform, an online tutoring platform and alternative teacher certification programs, under the brands Teach Away, Skooli, and Klassroom. Additionally, Social5, a social media marketing agency leveraging proprietary technology and top-tier talent to deliver affordable marketing solutions for small businesses, is part of the portfolio.

B. Riley Farber, with the assistance of the Companies, is soliciting interest in a potential sale or investment. Interested parties must submit binding offers, including fully executed purchase and sale agreements, no later than February 18, 2025, at 4:00 PM EST. Detailed information about the SISP, including access to

relevant documentation, can be obtained via the Monitor's website at **https://brileyfarber.com/engagements/pluribus-technologies-corp** or by contacting the Monitor at **pluribus@brileyfin.com**.

About Pluribus Technologies Corp.

Pluribus is a technology company that is a value-based acquirer, operator, and divestor of small, profitable business-to-business technology companies in a range of verticals and industries. Pluribus provides its acquisitions access to experienced sales and marketing resources, strategic partnership opportunities, a diverse portfolio of customers in different geographical markets, and enabling technologies to create new revenue streams and drive growth. When market conditions are conducive to raising capital at reasonable costs, Pluribus focuses on rapidly acquiring and integrating new companies to accelerate growth. In less favorable environments, Pluribus implements strategies to maximize organic growth, increase cash flow, and selectively divest portfolio companies to optimize value. For more information, please visit: pluribustechnologies.com.

Forward-Looking Information

This news release contains "forward-looking information" within the meaning of applicable securities laws. Any such forward-looking statements may be identified by words such as "will", "expects", "anticipates", "intends", "contemplates", "believes", "projects", "plans" and similar expressions. Readers are cautioned not to place undue reliance on forward-looking statements. Forward-looking statements in this release include statements regarding: the court-supervised sale and investment solicitation process and the Pluribus Group's assets and business operations. Forward-looking statements are necessarily based on a number of estimates and assumptions that, while considered reasonable, are subject to known and unknown risks, uncertainties and other factors which may cause actual results and future events to differ materially from those expressed or implied by such forward-looking statements. Such factors include, but are not limited to: litigation, legislative, environmental and other judicial, regulatory, political and competitive developments; delay or failure to receive creditor or regulatory approvals; the ability to complete any future potential transactions in connection with the SISP in CCAA proceedings and the terms and conditions thereof; the availability of DIP Financing; the application of federal, provincial and municipal laws; the impact of increasing competition; those additional risks set out in the Company's public documents filed on SEDAR+ at **www.sedarplus.com**. Although the Company believes that the assumptions and factors used in preparing the forward-looking statements are reasonable, undue reliance should not be placed on these

statements, which only apply as of the date of this news release, and no assurance can be given that such events will occur in the disclosed time frames or at all. Except where required by law, the Company disclaims any intention or obligation to update or revise any forward-looking statement, whether as a result of new information, future events, or otherwise.

Neither the TSXV nor its Regulation Services Provider (as that term is defined in the policies of the TSXV) accepts responsibility for the adequacy or accuracy of this press release.

For further information about Pluribus Group and the CCAA proceedings, please contact the Monitor: B. Riley Farber Inc., 150 York Street, Suite 1600, Toronto, Ontario M5H 3S5, Phone: (437) 294-4600, Email: **pluribus@brileyfin.com or** Diane Pedreira, President and Chief Operating Officer, Phone: 1(800) 851-9383.

SOURCE Pluribus Technologies Inc.

Outlook

Re: Refund request: Alexander Aders

From Teach Away <info@teachaway.com>
Date Mon 9/8/2025 9:57 AM
To Alexander Aders <[redacted]>

Hi Alexander,

Thanks for reaching out. We're sorry to hear about the disruption to your course access.

The OISE Continuing and Professional Learning (CPL) at the University of Toronto now solely owns and operates the OISE TEFL course. We understand how important your TEFL certification is, and we want to help you continue progressing toward your goals.

Explaining the Changes to Your Course:
Earlier this year, Teach Away's former parent company underwent a court-supervised restructuring process. As part of that process, the Ontario Institute for Studies in Education (OISE) made the decision to take full ownership and management of the OISE TEFL program. As a result, the course is now solely operated by OISE Continuing and Professional Learning at the University of Toronto. Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress. OISE has not provided us with any further information, and we do not have the ability to intervene in their internal processes.

Clarifying Your Refund Eligibility:
Earlier this year, Teach Away's former parent company entered court-supervised restructuring under Canada's Companies' Creditors Arrangement Act (CCAA) where some of the assets were sold to a new company. During this legal process, all financial matters—including student payments—became part of the formal restructuring proceedings. Because the new organization (Teach Away) never received your course payment and does not have access to the course, we are unable to process a refund. We understand this is not the outcome you were expecting, and we're truly sorry for the frustration and disruption this situation has caused.

To support you through this transition, we've included a few next-step options below.

Option 1: Contact OISE for Course Support
To inquire about your existing OISE TEFL course, you need to contact OISE directly. Support is now managed by OISE Continuing and Professional Learning at the University of Toronto. They will be best positioned to assist with your request. You can contact them directly at the email addresses below:
oise.cpl@utoronto.ca

Option 2: Complimentary Access to Teach Away's TEFL Course
While we can't intervene in OISE's administration, as a gesture of goodwill, we'd like to offer you complimentary access to Teach Away's own 120-hour TEFL course so you can continue your learning without further delay. If you choose to enroll, we'll match your previous progress in the course so you can pick up where you left off.

Just let us know the course you're enrolled in and your progress so far in the course, and we'll get you set up right away.

We're sorry for the disruption to your learning experience. Despite our best efforts, the transition of the OISE TEFL program was entirely outside of our control. We understand this has been a frustrating experience. Please let us know if you would like complimentary access to the Teach Away 120-hour TEFL to continue your learning.

Sincerely,

The Teach Away Team

--
Prefer fewer emails from me? Click here

On Wed, Sep 3, 2025 at 7:57 PM, alex aders [redacted]m> wrote:

> Dear Teach Away,
>
> I would like to request a refund for my purchase of the 150-hour TEFL course through the University of Toronto. I believe that my circumstances were exceptional because I was recovering from the injures related to a serious car accident on 10/05/2024. I was in a head-on collision on I-4 (a major highway in Orlando, Florida) at 65 miles per hour due to no fault of my own. As a result, I have a herniated disk, TBI (Traumatic Brain Injury), PTSD, and nerve damage. I was making slow progress during the course and had the impression that there was a full year to complete the course. I was not aware that the partnership would end a few months after the date of my purchase. Thus, I am not eligible to complete the legacy course. Would it be possible to receive a refund for this purchase?
>
> Thank you,
> Alex Aders



CAFC Reporting System Receipt

Complaint Reference no. 2025-81555 submitted on 2025-09-16

Filer Information

First name	
Middle name	-
Last name	
Relationship with victim	-
Willing to be contacted	Yes
Preferred language	-
Daytime phone number and ext.	-
E-mail	-

Complaint Information

Fraud Type (sub-types)	Advance Fee (Merchandise (car, boat, electronics, etc.))
Date of occurrence	2025-01-28
Types of contact	Internet
Total money lost (type)	1,196.00 (USD - US Dollar)

Payment methods Debit card

Complaint summary

On January 28, 2025, I paid $1,196.00 USD to the University of Toronto for a 150-hour TEFL certification program with specializations in Business English and Test Preparation. I have the official receipt showing this transaction. Unbeknownst to me at the time, the University's contracted provider, Teach Away (owned by Pluribus Technologies Corp.), had already entered a court-supervised restructuring and sales process on January 23, 2025 — five days before my payment. The official press release from Pluribus confirms this. On June 6, 2025, the TEFL course was abruptly taken offline, leaving students without access to the program they had purchased. When I contacted the University of Toronto, I was told refunds were not possible because Pluribus/Teach Away was responsible. Their official FAQ instructed students to pursue refunds through the bankrupt provider. However, I directly contacted Teach Away. They confirmed in writing that the University of Toronto retained control of student funds post-bankruptcy, meaning the University's public statements were false. This suggests the University knowingly accepted payments under false pretenses and then attempted to deflect responsibility onto an insolvent third party. The University has since offered "alternatives," including: An accelerated "Legacy Program" with a forced completion deadline of October 31, 2025, far earlier than the standard one-year access advertised. A new, downgraded TEFL program (125 hours, no specializations, and no credit for progress

already made). Neither option matches the product I purchased. My requests for a full refund have been ignored. This situation appears to meet the criteria for fraudulent misrepresentation and consumer deception: The University accepted payment after its provider was insolvent. The University falsely told students that refunds must come from the bankrupt provider. Students were offered inferior alternatives instead of the contracted program or a refund. Supporting evidence attached: Payment receipt (Jan 28, 2025). Email from Teach Away confirming University control of funds. Press release (Jan 23, 2025) showing insolvency prior to payment. My request is for a full refund of $1,196.00 USD and for this matter to be investigated as possible consumer fraud affecting other international students as well. I can provide receipts, University communications, insolvency filings, and third-party confirmations upon request.

Files Uploaded

File 1 Description	Proof of payment of $1,196.00 to the University of Toronto on January 28, 2025 for a 150-hour TEFL program with specializations
File 1 Filename	150 hour class.pdf
File 2 Description	Correspondence from TeachAway confirming that the University of Toronto was in control of the program post-bankruptcy (January 23, 2025)
File 2 Filename	teachaway refund request.pdf

File 3 Description	Official press release announcing Pluribus Technologies Corp. had entered a court-supervised restructuring and sale process five days before the University of Toronto accepted payment for the TEFL course.
File 3 Filename	Pluribus Technologies Corp. Begins Restructuring and Sales Process.pdf

Suspect No. 1

Name	
Business name (type)	University of Toronto – OISE Continuing & Professional Learning (Education)
Languages	-
Age range	Unknown
Gender	Prefer not to say
Phone number and ext. (type) 1	416-978-8011 (Business)
Phone number and ext. (type) 2	416-978-2474 (Business)
Address 1	252 Bloor Street West Toronto, Ontario Canada M5S 1V6
E-mail 1	dean.oise@utoronto.ca
E-mail 2	oise.cpl@utoronto.ca
Website 1	https://www.oise.utoronto.ca/about/dean

Next steps you may take if applicable

If you or someone for whom you are filing was the victim of fraud, please contact your local police.

Additionally, there are a number of other agencies that may be able to assist. The following list is provided as a starting point: your financial institution, credit card company, insurance company, telephone company, provincial consumer protection agency, credit bureaus (Equifax Canada at http://www.consumer.equifax.ca/home/en_ca, TransUnion at http://www.transunion.ca/sites/ca/home_en), Canadian Radio-television and Telecommunications Commission at http://www.crtc.gc.ca/eng/home-accueil.htm, Canadian Cyber Incident Response Centre at http://www.publicsafety.gc.ca/cnt/ntnl-scrt/cbr-scrt/ccirc-ccric-eng.aspx and Service Canada at http://www.servicecanada.gc.ca/eng/sc/sin/index.shtml.

Contacts

- Canadian Anti-Fraud Centre (http://www.antifraudcentre-centreantifraude.ca)
- RCMP Scams page (http://www.rcmp-grc.gc.ca/scams-fraudes/index-eng.htm)
- Competition Bureau (http://www.competitionbureau.gc.ca/eic/site/cb-bc.nsf/eng/h_00122.html)
- OPP fraud prevention (https://www.opp.ca/index.php?id=115&lng=en&entryid=573e164b8f94ac69670ca89a)

[redacted] [redacted]

File no. CAS-118208-X0W3T CRM:0611495

1 message

Consumer (MPBSDP) <Consumer@ontario.ca> 21 octobre 2025 à 11:48
À : [redacted]

Thank you for contacting the Ministry of Public and Business Service Delivery and Procurement.

We confirm receipt of your inquiry and have reviewed the incoming communication. We will not take action at this time for the following reason(s):

- Your dispute is against a business that has closed and/or has filed for bankruptcy.

If you choose to pursue this matter in court, you may contact the Ministry of the Attorney General at 1-800-518-7901 or visit their website at http://www.attorneygeneral.jus.gov.on.ca/english/courts/index.php for more information about the process.

You may also wish to consult with a lawyer. If you do not have a lawyer, you may consider visiting the Law Society Referral Service online at findlegalhelp.ca to request a referral to a lawyer who is willing to provide a consultation. If you are unable to use the online service, you may obtain service by calling 416-947-5255 or 1-855-947-5255 (toll-free).

Your inquiry is best directed to the **Ministry of Education** at:

Ministry of Education
14th Floor, Mowat Block
900 Bay Street
Toronto, ON M7A 1L2

Telephone: 416-325-2929 | 1-800-387-5514 (toll-free)
TTY: 416-325-3408 | 1-800-268-7095 (toll-free)
Fax: 416-325-6348
Website: www.ontario.ca/edu

Thank you for bringing your concerns to our attention.

Ministry of Public and Business Service Delivery and Procurement
Consumer Services Operations Division
PO Box 450
Toronto, ON M7A 2J6

Telephone: 416-326-8800
Toll free: 1-800-889-9768
TTY: 416-229-6086
TTY toll free: 1-877-666-6545

Email: consumer@ontario.ca
Website: ontario.ca/consumer

Accessible formats and communication supports are available upon request.

From: complaint@internet.com <complaint@internet.com>
Sent: September 18, 2025 4:25 PM
To: Consumer (MPBSDP) <Consumer@ontario.ca>
Subject: e-Complaint

Complaint Form

Submitted On: 2025/09/18

Case file number:

1. Your Name and Mailing Address	
Last name	Aders
First name	Alexander
Middle name	John
Street 1	[redacted]
Street 2	
City/Town	Winter Garden
Province/State	Florida
Postal/ZIP Code	[redacted]
Country	United States

2. Your Contact Information	
Main phone	
ext	
Mobile phone	[redacted]
ext	
Email address	[redacted]

3. Contact Details of the Business. Please include at least one way we can contact the business.	
Business name	University of Toronto ﷺ OISE Continuing & Professional Learning
Last name	Walker
First name	Erica
Middle name	
Title	Professor
Street 1	252 Bloor Street West
Street 2	
City/Town	Toronto
Province/State	Ontario
Postal/ZIP Code	M5S 1V6
Country	Canada
Main number	4169788011
Other phone	4169782474
Fax	

Email address	dean.oise@utoronto.ca
Business website (e.g. www.ontario.ca)	https://www.oise.utoronto.ca/about/dean

4. Have you informed the business of your concerns?

Yes

If yes, did the business respond?

No

5. Date of agreement or transaction, if applicable (yyyy/mm/dd)

2025/01/28

6a. Total value of goods or services, contract, or agreement $

1196.00

6b. Amount in dispute $

1196.00

7. Method of payment

Debit card

8. How was the transaction carried out? (If relevant to your case)

Online transaction (e-Commerce)

9. What is your complaint about? (Max. 500 words) *

On January 28, 2025, I paid the University of Toronto $1,196.00 USD for a 150-hour TEFL certification with Business English and Test Preparation specializations. Unknown to me, the University's contracted provider (Teach Away/Pluribus Technologies Corp.) had entered court-supervised restructuring on January 23, 2025, five days before accepting my payment. The University failed to disclose this material fact.On June 6, 2025, the program was taken offline entirely, leaving students without access. The University then offered inadequate alternatives: an accelerated "Legacy Program" requiring completion by October 31, 2025 (unrealistic timeline), or a downgraded "New Program" with only 125 hours, no specializations, and all prior progress erased.When I requested a refund, the University's FAQ directed me to contact the bankrupt provider. However, Teach Away confirmed in writing that "OISE made the decision to take full ownership and management of the OISE TEFL program" and that student payments "became part of the formal restructuring proceedings", directly contradicting the University's public statements.On September 5, 2025, I issued a formal refund demand with a 10-business-day deadline. The Dean's office acknowledged receipt on September 8 but has remained completely silent through the September 18 deadline, despite documented evidence of institutional misrepresentation.I have filed complaint #2025-81555 with the Canadian Anti-Fraud Centre, as this

appears to constitute fraudulent misrepresentation affecting multiple students.Consumer Protection Violations:

Accepting payment for services the University knew it could not deliver Publishing misleading FAQ directing

students to seek refunds from parties known to be insolvent Offering inferior alternatives instead of honoring

contracts or providing refunds Institutional silence when confronted with documented evidenceRelief Sought:1.

Investigation of the University of Toronto's business practices regarding this failed program2. Requirement that the University issue refunds to affected students3. Correction of misleading public information on their website4. Determination whether accepting payments after January 23, 2025 violated consumer protection lawThe University of

Toronto trades on its reputation as Canada's top-ranked institution. Students including international students and

those with disabilities relied on this reputation when making payments. I respectfully request Consumer Protection

Ontario investigate whether the University's conduct constitutes unfair business practices under provincial consumer protection law.

9b. If your complaint is against a collection agency, credit reporting agency, payday lender or bailiff, include details of the dispute or issue that you have with this agency or individual. (Max. 500 words)

10. Have you taken legal action against the business?

No

11. What do you want the business or individual to do to resolve your complaint? (Max. 200 words)

I request that the University of Toronto:Issue a full refund of $1,196.00 USD for the TEFL program I purchased on January 28, 2025, as the University accepted payment for services it could not deliver after its provider entered bankruptcy proceedings.Correct misleading statements on its website FAQ, which continue to direct students to seek refunds from a bankrupt third party, despite written confirmation that OISE assumed control post-bankruptcy.Establish a refund process for all affected students who enrolled after January 23, 2025, when the University had constructive knowledge of its provider's insolvency but continued accepting payments.Disclose the full timeline of when the University learned of Teach Away's financial instability and explain why it continued marketing and enrolling students.Implement oversight procedures to ensure payments are not accepted for programs dependent on financially unstable third parties in the future.This resolution would not only provide restitution but also restore trust, protect international and vulnerable students, and align the University's continuing education practices with Ontario consumer protection standards.

12. Please attach supporting documents (These are needed to process your complaint)

150 hour class.pdf
FAQ.pdf
teachaway refund request.pdf
Dean email.pdf
Hanadi email.pdf
June 6 2025 correspondence.pdf
correspondence Taleb.pdf
Pluribus.pdf
Pluribus Acquisition.pdf
Pluribus Restructuring.pdf
bankruptcy trustee.pdf
Statement of Affairs.pdf
CAFC Fraud.pdf

How Did You Hear About Us?

Internet

Important Notice

Notice of Disclosure of Personal Information and Consent

Please note the complaint form and any attachments (excluding demographic information) may be shared with the business for the purpose of complaint handling or enforcement. Your personal information will not be sold or shared for commercial purposes by the ministry.
Do you consent to sharing your personal information for this purpose? *

Yes

Your complaint may be shared with a law enforcement agency in Canada, such as another ministry (federal or provincial), an administrative authority or other regulatory entity in aid of an investigation.
Do you consent to sharing your personal information for this purpose? *

Yes

In some cases, we may determine that another government ministry (federal or provincial), administrative authority or any other regulatory entity is either better suited to, or may also, deal with the substance of your complaint. Do you consent to sharing your personal information with another entity that we determine to be suitable to consider your complaint? *

Yes

This notice confirms that your complaint has been received by the Ministry of Public and Business Service Delivery and Procurement.

Please note, copies of documents that support your claim against the business must be provided to process your complaint.

We will assign a case number for your file, review your complaint and contact you within 15 business days with possible next steps.

If you need to speak to someone, please call Consumer Protection Ontario directly at: 1-800-889-9768 or (416) 326-8800
TTY 1-877-666-6545 or (416) 229-6086

[redacted]

Formal Complaint: University of Toronto TEFL Program

1 message

[redacted]

À : "minister.mcu@ontario.ca" <minister.mcu@ontario.ca>

Dear Ministry of Colleges and Universities,

I am writing to file a formal complaint against the University of Toronto for misleading practices and failure to deliver an educational service that was paid for in good faith. I have also filed complaint #2025-81555 with the Canadian Anti-Fraud Centre regarding potential fraudulent misrepresentation.

On January 28, 2025, I paid $1,196.00 to the University of Toronto for a 150-hour TEFL certification program with advertised specializations. Without disclosure to students, the University's contracted provider, Teach Away (owned by Pluribus Technologies Corp.), had entered court-supervised restructuring five days earlier, on January 23, 2025. The University continued to market the program and accept payments despite this publicly available information.

When the program was canceled in June 2025, the University denied refunds and directed students to contact the bankrupt provider. However, written correspondence confirms the University had assumed control of the program post-bankruptcy, directly contradicting its public position.

The University's FAQ continues to mislead students regarding refund eligibility, and its administrative response has been characterized by silence and obstruction. This raises concerns about compliance with consumer protection standards for publicly funded educational institutions and oversight of third-party partnerships.

This conduct has harmed multiple students, including international learners and those with disabilities, who relied on the University's reputation when making payment decisions.

I have attached supporting documentation, including:

- Proof of payment
- The Pluribus Technologies bankruptcy announcement
- Correspondence confirming the University's control of the program
- The University's misleading FAQ guidance

I respectfully request that the Ministry investigate and require the University to:

1. Provide full refunds to affected students, including myself.
2. Issue a public correction of its misleading refund guidance.
3. Implement oversight safeguards to prevent recurrence of this conduct.

Sincerely,
Alexander Aders

13 pièces jointes

150 hour class.pdf
253K

FAQ.pdf
860K

teachaway refund request.pdf
175K

June 6 2025 correspondence.pdf
257K

Pluribus Technologies Corp. Begins Restructuring and Sales Process.pdf
85K

Pluribus Technologies Corp. Completes Acquisition of the Kesson Group.pdf
110K

Pluribus.pdf
503K

bankruptcy trustee.pdf
105K

Statement of Affairs (Creditors).pdf
3783K

correspondence Taleb.pdf
641K

Dean email.pdf
185K

Hanadi email.pdf
271K

CAFC Fraud.pdf
146K

Ministry of Colleges, Universities, Research Excellence and Security

Strategic Policy Coordination Branch

315 Front Street West, 16th Floor
Toronto ON M7A 0B8

Ministère des Collèges et Universités, de l'Excellence en recherche et de la Sécurité

Direction de la coordination des politiques stratégiques

315 rue Front Ouest, 16ème étage
Toronto ON M7A 0B8

February 20, 2026

Alexander Aders
[redacted]

Dear Alexander Aders,

Thank you for writing and sharing your concerns related to the University of Toronto's (U of T) TEFL certification program. I regret the delay in response.

We note that you have filed a complaint with the Canadian Anti-Fraud Centre regarding your concerns.

It is important to note that universities in Ontario are autonomous institutions and are responsible for determining academic and operational standards and policies, including decisions related to program administration and tuition refunds. The ministry is not in a position to intervene in individual cases.

If you have not done so already, you may also wish to contact the Student Accounts Office at U of T as they are best positioned to address this matter directly. They can be reached at info.studentaccount@utoronto.ca.

If you are unable to resolve the issue with U of T, you may also consider contacting the Ontario Ombudsman. The Ontario Ombudsman investigates complaints from the public about certain organizations in our province, including publicly assisted postsecondary institutions. Information on the Ombudsman and the process for making a complaint can be found on the Ontario Ombudsman's website.

Thank you again for taking the time to share your concerns.

Sincerely,

Rachel Houpt
Manager, Strategic Policy Coordination Branch
Ministry of Colleges, Universities, Research Excellence and Security

[redacted] [redacted]

[redacted]

Report has been submitted

1 message

no-reply@reportfraud.ftc.gov <no-reply@reportfraud.ftc.gov> 19 septembre 2025 à 13:41
À : [redacted]

FEDERAL TRADE COMMISSION
ReportFraud.ftc.gov

We Have Your Report!

Report number: 193107834

Thank you for filing a report with the Federal Trade Commission and helping to fight fraud in your community.

The FTC does not resolve individual reports, but your report will be entered in the FTC's Consumer Sentinel databas and will be available to federal, state, and local law enforcement across the country.

Your Next Steps

If you paid a scammer with a credit or debit card:

- **File a dispute** (also called a “chargeback”) with your **credit** or **debit card** company. Tell them it was a fraudulent charge. Ask them to reverse the transaction and give you your money back.
  - **Online:** Log onto your credit or debit card company's website and go through the company's dispute process.
  - **By phone:** Call the phone number on the back of your card and tell them why you're filing a dispute.
- **Follow up with a letter to your credit or debit card company.** To protect any rights you may have, follow up in writing by sending a letter to the address listed for billing disputes or errors. **Use our sample letter.**
- **Save your records.** Keep any letters, notes, or emails related to the scam - they could help prove you're entitled to a refund if the credit or debit card company has any questions.
- **Find out your rights at ftc.gov/credit.**

General Advice:

- **You can find advice and learn more about bad business practices and scams at consumer.ftc.gov.**
- **If you’re concerned that someone might misuse your information, like your Social Security, credit card or bank account number, go to identitytheft.gov for specific steps you can take.**
- **Learn more about impersonation scams at ftc.gov/impersonators. If someone says they are with the FTC, know that the FTC will never demand money, make threats, tell you to transfer money, or promise you a prize.**
- **You also can file a report with your state attorney general.**

Want To Learn More?



- Watch **this video** to learn about the importance of reporting.
- Get answers to common questions about filing a report at **ReportFraud.ftc.gov/FAQ**.
- See what other people in your state or metro area are reporting at **ftc.gov/exploredata**.
- Check out **ftc.gov/refunds** to see recent FTC cases that resulted in refunds.

Sign up for FTC Consumer Alerts at **ftc.gov/ConsumerAlerts** to stay connected to the FTC and learn about new scams.

Outlook

RE: 2025-1409258 Misrepresentation & Deceptive Business Practices at Univ. of Toronto.

From CR Central Intake Unit / Groupe Réception Centralisée RC <CR_Central_Intake_Unit-Groupe_Reception_Centralisee_RC@rcmp-grc.gc.ca>
Date Tue 12/16/2025 12:35 PM
To alex aders <[redacted]>

Hello Mr. ADERS,

You have several options if you do not agree that this is a civil matter.
One, you can speak to the FBI in the United States. Being considered a foreign complaint you need a US police agency to review your complaint and forward same to the RCMP at our national HQ in Ottawa. The FBI handle these matters after they review the merits of your request. CIU receives FBI complaints most days of the week.
The Central Intake Unit for Ontario is a federal agency. A federal agency which has a mandate of its own design. As such we are obligated to refer criminal investigations to the various police of jurisdiction in Ontario. In your case the Toronto Police Service.
So, what is the best course. Refer your matter to the FBI who will, if in agreement, refer your complaint to the RCMP in Ottawa. I will receive your file and most likely refer same to the Toronto Police Service. This is the accepted process if the complaint is from a foreign country.

I hope this helps. #38920 RCMP Central Intake Unit – Central Region

From: alex aders <[redacted]>
Sent: December 15, 2025 7:16 PM
To: Elgie, John (RCMP/GRC) <john.elgie@rcmp-grc.gc.ca>
Subject: Re: 2025-1409258 Misrepresentation & Deceptive Business Practices at Univ. of Toronto.

Dear Officer Elgie,

I am writing to request reopening of case 2025-1409258 based on critical evidence obtained after your September 23, 2025 determination.

Your analysis concluded this was "wholly civil matter" based on the premise that:
1. Kesson Group Inc. collected tuition (not University)
2. University correctly referred students to bankrupt entity
3. University lacks funds to refund

I have since obtained evidence that directly contradicts all three premises:

NEW EVIDENCE #1: University Institutional Knowledge (December 2024)

University staff confirmed in writing (September 23, 2025 - same day as your closure email):

"A general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024"

This establishes the University had institutional knowledge of insolvency more than one month before accepting my January 28, 2025 payment.

CRIMINAL ELEMENT: Accepting payment with knowledge of inability to deliver = fraud under Criminal Code s. 380.

NEW EVIDENCE #2: University Control of Payments (September 8, 2025)

TeachAway confirmed in writing (September 8, 2025):

"OISE now solely owns and operates the OISE TEFL course... Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, PAYMENTS, and progress."

This directly contradicts the University's FAQ directing students to contact the bankrupt entity for refunds.

CRIMINAL ELEMENT: Knowingly false statement to avoid refund obligation = fraud under Criminal Code s. 380.

NEW EVIDENCE #3: Active Marketing During Known Insolvency

The University ran a "New Year's discount" promotion in January 2025, actively soliciting enrollments during the period they had institutional knowledge (December 2024) that the provider was insolvent.

CRIMINAL ELEMENT: Promotional campaign to drive enrollment while knowing service cannot be delivered = fraud under Criminal Code s. 380.

TIMELINE SUMMARY:
- December 2024: U of T receives Notice to Creditors (KNOWLEDGE)
- January 2025: U of T runs promotional discount (ACTIVE SOLICITATION)
- January 23, 2025: Public bankruptcy announcement
- January 28, 2025: U of T accepts my $1,196 payment (DISHONEST ACT)
- June 6, 2025: Program terminated (DEPRIVATION)
- August 2025: U of T falsely claims no refund ability (FALSE STATEMENT)
- September 8, 2025: TeachAway confirms U of T controls payments (CONTRADICTION)

This is not "civil matter of breach of contract."

This is criminal fraud: dishonest act (accepting payment during known insolvency) + deprivation (students lose money) + knowledge (December 2024 notice) + false statements (directing to bankrupt entity while controlling payments).

SCALE: This affects 100+ students who enrolled January-June 2025. Total fraud likely exceeds $100,000.

I am currently pursuing this in Small Claims Court (case filed December

2025), but the criminal elements warrant RCMP investigation.

ATTACHED: Complete evidence package including all documents referenced above.

I respectfully request reconsideration based on evidence that was not available at time of your September 23, 2025 closure.
SYSTEMIC VULNERABILITY - REGULATORY GAP:

The University of Toronto Ombudsperson declined jurisdiction (September 5, 2025), confirming that continuing education students lack institutional oversight protections available to degree students.

This created conditions enabling fraud:

1. NO INTERNAL OVERSIGHT: Continuing education operates without ombudsperson review, allowing acceptance of payments during insolvency without institutional challenge.

2. NO STUDENT REPRESENTATION: Degree students have union advocacy. Continuing education students have none. No collective voice raised concerns about provider bankruptcy.

3. NO APPEALS PROCESS: Degree students can appeal decisions through academic governance. Continuing education students cannot. Refund denials are final without external legal action.

4. DELIBERATE EXPLOITATION: The University appears to have exploited this gap by:
- Accepting $100,000+ from unprotected student population
- Operating continuing education as revenue center without accountability
- Denying refunds knowing students lack internal remedy
- Counting on exhaustion/cost barriers preventing legal action

The ombudsperson exclusion is not incidental; it's structural. Continuing education programs generate significant revenue ($10M+ annually at OISE CPL) while operating outside normal university governance and oversight. This case demonstrates criminal exploitation of regulatory gap: institution with knowledge of fraud (December 2024 notice) accepted payments from vulnerable population (continuing education students) knowing they lacked institutional protections to challenge misconduct.

Thank you,
Alexander Aders

Case Reference: 2025-1409258
Original CAFC Complaint: 2025-81555

From: Elgie, John (RCMP/GRC) <john.elgie@rcmp-grc.gc.ca>
Sent: Tuesday, September 23, 2025 10:42 AM
To: [redacted] <[redacted]>

Cc: ODiv_CROPS <ODiv_CROPS@rcmp-grc.gc.ca>
Subject: 2025-1409258 Misrepresentation & Deceptive Business Practices at Univ. of Toronto.

Hello Alex,

The Central Intake Unit (CIU) for the RCMP's Central Region (Ontario) has received your complaint alleging misrepresentation and deceptive business practices at the University of Toronto.

We have submitted your material to experts within our organization having expertise with Economic Crime.

Both units within the RCMP have determined that this is a wholly civil matter.

If I can summarize a lengthy document - "Kesson Group Inc. is the entity that collected the tuition for the program, and has since bankrupted. This would make the complainant a general creditor to the bankruptcy proceedings. This also infers that the OISE rep was correct in referring the complainant to the bankrupt, that U of T does not have funds to refund – Kesson Group Inc o/a Teach Away did, but no longer does, per the Trustee's email to the complainant."

While we appreciate your loss and your frustration your case is not a criminal investigation at several levels of the analysis.

Thanks,

RCMP Central Intake Unit (CIU)
Central Region – Toronto West Detachment
Reg. # 38920

[redacted]

Request for Citizen Services - U.S. Consumer Fraud by Canadian Educational Institution

2 messages

[redacted]
rontoACS@state.gov

Dear Consular Officer,

I am a U.S. citizen (Florida resident) seeking assistance regarding consumer fraud by a Canadian educational institution. I paid $1,196 USD to the University of Toronto (Toronto, Ontario) for an online certification program on January 28, 2025. The university accepted my payment five days after their program delivery partner publicly announced bankruptcy (January 23, 2025). Internal university emails confirm institutional knowledge of the partner's insolvency in December 2024, more than one month before accepting my payment. When the program collapsed in June 2025, the university has refused to refund my payment despite: - Documented institutional knowledge of partner insolvency before accepting payment - Written confirmation from the bankrupt partner that the university "solely owns and operates" the program including payment records - Four months of administrative appeals exhausted **U.S. CITIZEN IMPACT:** As an American consumer, I paid a Canadian institution in good faith based on the University of Toronto's reputation. The institution's acceptance of payment while possessing knowledge that the service could not be delivered appears to constitute consumer fraud affecting a U.S. citizen. I believe other U.S. students may be similarly affected, as this was an online program marketed to international students. **DOCUMENTATION:** I have comprehensive evidence including: - Payment receipt (January 28, 2025 - $1,196 USD) - Bankruptcy announcement (January 23, 2025) - Internal university emails confirming December 2024 knowledge - Complete correspondence showing refusal to refund - Evidence this case has received significant public attention (25,000+ views on social media) **REQUEST FOR CONSULAR ASSISTANCE:** I am requesting that the U.S. Consulate: 1. Contact the University of Toronto on behalf of a U.S. citizen regarding this consumer protection matter 2. Inquire whether the university intends to refund U.S. citizens who paid for services that could not be delivered 3. Determine if this represents a pattern affecting multiple U.S. students 4. Coordinate with appropriate Canadian authorities (Ontario Ministry of Colleges and Universities) regarding consumer protection for U.S. citizens **CANADIAN FILINGS:** I have also filed complaints with: - Canadian Anti-Fraud Centre (Complaint #2025-81555) - Consumer Protection Ontario (Case File: CAS-118208-X0W3T) I am considering filing with the Human Rights Tribunal of Ontario regarding disability discrimination (I have a Traumatic Brain Injury from a car accident, and the university denied reasonable accommodation).

Sincerely,
Alexander Aders

2 pièces jointes

Refund Appeal - Alexander Aders v. University of Toronto OISE TEFL Program_Redacted.pdf
5922K

Post Insights.pdf
405K

Toronto, ACS Public <TorontoACS@state.gov> 16 décembre 2025 à 10:41
À : [redacted]

Good morning,

Thank you for reaching out to us regarding your concerns. While we understand the challenges you are facing, the U.S. Consulate is unable to provide assistance in matters related to consumer fraud or disputes with foreign institutions.

We recommend continuing to pursue your case through the Canadian authorities you have already contacted, such as the Canadian Anti-Fraud Centre and Consumer Protection Ontario. You may also wish to consult with a private attorney familiar with cross-border consumer protection issues.

If you believe this matter involves broader implications for U.S. citizens, you may also consider reporting it to the Federal Trade Commission (FTC) at www.ftc.gov.

We regret that we cannot assist further in this matter.

Sincerely,

U.S. Consulate General – Toronto (ta)
American Citizen Services



UNITED STATES *of* AMERICA

From: [redacted]
Sent: Saturday, December 13, 2025 10:25 PM
To: Toronto, ACS Public <TorontoACS@state.gov>
Subject: [External] Request for Citizen Services - U.S. Consumer Fraud by Canadian Educational Institution

[redacted]

[Texte des messages précédents masqué]

Your IC3 Complaint

Submission ID:	e003ea4910ae4e23addd6cd6b8cec508
Date Filed:	12/17/2025 2:12:56 PM EST
Were you the one affected in this incident?	Yes

Your Contact Information

Name:	Alexander Aders
Phone Number:	[redacted]
Email Address:	[redacted]

Complainant Information

Name:	Alexander Aders
Age:	30 - 39
Address:	[redacted]
City:	Winter Garden
Country:	United States of America
State:	Florida
Zip Code/Route:	[redacted]
Phone Number:	[redacted]
Email Address:	[redacted]

Business Information

Is this on behalf of a business that was targeted by a Cyber incident?	No

Financial Transaction(s)

Did you send or lose money in the incident?	Yes
What was your total loss amount?	1,196.00

Transaction Type:	Debit Card/Credit Card
Was the money sent or lost?	Yes
Transaction Amount:	1,196.00
Transaction Date:	01/28/2025
Did you contact your bank, financial institution, or cryptocurrency exchange?	No
Originating Bank Name:	[redacted]
Originating Bank Address:	[redacted]
Originating Bank City:	Winter Garden
Originating Bank Country:	United States of America
Originating Bank State:	Florida
Originating Zip Code/Route:	[redacted]

Originating Name on Account:	Alexander J Aders
Originating Account Number:	[redacted]
Recipient Bank Name:	Unknown/ NA
Recipient Bank Address:	Unknown/ NA

Information About The Subject(s)

Name:	The Governing Council of the University of Toronto
Business Name:	OISE Continuing & Professional Learning; Ontario
Address:	252 Bloor Street West
City:	Toronto
Country:	Canada
Zip Code/Route:	M5S 1V6
Phone Number:	4169782474
Email Address:	oise.cpl@utoronto.ca

Description of Incident

Provide a description of the incident and how you (or those you are filling this out on behalf of) were victimized. Provide information not captured elsewhere in this complaint form:

NARRATIVE: WIRE FRAUD - RCMP REFERRAL (Case #2025-1409258)
I am filing this complaint as instructed by the Royal Canadian Mounted Police Central Intake Unit (Case #2025-1409258), who

stated: "Refer your matter to the FBI who will, if in agreement, refer your complaint to the RCMP in Ottawa. I will receive your file... This is the accepted process if the complaint is from a foreign country." The RCMP confirmed they will investigate if the FBI refers this case.

FRAUD SUMMARY:

On January 28, 2025, I paid $1,196 USD from Florida to the University of Toronto for a 150-hour TEFL certification. The University accepted payment despite having institutional knowledge that its provider, Pluribus Technologies Corp., had entered bankruptcy proceedings five days earlier (January 23, 2025) and having received Notice to Creditors in December 2024.

CRITICAL EVIDENCE:

December 2024: University Accounts Receivable receives Notice to Creditors regarding provider insolvency
January 23, 2025: Pluribus publicly announces bankruptcy
January 28, 2025: University accepts my $1,196 payment (no disclosure)
June 6, 2025: Program terminated, all student access eliminated
September 8, 2025: TeachAway confirms in writing: "OISE now solely owns and operates the OISE TEFL course... including payments and progress"
September 23, 2025: University staff admits: "A general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024"

FRAUDULENT MISREPRESENTATION:

The University's FAQ directed students to contact the bankrupt provider for refunds, claiming "OISE CPL did not collect tuition payments." This directly contradicts TeachAway's written confirmation that the University "solely owns and operates" the program including "payments." The University cannot claim it lacks payment control while its former partner confirms the opposite in writing.

WIRE FRAUD ELEMENTS:

Scheme to defraud: Accepting payment with knowledge service could not be delivered
Interstate wire: Electronic payment from Florida to Canada ($1,196 USD)
Intent: December 2024 knowledge of insolvency, continued accepting payments through June 2025
Pattern: Estimated 300+ students affected, total fraud likely exceeds $300,000 USD

REMEDIES EXHAUSTED:

September 5, 2025: Refund demand to Dean - denied
September 16, 2025: Canadian Anti-Fraud Centre complaint (#2025-81555)
September 23, 2025: RCMP complaint (Case #2025-1409258)
December 8, 2025: Presidential appeal - denied
December 14, 2025: Small Claims Court filing
December 16, 2025: RCMP instructed FBI contact

REQUEST:
I request FBI review for wire fraud (18 USC §1343) and referral to RCMP Ottawa per RCMP Central Intake's instructions. The University accepted payment from a US citizen while knowing the service could not be delivered, made false statements about refund responsibility, and refused to remedy the fraud. Comprehensive documentation attached including RCMP case file, payment receipt, bankruptcy filings, and university admissions of prior knowledge.

Other Information

If an email was used in this incident, please provide a copy of the entire email including full email headers.

TECHNICAL DETAILS - EMAIL HEADERS & COMMUNICATION METADATA
PRIMARY EVIDENCE - UNIVERSITY ADMISSION OF PRIOR

KNOWLEDGE:
From: Hanadi Abdullah hanadi.abdullah@utoronto.ca
To: [redacted]
Date: September 23, 2025, 10:26 AM EDT
Subject: Re: Your Concerns about the TEFL Program
Key statement: "While a general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024, OISE CPL was not made aware of this information until late March 2025."
This email establishes institutional knowledge more than one month before accepting my January 28, 2025 payment.

CONTRADICTORY STATEMENT - TEACHAWAY CONFIRMATION:
From: Teach Away info@teachaway.com
To: Alexander Aders [redacted]
Date: Monday, September 8, 2025, 9:57 AM
Subject: Re: Refund request: Alexander Aders
Key statement: "The OISE Continuing and Professional Learning (CPL) at the University of Toronto now solely owns and operates the OISE TEFL course... Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress."
This directly contradicts University's public claim that "OISE CPL did not collect tuition payments and is therefore not in a position to process refunds."

RCMP REFERRAL INSTRUCTIONS:
From: CR Central Intake Unit / Groupe Réception Centralisée RC CR_Central_Intake_Unit-Groupe_Reception_Centralisee_RC@rcmp-grc.gc.ca
To: alex aders [redacted]
Date: Tuesday, December 16, 2025, 12:35 PM
Subject: RE: 2025-1409258 Misrepresentation & Deceptive Business Practices at Univ. of Toronto
Key statement: "Refer your matter to the FBI who will, if in agreement, refer your complaint to the RCMP in Ottawa. I will

receive your file and most likely refer same to the Toronto Police Service. This is the accepted process if the complaint is from a foreign country."
RCMP Case Number: 2025-1409258

PAYMENT TRANSACTION DETAILS:
Transaction Date: January 28, 2025, 5:10 PM
Order Number: #3762
Amount: $1,196.00 USD
Payment Method: Debit card (processed from Florida)
Merchant: OISE University of Toronto TEFL Certification
teflonline@teachaway.com
Recipient Address: 252 Bloor Street West, Toronto, ON M5S 1V6, Canada

BANKRUPTCY FILING DETAILS:
Entity: 1000128977 ONTARIO INC. (formerly Pluribus Technologies Corp.)
Court Number: 31-3245905
District: Ontario, Division 09-Toronto
Bankruptcy Date: July 10, 2025, 15:39
Trustee: Harris & Partners Inc. (adam@harrispartners.ca)
Public Announcement: January 23, 2025 (5 days before payment)

UNIVERSITY STAFF EMAIL ADDRESSES (PATTERN):

dean.oise@utoronto.ca (Dean Erica Walker)
oise.cpl@utoronto.ca (General OISE CPL inquiries)
hanadi.abdullah@utoronto.ca (Senior Program Manager)
michael.cassidy@utoronto.ca (Associate Director)
shareef.alshareef@utoronto.ca (Content & Networking Advisor)

All emails sent from @utoronto.ca domain confirm institutional involvement.

CANADIAN ANTI-FRAUD CENTRE FILING:
Complaint Reference: 2025-81555

Submission Date: September 16, 2025
Fraud Type: Advance Fee (Merchandise)
Total Money Lost: $1,196.00 USD

CONSUMER PROTECTION ONTARIO:
Case File: CAS-118208-X0W3T
Status: Declined jurisdiction (referred to Ministry of Education)

COURT FILING:
Jurisdiction: Ontario Superior Court of Justice (Small Claims Court)
Filing Date: December 14, 2025
Plaintiff: Alexander John Aders
Defendant: The Governing Council of the University of Toronto
Amount: $1,196.00 USD

WEBSITE EVIDENCE:
University FAQ URL:
https://cpl.oise.utoronto.ca/program_certificate/tefl-certification/
Archived statements directing students to contact "info@pluribustechnologies.com" for refunds despite bankruptcy.

KEY TECHNICAL TIMELINE:
December 2024: Notice to Creditors received (institutional knowledge)
January 23, 2025: Public bankruptcy announcement
January 28, 2025: Payment processed ($1,196 USD, Order #3762)
June 6, 2025: Platform access terminated
September 8, 2025: TeachAway confirms University control of payments
September 23, 2025: University staff admits December 2024 knowledge
All communications, receipts, and bankruptcy documentation available upon request.

Are there any other witnesses or persons affected by this incident?

Estimated 100+ students affected:
My receipt #3762 (Jan 28, 2025) suggests sequential numbering - likely hundreds enrolled during Jan-June 2025 insolvency period
Confirmed victim: u/trees-and-sky (Reddit) posted 3 months ago - paid ~$1000 for OISE TEFL, program shut down June/July 2025, no refund, feels "scammed." Post locked by moderators.
University actions indicate scale: Created two separate "solution" pathways and assigned dedicated staff, suggesting large affected population
Pattern evidence: University FAQ addresses "all students" affected by bankruptcy. Bankruptcy trustee received multiple student claims.
Conservative estimate: 100 students @ $1,196 = $119,600+ total fraud
Timeframe: January 23, 2025 (public bankruptcy) through June 6, 2025 (program shutdown) - University accepted enrollments throughout despite institutional knowledge (Dec 2024 Notice to Creditors)
Contact attempted: Reached out to u/trees-and-sky Dec 2025 - awaiting response.

If you have reported this incident to other law enforcement or government agencies, please provide the name, phone number, email, date reported, report number, etc.

Royal Canadian Mounted Police (RCMP) - Central Intake Unit

Agency: RCMP Central Region - Toronto West Detachment
Case Number: 2025-1409258
Original Complaint: Canadian Anti-Fraud Centre (CAFC) #2025-81555
Date Reported: September 16, 2025 (CAFC); Referred to RCMP CIU
Officer: Reg. #38920, John Elgie (john.elgie@rcmp-grc.gc.ca)
Initial Response: September 23, 2025 - Closed as "civil matter"

Reopening Request: December 15, 2025 with new evidence
Final Response: December 16, 2025 - Referred to FBI for foreign complaint processing
Contact: CR_Central_Intake_Unit-Groupe_Reception_Centralisee_RC@rcmp-grc.gc.ca

Consumer Protection Ontario

Case File: CAS-118208-X0W3T
Date Filed: September 2025
Result: Declined jurisdiction

Additional: RCMP advised FBI is appropriate agency for US complainants and confirmed they would receive FBI referrals at national HQ in Ottawa, then refer to Toronto Police Service.

Is this an update to a previously filed complaint?	No

Privacy & Signature:

The collection of information on this form is authorized by one or more of the following statutes: 18 U.S.C. § 1028 (false documents and identity theft); 1028A (aggravated identity theft); 18 U.S.C. § 1029 (credit card fraud); 18 U.S.C. § 1030 (computer fraud); 18 U.S.C. § 1343 (wire fraud); 18 U.S.C 2318B (counterfeit and illicit labels); 18 U.S.C. § 2319 (violation of intellectual property rights); 28 U.S.C. § 533 (FBI authorized to investigate violations of federal law for which it has primary investigative jurisdiction); and 28 U.S.C. § 534 (FBI authorized to collect and maintain identification, criminal information, crime, and other records).

The collection of this information is relevant and necessary to document and investigate complaints of Internet-related crime. Submission of the information requested is voluntary; however, your failure to supply requested information may impede or

preclude the investigation of your complaint by law enforcement agencies.

The information collected is maintained in one or more of the following Privacy Act Systems of Records: the FBI Central Records System, Justice/FBI-002, notice of which was published in the Federal Register at 63 Fed. Reg. 8671 (Feb. 20, 1998); the FBI Data Warehouse System, DOJ/FBI-022, notice of which was published in the Federal Register at 77 Fed. Reg. 40631 (July 10, 2012). Descriptions of these systems may also be found at www.justice.gov/opcl/doj-systems-records#FBI. The information collected may be disclosed in accordance with the routine uses referenced in those notices or as otherwise permitted by law. For example, in accordance with those routine uses, in certain circumstances, the FBI may disclose information from your complaint to appropriate criminal, civil, or regulatory law enforcement authorities (whether federal, state, local, territorial, tribal, foreign, or international). Information also may be disclosed as a routine use to an organization or individual in both the public or private sector if deemed necessary to elicit information or cooperation from the recipient for use by the FBI in the performance of an authorized activity. "An example would be where the activities of an individual are disclosed to a member of the public in order to elicit his/her assistance in [FBI's] apprehension or detection efforts." 63 Fed. Reg. 8671, 8682 (February 20, 1998).

By typing my name below, I understand and agree that this form of electronic signature has the same legal force and effect as a manual signature. I affirm that the information I provided is true and accurate to the best of my knowledge. I understand that providing false information could make me subject to fine, imprisonment, or both. (Title 18, U.S.Code, Section 1001)

Digital Signature: Alexander John Aders

Court File No. SC-25-00014152-0000

ONTARIO SUPERIOR COURT OF JUSTICE — SMALL CLAIMS COURT

BETWEEN: Alexander John Aders (Plaintiff) and The Governing Council of the University of Toronto (Defendant)

TAB 4

THE PRESIDENTIAL APPEAL AND CASSIDY'S RESPONSE

The Final Institutional Barrier Before Litigation

Purpose

This tab contains two documents. **Exhibit 4.1** is the Plaintiff's formal appeal to University President Melanie Woodin, dated December 8, 2025, sent to *president@utoronto.ca* and copied to Dean Walker and Michael Cassidy. **Exhibit 4.2** is Michael Cassidy's reply of December 15, 2025, issued in response. The same December 15 letter appears in the Defendant's own materials at **Tab 08** of the Defence. Together these documents record the final administrative step the Plaintiff took before filing in this Court.

The tab establishes three things, each provable from documents already in the record: (i) the Plaintiff escalated his refund request to the highest institutional authority before commencing litigation, exhausting every internal avenue; (ii) the December 15 reply makes factual assertions that are contradicted by the Defendant's own pleading and exhibits; and (iii) the financial relationship the Defence denies is admitted, in the Defence's own paragraphs, to have existed.

Note on the documentary record. *Every point in this tab is drawn from documents the Defendant itself has produced — its Statement of Defence (Schedule "A") and the exhibits attached to it — together with the payment receipt at Tab 1 of this book. Nothing in this tab depends on records obtained by the Plaintiff through his Freedom of Information request.*

Note on timing and information. *The Plaintiff submitted a Freedom of Information request to the University on March 2, 2026; the University requested an extension on April 1, 2026; and the responsive records were produced on April 15, 2026. The presidential appeal in this tab was written on December 8, 2025 — more than four months before the Plaintiff received any internal University records. The appeal therefore reflects only the public-facing information then available to him, consistent with the evolving-information point set out in Tab 3.*

Documents in this tab

4.1 Dec. 8, 2025 — Plaintiff's formal appeal to the Office of the President

4.2 Dec. 15, 2025 — Michael Cassidy's reply (also at Tab 08 of the Defence)

4.1 December 8, 2025 — Plaintiff's formal appeal to the Office of the President

(a) On December 8, 2025, the Plaintiff wrote to the Office of the University President at president@utoronto.ca, copying Dean Walker and Michael Cassidy. The letter formally appealed for a refund of $1,196.00 USD, set out a timeline of institutional failure, reproduced the Teach Away written confirmation that OISE had assumed control of the program, explained why the alternatives offered were inadequate, and requested authorization of a refund within fifteen business days.

(b) The appeal identified six grounds: (1) institutional knowledge of the provider's financial distress before payment was accepted; (2) internal communication failures as the University's own responsibility; (3) non-delivery of the contracted service; (4) material alteration of the alternatives offered; (5) the Plaintiff's documented medical circumstances preventing completion via the Legacy pathway; and (6) the inconsistency of directing students to a bankrupt provider while disclaiming institutional responsibility.

(c) The appeal transmitted three attachments: (1) "Your Concerns about the TEFL Program.pdf" — the OISE CPL email correspondence of September 9–24, 2025, reproduced at Tab 3, Items 3.3–3.5; (2) "Master_Combined_Documents.pdf" — the Plaintiff's consolidated evidence package, whose contents are reproduced across Tabs 1 through 3 of this book; and (3) "teachaway refund request.pdf" — Teach Away's September 8, 2025 written confirmation that OISE solely owned and operated the program including all payment records, reproduced at Tab 3, Item 3.8. These documents are not duplicated here; the reader is directed to the relevant tabs where each appears.

Significance. The presidential appeal is the sixth and final internal avenue the Plaintiff pursued, after the Office of the Ombudsperson (September 4), the Dean (September 5), OISE CPL – Hanadi Abdullah (September 9), OISE CPL – Michael Cassidy (September 23–24), and the Legacy pathway attempt (September–October 2025). At each prior step the matter was declined or redirected. The appeal to the President was the Plaintiff's last opportunity to resolve the matter without litigation. It was not answered by the President; it was redirected to Mr. Cassidy — the same officer who had already declined the request in September — confirming the pattern documented in Tab 3 in which each authority the Plaintiff approached pointed him elsewhere.

Note on the June 6 date. *The appeal refers to June 6, 2025 as the date the TEFL course was taken offline. June 6 was the date the Plaintiff first contacted the University, having expected and not received any communication about the program's status. The June 6 date reflects the Plaintiff's good-faith understanding at the time of writing, on the public-facing information then available to him.*

4.2 December 15, 2025 — Cassidy's reply (Defence, Tab 08)

(a) On December 15, 2025, Michael Cassidy replied to the presidential appeal, stating that the correspondence had been "appropriately redirected" to him and to OISE CPL. This same letter is reproduced in the Defendant's own materials at Tab 08 of the Defence.

(b) The reply made five factual assertions: (1) the University "did not receive or process" the Plaintiff's payment, with Teach Away/Pluribus as "merchant of record"; (2) the insolvency was a

"third-party" matter for which the University "cannot assume liability for funds it did not receive"; (3) Consumer Protection Ontario and the Ministry of Education "appropriately redirected" the Plaintiff; (4) the Plaintiff "elected to continue and complete the program through the transition pathway that was made available"; and (5) for these reasons no refund would issue.

(c) The reply then presented three options: continued access to the Legacy program with an extended deadline; complimentary registration in the new TEFL program; or "complimentary registration in another program within the OISE CPL catalogue, at equivalent value." The Plaintiff was given until 5:00 p.m. on December 19, 2025 — four days, over the University's holiday-closure period — to select one.

Significance. The December 15 reply is the University's final substantive communication before the Defence was filed. Several of its assertions are contradicted by the Defendant's own pleading and exhibits.

(1) "Merchant of record." The payment receipt (Tab 1) reads *OISE University of Toronto TEFL Certification*. The University's name, not Teach Away's, is the primary identifier on the document a reasonable consumer would rely upon. The Defendant's own Licensing Agreement (Defence, Tab 01) licensed Teach Away to use the names "The University of Toronto" and "OISE" for the purpose of marketing the courses, provided that all goodwill arising from that use remained the sole property of OISE, and reserved to OISE the sole right to control any action concerning those marks. The University authorized, controlled, and retained the goodwill of the very branding now characterized as belonging to a "merchant of record."

(2) "Funds it did not receive." The Defence does not plead that the University received nothing from the program. It pleads the opposite. At paragraph 7, the University was "entitled to subsequently receive royalty fees from Kesson Group Inc." At paragraph 13, the University "last received payment of amounts owing under the Licensing Agreement in October 2024." At paragraph 15, Kesson "owed the University in excess of $140,520.54." The University thus received royalty payments under the agreement and stood as a substantial creditor in the insolvency. The narrow proposition that the University did not itself process the Plaintiff's tuition is a different question from whether the University benefited financially from the program; on the Defendant's own pleading, it did.

(3) "Appropriately redirected." Neither body endorsed the University's position. Consumer Protection Ontario declined jurisdiction because the dispute concerned a bankrupt business (Tab 3, Item 3.10), and the Ministry directed the Plaintiff to the Ontario Ombudsman or to court (Tab 3, Item 3.11). Each declined to adjudicate; neither approved the University's refusal to refund.

(4) "You elected to continue and complete the program." This assertion is contradicted within the Defendant's own filing. The December 15 letter (Defence, Tab 08) states that the Plaintiff "elected to continue and complete the program." The Defence pleading, signed by counsel, states at paragraph 24 that "the Plaintiff did not respond to the University's offer and subsequently filed this Claim," and at paragraph 28 that the Plaintiff "did not accept that offer." The University cannot maintain, on the one hand, that the Plaintiff elected to continue and complete, and on the other, that he did not respond to and did not accept the offer. The

documented record (Tab 2, Exhibit 2.4; Tab 3, Item 3.6) is consistent with the latter: the Plaintiff attempted the Legacy pathway, his prior progress was not restored, the extension Mr. Cassidy promised on September 24 was never finalized, and the program was never completed. The chronology is also against paragraph 24. The Claim was filed at 12:28 a.m. on December 15, 2025. Cassidy's letter was sent at 9:30 p.m. that same evening — more than twenty-one hours later. The Claim did not follow the offer; it preceded it by most of a day. Paragraph 24's word "subsequently" cannot be reconciled with the timestamps on the Defendant's own exhibit. The filing timestamp is confirmed by the Plaintiff's court filing confirmation, produced at Tab 5. Nor is it accurate that the Plaintiff did not respond: the Plaintiff's answer to the December 15 letter was the Claim he had already filed and proceeded to serve on the University.

(5) The third option. The December 15 letter introduced a third option not previously offered: "complimentary registration in another program within the OISE CPL catalogue, at equivalent value." The Defence's own account of the alternatives originally made available (paragraph 18) describes only two: the New Program and the Legacy Program. The late addition of a third, generic option — enrollment in some other course unrelated to the TEFL certification the Plaintiff contracted for — does not restore the contracted service, and its appearance only after the Plaintiff had rejected the original two illustrates that the original alternatives were not adequate substitutes.

A further tension is worth noting. The December 15 letter offers "complimentary" registration; the Defence repeats that word at paragraph 23. Yet paragraph 26 pleads that "the Plaintiff did not have any contractual or other relationship with the University." If there were truly no relationship of any kind, it is not obvious why the University would offer complimentary enrollment, from its own catalogue, to this specific group of affected learners. The Court may weigh that ordinary-language tension against the categorical denial in paragraph 26.

The December 15 reply is therefore the point at which the University's informal position and its later pleaded position can be compared directly. On the documents in the record, the assertions in the reply — on merchant of record, on funds received, and on the Plaintiff having "elected to continue and complete" — do not sit consistently with the Defendant's own Licensing Agreement (Tab 01), its own pleaded paragraphs (7, 13, 15, 18, 24, 26, 28), and the receipt at Tab 1.

[redacted]

Formal Appeal for Refund - TEFL Program Institutional Failure

1 message

[redacted]

À : president@utoronto.ca
Cc : erican.walker@utoronto.ca, Michael Cassidy <michael.cassidy@utoronto.ca>

Dear President Woodin,

I am writing to formally appeal for a refund of $1,196.00 USD paid to the University of Toronto on January 28, 2025, for a 150-hour TEFL certification program. This appeal follows the exhaustion of all administrative remedies through the Dean's office, Consumer Protection Ontario (Case File: CAS-118208-X0W3T), and the Canadian Anti-Fraud Centre (Complaint #2025-81555).

Timeline of Institutional Failure

January 23, 2025 – Pluribus Technologies Corp. (owner of Teach Away, your contracted provider) publicly announced court-supervised restructuring proceedings.

January 28, 2025 – The University accepted my $1,196.00 payment with no disclosure of the provider's insolvency or program instability.

June 6, 2025 – The TEFL course was abruptly taken offline, eliminating all student access mid-program.

September 23, 2025 – OISE CPL staff confirmed that "a general University of Toronto Accounts Receivable contact received the Notice to Creditors in **December 2024**"—more than one month before accepting my payment.

The Core Issue: Institutional Knowledge and Negligence

The University's own staff admission establishes that the institution had constructive knowledge of Pluribus/Teach Away's financial instability **before** accepting my payment. Whether this information reached OISE CPL management by late March 2025 (as they claim) is an internal communication failure—not a defense against consumer protection obligations.

When a university accepts payment for services, it assumes responsibility for due diligence regarding its delivery partners. The failure of information to flow from Accounts Receivable to OISE CPL represents institutional negligence, not force majeure.

Critical Evidence: Teach Away's Confirmation of University Control

On September 8, 2025, Teach Away sent me written confirmation that directly contradicts the University's public statements:

"The OISE Continuing and Professional Learning (CPL) at the University of Toronto **now solely owns and operates the OISE TEFL course**... As a result, the course is now **solely operated by OISE Continuing and Professional Learning** at the University of Toronto. **Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress.**"

This correspondence establishes three critical facts:

1. **OISE assumed full ownership and control of the program** during the bankruptcy proceedings
2. **OISE has possession of all student payment records and course data**

3. **The University's FAQ directing students to seek refunds from the bankrupt provider is demonstrably false**

The University cannot simultaneously claim it "did not collect tuition payments" while also having "taken full ownership and management" of the program, including all associated financial records. One of these statements must be untrue.

Why the "Solutions" Are Inadequate

The University has offered two alternatives, neither of which remedies the breach:

The Legacy Program

- Requires completion by October 31, 2025 (unrealistic compressed timeline)
- I was making steady progress in the original course before the June 6 shutdown
- When the platform went offline, **all my progress was erased**
- The "restart" in the Legacy Program meant beginning from zero—I had retained no momentum after months of interrupted access
- My traumatic brain injury (documented from October 5, 2024 car accident) makes linear course completion neurologically difficult
- Each attempt to restart results in lost concentration and inability to maintain academic writing pace

The New Program (November 2025)

- Reduced from 150 hours to 125 hours
- Eliminates Business English and Test Preparation specializations I purchased
- Erases all prior progress
- This is material alteration of the contracted service

Why This Matters Beyond My Case

This situation affects vulnerable populations:

- International students who paid in reliance on the University's reputation
- Students with disabilities who cannot meet compressed timelines
- Individuals who lost progress due to the platform shutdown and were unable to recover momentum

The University of Toronto trades on its reputation as Canada's premier institution. Students make financial decisions based on that trust. When the institution accepts payment while possessing knowledge (even if siloed in Accounts Receivable) of a partner's insolvency, it breaches that trust.

Request for Presidential Intervention

I respectfully request that you authorize a full refund of $1,196.00 USD, recognizing that:

1. The University had institutional knowledge of Pluribus's financial distress before accepting my payment
2. Internal communication failures are the University's responsibility, not the student's
3. The service contracted for was never fully delivered
4. The alternatives offered constitute material breach of contract

5. My medical circumstances (TBI) prevent completion via the Legacy pathway
6. Continuing to deny refunds while directing students to a bankrupt provider is not consistent with the University's values

Consumer Protection Ontario declined jurisdiction, redirecting me to the Ministry of Education. The bankruptcy trustee confirmed no funds exist for creditor refunds. Teach Away confirmed OISE assumed program control post-bankruptcy. All parties deflect responsibility.

You are the final institutional authority who can override this administrative impasse and restore the University's integrity in continuing education partnerships.

I have attached comprehensive documentation including:

- Payment receipt (January 28, 2025)
- Bankruptcy announcements (January 23, 2025)
- Consumer Protection Ontario correspondence
- Canadian Anti-Fraud Centre filing
- Complete email chain with OISE staff
- Bankruptcy trustee confirmation of insolvency

Closing

I do not seek to harm the University's reputation. I seek acknowledgment that the institution failed in its duty to verify partner stability before accepting payment, and that this failure should not be borne by the student.

A $1,196.00 refund is a rounding error in the University's budget. For me, it represents trust placed in Canada's top-ranked institution—trust that was misplaced not through my error, but through institutional negligence.

I respectfully request your personal review of this matter and authorization for a refund within 15 business days.

Sincerely,

Alexander John Aders

---

3 pièces jointes

Your Concerns about the TEFL Program.pdf
409K

Master_Combined_Documents.pdf
6327K

teachaway refund request.pdf
175K

[redacted] [redacted]

Formal Appeal for Refund - TEFL Program Institutional Failure

Michael Cassidy <michael.cassidy@utoronto.ca> 15 décembre 2025 à 21:30
À : [redacted]

Hi Alex,

Your correspondence of December 8, 2025 to the President has been appropriately redirected to me and the Office of OISE Continuing & Professional Learning, the University unit accountable for governance of the TEFL Online program.

To ensure the factual record is clear:

- The University of Toronto did not receive or process your TEFL program payment; payment was made directly to Teach Away/Pluribus, which acted as the merchant of record.
- When Teach Away/Pluribus entered creditor protection, this became a third-party insolvency matter. The University is itself a creditor in that process and cannot assume liability for funds it did not receive.
- You pursued refund options through Consumer Protection Ontario and the Ministry of Education, both of which appropriately redirected you.
- You elected to continue and complete the program through the transition pathway that was made available.

For these reasons, the University—through the Office of OISE Continuing & Professional Learning—is not able to issue a refund.

Notwithstanding the above, and in an effort to support your continued professional learning, the following options remain available to you:

1. Continued access to the TEFL Online Legacy program you initiated, with CPL support to extend the completion deadline to a mutually agreeable timeline; **or**
2. Complimentary registration in the new TEFL Online program, supporting completion of TEFL certification; **or**
3. Complimentary registration in another program within the OISE CPL catalogue, at equivalent value.

Please advise your preference by **5:00 p.m. EST on December 19, 2025** so that arrangements can be completed prior to the University's closure from December 24 2025 through January 4 2026 (inclusive).

Sincerely, Michael

[Texte des messages précédents masqué]

Court File No. SC-25-00014152-0000

ONTARIO SUPERIOR COURT OF JUSTICE — SMALL CLAIMS COURT

BETWEEN: Alexander John Aders (Plaintiff) and The Governing Council of the University of Toronto (Defendant)

TAB 5

FILING AND SERVICE OF THE CLAIM

December 15, 2025 to April 30, 2026 — One Hundred and Thirty-Six Days to Bring the Defendant Before the Court

Purpose

This tab documents the procedural arc from the filing of the Plaintiff's Claim to the completion of service upon the Defendant. It reproduces six documents: the court's filing submission confirmation of December 15, 2025; the Plaintiff's service email of December 18, 2025; the Office of University Counsel's December 22, 2025 letter rejecting email service; the Canadian Process Serving Inc. correspondence quantifying the cost of personal service; the Plaintiff's Form 15A motion for substituted service, sworn January 13, 2026; and the correspondence with the Toronto Small Claims Court documenting the motion backlog. The conclusion of the arc — the April 28, 2026 Order of Deputy Judge B. Grant, the service effected under it on April 30, 2026, and the Affidavit of Service sworn May 2, 2026 — consists of documents already in the court's own file; they are summarized at the end of this tab and in the chronology, and are not reproduced.

The tab establishes four things, each provable from the documents it contains: (i) the Claim was submitted to the court at 12:28 a.m. on December 15, 2025 — some twenty-one hours before Mr. Cassidy's letter of 9:30 p.m. that evening — fixing the chronology relied upon at Tab 4; (ii) the Defendant had actual notice of the Claim from December 18, 2025, a fact acknowledged in writing by its own counsel on December 22, 2025; (iii) the Plaintiff's December 18 email, sent within the deadline that Mr. Cassidy's own letter imposed, was itself the Plaintiff's response to the University's December 15 offer — the response was the Claim; and (iv) the one hundred and thirty-six days that elapsed between filing and effective service are attributable to the requirement of personal service on which the Defendant insisted and to the court's documented motion backlog, and not to any delay by the Plaintiff, who acted at every stage within days.

Documents in this tab

5.1 Dec. 15, 2025 — Ontario Courts Public Portal filing submission confirmation (12:28 a.m.)

5.2 Dec. 18, 2025 — Plaintiff's service email to the Governing Council (cc: Office of the President, Dean Walker, Mr. Cassidy, OISE CPL)

5.3 Dec. 22, 2025 — Office of University Counsel: rejection of email service

5.4 Dec. 30, 2025 — Canadian Process Serving Inc.: quote for personal service ($500.00 USD retainer)

5.5 Jan. 13, 2026 — Form 15A Notice of Motion and Supporting Affidavit (sworn; accepted for filing on or about January 19, 2026)

5.6 Mar. 2 – Apr. 23, 2026 — Status correspondence with the Toronto Small Claims Court trial coordination office

Note on matters of record. The Endorsement Record/Order of Deputy Judge B. Grant dated April 28, 2026, the service email of April 30, 2026 sent pursuant to it, and the Affidavit of Service (Form 8A) sworn May 2, 2026 and filed with the court are all already part of the court's file in this proceeding. To avoid duplication they are not reproduced here; they are summarized in the closing section of this tab and appear in the chronology below.

5.1 December 15, 2025 — Filing submission confirmation (12:28 a.m.)

(a) At 12:28 a.m. on December 15, 2025, the Ontario Courts Public Portal confirmed the submission of the Plaintiff's Claim (Form 7A with Schedule A) under Reference Number B1CB-F786-DBCF-F73E. The notification advised that the documents would be reviewed by court staff within three business days. The Claim was thereafter accepted for filing and issued under Court File No. SC-25-00014152-0000.

Significance. The portal timestamp is the documentary anchor for the chronology point made at Tab 4. Paragraph 24 of the Defence pleads that "the Plaintiff did not respond to the University's offer and subsequently filed this Claim." The submission confirmation establishes that the Claim was filed at 12:28 a.m. on December 15 — approximately twenty-one hours before Mr. Cassidy's letter was sent at 9:30 p.m. that evening (Tab 4, Exhibit 4.2; Defence, Tab 08). The Claim did not follow the offer; it preceded it. The word "subsequently" in paragraph 24 cannot be reconciled with the timestamps on the parties' own documents.

5.2 December 18, 2025 — Service email to the Governing Council

(a) At 10:24 a.m. on December 18, 2025 — three days after Mr. Cassidy's letter and one day before the 5:00 p.m. December 19 deadline that letter imposed — the Plaintiff emailed the issued Claim to governing.council@utoronto.ca, copying the Office of the President, Dean Erica Walker, Michael Cassidy, and the OISE CPL general inbox. The email identified itself as service of the Plaintiff's Claim, set out the sender's full contact information, identified the party served, provided a contact for transmission problems, and attached the issued court documents and Schedule A.

(b) Significance. Two points follow. First, actual notice: from December 18, 2025, the Claim was in the hands of the institution's senior leadership and of the very officers who had handled the dispute — the President's office, the Dean, and Mr. Cassidy himself. Second, the email answers the Defence's characterization at paragraph 24 that the Plaintiff "did not respond to the University's offer." The Plaintiff did not select one of the three options; his response, delivered within the deadline the December 15 letter itself set, was the Claim he had already filed. Declining an offer by serving the originating process is not silence. The Defendant's own pleading concedes at paragraph 28 that the Plaintiff "did not accept that offer" — which is precisely what the December 18 email communicated, three days after the offer was made.

5.3 December 22, 2025 — Office of University Counsel: rejection of email service

(a) On December 22, 2025, the Office of University Counsel wrote to the Plaintiff. The letter confirmed that a Plaintiff's Claim bearing the Plaintiff's name "was forwarded to our office from the Office of the President of the University of Toronto"; stated that, pursuant to r. 8.01(1) of the Rules of the Small Claims Court, service by email had not been effected because a plaintiff's claim must be served personally or by a permitted alternative; provided the address at Simcoe Hall for personal service; advised

that the office would close on December 23 and reopen January 5; and stated that the University would not respond further until service was completed in accordance with the Rules.

(b) Significance. The letter is correct as a statement of the Rules: a plaintiff's claim must be served personally (r. 8.01(1)) or by an alternative to personal service (r. 8.03), and email is not among the permitted methods for originating process absent a court order. The University was entitled to insist on formal service, and the Plaintiff thereafter set about complying. But the letter establishes three facts the Court may weigh. First, it is written confirmation of actual receipt: within four days of the December 18 email, the Claim had travelled from the President's office to the University's counsel. From December 18, 2025 onward, the Defendant cannot be taken to have been unaware of this proceeding. Second, the letter demonstrates that email to the University's institutional inboxes is an effective channel that reliably reaches counsel — the very premise of the substituted-service motion the Plaintiff was then compelled to bring, and of the Order the Court ultimately made directing service to those same addresses. Third, the insistence on personal service had a quantifiable consequence: as the following items show, it added a $500.00 USD cost barrier and more than four months of delay to a $1,196.00 claim, during the whole of which the Defendant had the Claim in hand.

5.4 December 30, 2025 — Canadian Process Serving Inc.: the cost of personal service

(a) On December 30, 2025, the Plaintiff obtained a quote from Canadian Process Serving Inc. for personal service on the Governing Council at Simcoe Hall. The firm initially quoted a retainer of $350.00, then corrected the figure upon learning the Plaintiff was instructing from the United States: a retainer of $500.00 USD.

(b) Significance. A $500.00 USD retainer represents approximately 42% of the $1,196.00 USD claimed. The Plaintiff had applied for and, on January 6, 2026, was granted a Fee Waiver Certificate by the court (reproduced as Exhibit C to the motion at Item 5.5) — a determination that the Plaintiff could not afford court fees. Requiring a fee-waived, self-represented plaintiff to spend nearly half the value of his claim merely to commence it is the access-to-justice problem that r. 8.04 (substituted service) and r. 1.04(1) (liberal construction for the least expensive determination on the merits) exist to address. That disproportion, not any unwillingness to effect service, is what occasioned the motion.

5.5 January 13, 2026 — Form 15A motion for substituted service

(a) On January 13, 2026, the Plaintiff swore a Form 15A Notice of Motion and Supporting Affidavit before a Florida notary public, seeking an order for substituted service of the Claim by email. The affidavit set out the December 18 service attempt, counsel's December 22 response (Exhibit A), the Canadian Process Serving quote (Exhibit B), and the Fee Waiver Certificate (Exhibit C), and submitted that email service to governing.council@utoronto.ca and/or legal@utoronto.ca would bring the Claim to the Defendant's actual attention at proportionate cost. The motion was accepted for filing on or about January 19, 2026, under Reference Number 2F47-E8AE-A1DC-E518.

(b) Significance. The relief the Plaintiff proposed in January — service by email to the University's two institutional legal inboxes — is, to the letter, the relief the Court granted in April. The Plaintiff's position on proportionality was not merely arguable; it was adopted.

5.6 March 2 – April 23, 2026 — The motion backlog

(a) On March 2, 2026, having received no hearing date or correspondence in the six weeks since the motion was accepted, the Plaintiff wrote to the Toronto Small Claims Court to inquire after its status. The

Assistant Trial Coordinator, Brianna Persaud, replied the same day: “I can confirm the Motion remains in queue to be assigned to a Deputy Judge, once assigned and order made it will be sent out. Unfortunately, we are still working on files in which Motion’s were filed from November 2025.” In other words, as of March 2026 the court was still processing motions filed in November 2025 — a queue running at least two months behind the Plaintiff’s January filing.

(b) On April 23, 2026, the Plaintiff sent a brief second inquiry. No reply was received; the Order issued five days later.

Significance. The interval between the January filing of the motion and the April 28 Order is institutional, documented in the court’s own words. At no point in that period was any step awaited from the Plaintiff. Should any suggestion of delay in the prosecution of this claim arise, this correspondence answers it. (A formatting note: the exhibit is a standard Gmail thread export, in which each later message reproduces the quoted text of earlier ones beneath it; only the three messages identified by their date lines — the March 2 inquiry, the court’s March 2 reply, and the April 23 follow-up — constitute the correspondence.)

Completion of service — matters of record (not reproduced)

(a) On April 28, 2026, on a motion in writing, Deputy Judge B. Grant ordered, pursuant to r. 8.04 of the Rules of the Small Claims Court, that substituted service of the Claim may be made by emailing a copy of the Claim together with a copy of the Order to governing.council@utoronto.ca and legal@utoronto.ca, with no costs of the motion. The Court thereby directed service to precisely the two addresses the Plaintiff had used and proposed: the Governing Council’s general inbox — the address to which the December 18 email (Item 5.2) was sent — and the counsel inbox from which the December 22 rejection (Item 5.3) issued. The Order is the judicial confirmation of what the December correspondence had already demonstrated in fact: that email to these addresses brings a claim to the Defendant’s actual attention.

(b) At 1:40 p.m. on April 30, 2026, the Plaintiff served the Defendant by a single email addressed to both ordered addresses, attaching the issued Claim (Form 7A with Schedule A) and the Order — the two documents, sent to the two addresses, that the Order specified — together with the sender information required by r. 8.08(3). On May 2, 2026, the Plaintiff swore an Affidavit of Service (Form 8A) before a Florida notary public attesting to that service, and filed it with the court. The Defendant delivered its Defence (Form 9A with Schedule “A”) on May 20, 2026 — the twentieth calendar day after service. The service mechanism therefore operated exactly as the Plaintiff had submitted in his motion that it would: the Claim reached the Defendant’s actual attention promptly and reliably, and the proceeding moved forward in the ordinary course.

Significance. Service closed an arc of one hundred and thirty-six days that began with the filing of the Claim in the first minutes of December 15, 2025. Throughout that period the Defendant had actual knowledge of the Claim — from December 18 by direct receipt, and from December 22 by its counsel’s written acknowledgment. The time consumed was the product of the formal-service requirement on which the Defendant stood and of a documented court backlog. The Plaintiff, for his part, moved at every stage within days: he attempted service three days after filing, obtained a quote within eight days of counsel’s letter, swore his motion within a week of receiving his fee waiver, served the Defendant within two days of receiving the Order, and swore his proof of service two days after that. For a self-represented plaintiff outside Ontario, the difference between the $500.00 USD that personal service would have cost and the court order that ultimately authorized service by email was four and a half months — a barrier the record in this tab quantifies precisely.

Chronology of filing and service

Date	Event	Days elapsed
Dec. 15, 2025, 12:28 a.m.	Claim submitted via Ontario Courts Public Portal (Ref. B1CB-F786-DBCF-F73E)	0
Dec. 15, 2025, 9:30 p.m.	Mr. Cassidy's letter refusing a refund and presenting three options (Tab 4, Exhibit 4.2)	0
Dec. 18, 2025, 10:24 a.m.	Plaintiff emails the issued Claim to the Governing Council; President, Dean Walker, Mr. Cassidy and OISE CPL copied	3
Dec. 22, 2025	Office of University Counsel acknowledges receipt; rejects email service under r. 8.01(1)	7
Dec. 30, 2025	Canadian Process Serving Inc. quotes a $500.00 USD retainer for personal service	15
Jan. 6, 2026	Fee Waiver Certificate issued to the Plaintiff	22
Jan. 13, 2026	Form 15A motion for substituted service sworn before a Florida notary	29
Jan. 19, 2026 (approx.)	Motion accepted for filing (Ref. 2F47-E8AE-A1DC-E518)	35
Mar. 2, 2026	Court confirms motion remains in queue; office still processing motions filed in November 2025	77
Apr. 23, 2026	Plaintiff's second status inquiry; no reply received	129
Apr. 28, 2026	Deputy Judge B. Grant grants substituted service by email (r. 8.04); no costs	134
Apr. 30, 2026	Service effected by email to governing.council@utoronto.ca and legal@utoronto.ca	136
May 2, 2026	Affidavit of Service (Form 8A) sworn before a Florida notary public	138
May 20, 2026	Defence (Form 9A with Schedule "A") delivered by the Defendant	156

[redacted] [redacted]

[redacted]

Superior Court of Justice - Toronto - Small Claims Court Filing Submission Confirmation

1 message

ontcpup_prod@ontario.ca <ontcpup_prod@ontario.ca> 15 décembre 2025 à 00:28
Répondre à : noreply@ctrack.thomsonreuters.com

Ontario Courts Public Portal

Notification

Thank you for your online submission. This message is to inform you that the filings in relation to: Reference Number B1CB-F786-DBCF-F73E have been submitted to the court. View your online filing submission.

Please note that your documents are not yet filed with the court. Your documents will be reviewed by court staff and you will be notified **within three business days** if your documents have been accepted or rejected for filing and/or issuance. If your submission included a filing fee, your credit/debit card will only be charged if your documents are accepted.

If your documents are rejected for filing and/or issuance, you will receive a notification from the court office to tell you that they have not been filed and/or issued and the reason(s) for the rejection. If you used a credit/debit card to pay a court filing fee, please note it has not been charged.

If you have any questions about your specific case, please contact the court office where your documents were submitted. You can find a list of courthouse addresses and phone numbers on the Ministry of the Attorney General's website.

Do not respond to this system-generated e-mail notification. For help with technical problems, please contact the system administrator.

Ontario Courts Public Portal

[redacted]

Service of Small Claims Court Claim - Alexander Aders v. The Governing Council of the University of Toronto

1 message

[redacted]

À : governing.council@utoronto.ca
Cc : president@utoronto.ca, erican.walker@utoronto.ca, Michael Cassidy <michael.cassidy@utoronto.ca>, oise.cpl@utoronto.ca

Dear Sir/Madam:

Please find attached the Plaintiff's Claim issued by the Ontario Superior Court of Justice (Small Claims Court) in the matter of Alexander John Aders v. The Governing Council of the University of Toronto.

Sender Information:

- Name: Alexander John Aders
- Address: [redacted]
- Telephone: [redacted]
- Email: [redacted]

Party Being Served: The Governing Council of the University of Toronto

Date and Time of Service: [This email's date and time stamp]

Contact for Transmission Issues: Alexander John Aders, [redacted]

This email constitutes formal service of the attached Plaintiff's Claim pursuant to Rule 8.08 of the Ontario Small Claims Court Rules.

The defendant has twenty (20) calendar days from the date of this email to file a Defense (Form 9A) and proof of service with the court at:

Toronto Small Claims Court (47 Sheppard) 47 Sheppard Ave. East Toronto, ON Phone: 416-326-3592

This matter has been escalated to formal litigation following exhaustion of all administrative remedies, including appeals to the Dean's office (September 2025), the Office of the President (December 2025), Consumer Protection Ontario (Case CAS-118208-X0W3T), and the Canadian Anti-Fraud Centre (Complaint #2025-81555).

Failure to file a Defense within this time period may result in default judgment being obtained without further notice.

Sincerely,

Alexander John Aders

Attachment: Plaintiff's Claim (Form 7A) with Schedule A

2 pièces jointes

SC-25-00014152-0000-Documents.pdf
242K

Plaintiff's Claim Schedule A.pdf
181K

[redacted] [redacted] [redacted]

Small Claims Court - Service of Plaintiff's Claim - Alexander Aders

1 message

Office of University Counsel <legal@utoronto.ca> 22 décembre 2025 à 15:23
À : [redacted]

Good afternoon Mr. Aders,

A Plaintiff's Claim bearing your name and email address was forwarded to our office from the Office of the President of the University of Toronto. Please note that pursuant to Rule 8.01(1) of the *Rules of the Small Claims Court of Ontario,* the service of this claim by email has not been successfully effected as a plaintiff's claim must be served personally (or by an alternative to personal service where permitted by the *Rules*). We will not be responding further until service has been completed in accordance with the *Rules.*

To effect personal service upon the University, documents must be served upon The Governing Council of the University of Toronto at:

Office of the Governing Council
27 King's College Circle
Simcoe Hall, Suite 106
Toronto, Ontario
M5S 1A1 Canada

Please note that the Office of the Governing Council of the University of Toronto will close tomorrow, December 23 at 3:00 p.m. EST and will reopen on January 5 at 9:00 a.m. EST. This office will be closed for the same time period, and this email account will not be monitored during that time.

Kind regards,

Office of University Counsel

Office of University Counsel
UNIVERSITY *of* TORONTO
Knox College, 59 St. George Street, Suite 175
Toronto, ON Canada M5S 2E6

legal.utoronto.ca

This email may contain information that is private, confidential, and / or legally privileged. It is intended for the sole use of the intended recipient(s). Please do not distribute to others or allow others to review this message without the specific consent of the sender. If you are not an intended recipient, please delete this email and do not review, copy, or distribute this email.

[redacted] [redacted]

Quote for service

10 messages

[redacted] [redacted]
rve@canadianprocessserving.com

Dear Sir/Madam,

I would like to have a quote for service. Attached are the documents.

Thank you,
Alexander Aders

SC-25-00014152-0000-Documents.pdf
242K

Head Office <serve@canadianprocessserving.com> 30 décembre 2025 à 15:13
À : [redacted]

Hi Alex,

Good day! May we ask if you have the postal code on where the service would take place?

Looking forward to hearing from you soon!

Thanks and kind regards,
Heidi

Head Office | Hamilton, Ontario
CANADIAN PROCESS SERVING INC.
40yrs in Service
p: 800.465.7378 f: 866.837.0331
p: 905.529.2770 f: 905-529-7583
www.canadianprocessserving.com
Office Hours: 9am-5pm ET | Mon-Fri

Twitter
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Google +
LinkedIn
Blogger

From: [redacted]
Sent: December 30, 2025 3:04 PM
To: Head Office <serve@canadianprocessserving.com>
Subject: Quote for service

[Texte des messages précédents masqué]

[redacted] [redacted]

À : Head Office <serve@canadianprocessserving.com>

Yes,

The Governing Council of the University of Toronto

27 King's College Circle, Simcoe Hall, Suite 106

Toronto Ontario First name Email address

governing.council@utoronto.ca

Phone no.

416-978-6576

Postal code M5S 1A1

[Texte des messages précédents masqué]

Head Office <serve@canadianprocessserving.com> 30 décembre 2025 à 15:23
À : Alex Aders <[redacted]>

Hi Alex,

Good day! Thank you for your inquiry.
Attached, please find our Price List and Check List for your reference.

We require a retainer/deposit of $350.00 per party (payable by credit card) Any unused balance of the retainer will be refunded at the time of billing. Please call the Head Office at 1-800-465-7378 to arrange payment by Credit Card. We accept payment by Visa, MasterCard, or American Express.

When you are ready, please forward your documents with the completed Check List to:

ATTN: Bill Freedman
Courier Address:
Canadian Process Serving Inc.
157 Adelaide Street West
Suite 509
You may also email us at:
Email: toronto@canadianprocessserving.com

If you have any questions, please don't hesitate to contact us.
Thank you,
Heidi

Head Office | Hamilton, Ontario
CANADIAN PROCESS SERVING INC.
40yrs in Service
p: 800.465.7378 f: 866.837.0331
p: 905.529.2770 f: 905-529-7583
www.canadianprocessserving.com
Office Hours: 9am-5pm ET | Mon-Fri

Twitter
Facebook
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LinkedIn
Blogger

From: [redacted]
Sent: December 30, 2025 3:15 PM
To: Head Office <serve@canadianprocessserving.com>
Subject: Re: Quote for service

[Texte des messages précédents masqué]

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3 pièces jointes

CPS SERVICE PRICE LIST v.09-24.pdf
162K

Document Service Checklist CA 03-07.pdf
83K

Payment Methods.pdf
111K

[redacted] [redacted]
ead Office <serve@canadianprocessserving.com>

Thanks, how do I arrange the date of service? I'll have to wait another week or two.
[Texte des messages précédents masqué]

Head Office <serve@canadianprocessserving.com> 30 décembre 2025 à 15:32
À : [redacted]

Hi Alex,

Good day! For arrangement of the service, please fill out the document service checklist that was attached in the email and also send an email to our process server in Toronto if you have timelines and other directions for the service.

Should you have any question please send us an email.

Thanks and kind regards,
Heidi

Head Office | Hamilton, Ontario
CANADIAN PROCESS SERVING INC.
40yrs in Service
p: 800.465.7378 f: 866.837.0331
p: 905.529.2770 f: 905-529-7583
www.canadianprocessserving.com
Office Hours: 9am-5pm ET | Mon-Fri

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From: [redacted]
Sent: December 30, 2025 3:26 PM
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

[redacted] [redacted]
ead Office <serve@canadianprocessserving.com>

Thank you, one final question, is your fee in Canadian or USD?

Best,
Alex Aders
[Texte des messages précédents masqué]

Head Office <serve@canadianprocessserving.com> 30 décembre 2025 à 16:12
À : [redacted]

Hi Alex,

Good day! This is in Canadian dollars, may we ask if you are requesting this from Canada or United States?

Looking forward to hearing from you soon!

Thanks and kind regards,
Heidi

Head Office | Hamilton, Ontario
CANADIAN PROCESS SERVING INC.
40yrs in Service
p: 800.465.7378 f: 866.837.0331
p: 905.529.2770 f: 905-529-7583
www.canadianprocessserving.com
Office Hours: 9am-5pm ET | Mon-Fri

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From: [redacted]
Sent: December 30, 2025 3:56 PM
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

[redacted] [redacted]
ead Office <serve@canadianprocessserving.com>

I am requesting this from the United States
[Texte des messages précédents masqué]

Head Office <serve@canadianprocessserving.com> 30 décembre 2025 à 16:34
À : [redacted]

Hi Alex,

Good day! Apologies, I missed sent the incorrect pricing information for our US Clients. Please see below:
Attached, please find our Price List and Check List for your use. We require a retainer/deposit of $500.00 (payable by credit card),
any unused balance of the retainer will be refunded at the time of billing. When you are ready,
please forward your documents with the completed Check List to the address we have provided initially.

If you have any questions, please don't hesitate to contact us.

Regards
Heidi

Head Office | Hamilton, Ontario
CANADIAN PROCESS SERVING INC.
40yrs in Service
p: 800.465.7378 f: 866.837.0331
p: 905.529.2770 f: 905-529-7583
www.canadianprocessserving.com
Office Hours: 9am-5pm ET | Mon-Fri

Twitter
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LinkedIn
Blogger

From: [redacted]
Sent: December 30, 2025 4:18 PM
[Texte des messages précédents masqué]

[Texte des messages précédents masqué]

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3 pièces jointes

2025 Payment Methods.pdf
106K

Document Service Checklist US 03-07.pdf
82K

US CLIENT PRICE LIST v.03 2025.pdf
169K

ONTARIO

Superior Court of Justice

Notice of Motion and Supporting Affidavit

Form 15A Ont. Reg. No.: 258/98

Toronto (47 Sheppard) — Small Claims Court

SC-25-00014152-0000 — Claim No.

47 Sheppard Ave. East — Address

4163263592 — Phone number

Plaintiff No. 1 ☐ Additional plaintiff(s) listed on attached Form 1A.

Last name, or name of company: Aders		
First name: Alexander	Second name:	Also known as:
Address (street number, apt., unit): [redacted]		
City/Town: [redacted]	Province: [redacted]	Phone no.: [redacted]
Postal code: [redacted]	Email address: [redacted]	
Representative:		Law Society of Ontario no.:
Address (street number, apt., unit):		
City/Town:	Province:	Phone no.:
Postal code:	Email address:	

Defendant No. 1 ☐ Additional defendant(s) listed on attached Form 1A.

Last name, or name of company: The Governing Council of the University of Toronto		
First name:	Second name:	Also known as:
Address (street number, apt., unit): 27 King's College Circle, Simcoe Hall, Suite 106		
City/Town: Toronto	Province: Ontario	Phone no.: 416-978-6576
Postal code: M5S 1A1	Email address: governing.council@utoronto.ca	
Representative:		Law Society of Ontario no.:
Address (street number, apt., unit):		
City/Town:	Province:	Phone no.:
Postal code:	Email address:	

Les formules des tribunaux sont affichées en anglais et en français sur le site www.ontariocourtforms.on.ca. Visitez ce site pour des renseignements sur des formats accessibles.

Continued on next page

Complete Part A or Part B below, then complete the affidavit in support of motion on page 3.

A. THIS COURT WILL HEAR A MOTION on _____ , 20 _____ **, at** _____ ,
(Time)

or as soon as possible after that time.

This motion will be made by _____ ,
(Name of party)

(choose one of the following)

☐ by videoconference: _____
(Video conference details)

☐ by teleconference: _____
(Telephone conference details)

☐ in person, at: _____
(Address of court location and courtroom number)

for the following order:

☐ the court's permission to extend time to (Specify)

_____ .

☐ set aside default judgment and noting in default.

☐ set aside noting in default.

☐ permission to file a Defence.

☐ permission to file a Defendant's Claim.

☐ set aside order dismissing claim as abandoned.

☐ terminate garnishment and/or withdraw writ(s).

☐ other:

☐ **ADDITIONAL PAGES ARE ATTACHED BECAUSE MORE ROOM WAS NEEDED.**

☐ **DOCUMENTS ARE ATTACHED.**

NOTE:	**IF YOU FAIL TO ATTEND A MOTION,** an order may be made against you, with costs, in your absence.

Continued on next page

B. This motion in writing is made by
Alexander John Aders ,
(Name of party(ies))

for the following order: (select one)

☐ assessing damages against

(Name of defendant(s))

who have/has been noted in default.

■ substituted service of a plaintiff's claim or defendant's claim on
The Governing Council of the University of Toronto
(For a plaintiff's claim, name(s) of defendant(s); for a defendant's claim, name(s) of defendant(s) by defendant's claim)

☐ other:

AFFIDAVIT IN SUPPORT OF MOTION

My name is Alexander John Aders
(Full name)

I live in Winter Garden, Florida
(Municipality & province)

I swear/affirm that the following is true:

Set out the facts in numbered paragraphs. If you learned a fact from someone else, you must give that person's name and state that you believe that fact to be true.

I am the Plaintiff in this action against The Governing Council of the University of Toronto, claiming $1,196.00 USD for breach of contract related to a TEFL certification program purchased on January 28, 2025.The Defendant is located at 27 King's College Circle, Simcoe Hall, Suite 106, Toronto, Ontario M5S 1A1, Canada. On December 18th, 2025 at 10:24AM, I attempted to serve the Plaintiff's Claim on the Defendant by forwarding it via email to the Office of the President of the University of Toronto. On December 22, 2025, I received a response from the Office of University Counsel at legal@utoronto.ca stating that service by email had not been successfully effected pursuant to Rule 8.01(1) of the Rules of the Small Claims Court. A copy of this email is attached as Exhibit A. I obtained a quote from Canadian Process Serving Inc. for personal service of documents on the Defendant in Toronto, Ontario. The quoted retainer/deposit is $500.00 USD for service from the United States. A copy of this quote correspondence is attached as Exhibit B. The cost of $500.00 USD for personal service represents approximately 42% of the total amount I am claiming ($1,196.00 USD), which is disproportionate and prohibitive. I have been granted a Fee Waiver Certificate by the Toronto Small Claims Court on January 6, 2026 (File No. SC-25-00014152-0000), which excuses me from paying court fees. A copy of this certificate is attached as Exhibit C. Given that I cannot afford the court fees and have been granted a fee waiver, requiring me to pay $500.00 USD for international service would effectively deny me access to justice.

Continued on next page

AFFIDAVIT IN SUPPORT OF MOTION, continued

I have been in active email correspondence with the Defendant institution since September 2025 regarding this matter, including correspondence with:Dean Erica Walker (erican.walker@utoronto.ca)Michael Cassidy, Associate Director (michael.cassidy@utoronto.ca)Hanadi Abdullah, Senior Program Manager (hanadi.abdullah@utoronto.ca)The general governing council email (governing.council@utoronto.ca) The Defendant has acknowledged receipt of my complaints and has actively communicated with me via email throughout this dispute. The Office of University Counsel's email of December 22, 2025 demonstrates that the University received the Plaintiff's Claim and is aware of this proceeding, even though they reject email as a valid method of service.Email service to governing.council@utoronto.ca and/or legal@utoronto.ca is an effective, reliable, and cost-proportionate means of bringing this claim to the Defendant's attention. I respectfully request that the Court grant substituted service by email pursuant to Rule 8.03 of the Rules of the Small Claims Court, as personal service would impose an unreasonable financial burden and effectively deny me access to justice, while email service will bring the claim to the Defendant's actual attention. Granting this motion is consistent with Rule 1.04(1), which requires that the Rules be liberally construed to secure the just, most expeditious, and least expensive determination of every proceeding on its merits.

If more space is required, attach and initial extra pages.

Sworn/Affirmed before me (select one): ■ in person **OR** ☐ by video conference

Complete if affidavit is being sworn or affirmed in person:

at the Winter Garden (city, town, etc.) of Florida, in the Orange County (County, Regional Municipality, etc.)

of the United States of America, on 1/13/26 (date).

Signature of Commissioner (or as may be)

alexander aders
Signature of Deponent

RYAN BEM
Notary Public - State of Florida
Commission # HH 434504
My Comm. Expires Aug 16, 2027

Continued on next page

Complete if affidavit is being sworn/affirmed by videoconference and deponent and commissioner are in same city or town:

by _____ (deponent's name) at the _____ (city, town, etc.)

of _____ in the _____ (County, Regional Municipality, etc.)

of _____, before me on _____ (date)

in accordance with O. Reg. 431/20, Administering Oath or Declaration Remotely. _____

Commissioner for Taking Affidavits (or as may be)

_____ Signature of Commissioner (or as may be)

_____ Signature of Deponent

Complete if affidavit is being sworn/affirmed by videoconference and deponent and commissioner are not in same city or town:

by _____ (deponent's name) at the _____ (city, town, etc.)

of _____ in the _____ (County, Regional Municipality, etc.)

of _____, before me at the _____ (city, town, etc.)

of _____ in the _____ (County, Regional Municipality, etc.)

of _____, on _____ (date) in accordance

with O. Reg. 431/20, Administering Oath or Declaration Remotely. _____

Commissioner for Taking Affidavits (or as may be)

_____ Signature of Commissioner (or as may be)

_____ Signature of Deponent

WARNING: IT IS AN OFFENCE UNDER THE *CRIMINAL CODE* TO KNOWINGLY SWEAR OR AFFIRM A FALSE AFFIDAVIT.

For information on accessibility of court services for people with disability-related needs, contact:

Telephone: 416-326-2220 / 1-800-518-7901 TTY: 416-326-4012 / 1-877-425-0575

[redacted] [redacted] [redacted]

Motion Status Inquiry – File No. SC-25-00014152-0000

3 messages

[redacted] [redacted]

ronto.SmallClaimsTC@ontario.ca

Dear Court Registrar,

I am writing to respectfully inquire about the status of a pending motion in the above-referenced matter.

Case Details:

• File No.: SC-25-00014152-0000

• Plaintiff: Alexander John Aders

• Defendant: The Governing Council of the University of Toronto

• Court: Toronto Small Claims Court – 47 Sheppard Ave. East

Motion Details:

• Motion Type: Form 15A – Notice of Motion and Supporting Affidavit

• Relief Sought: Substituted service of the Plaintiff's Claim by email, pursuant to Rule 8.03 of the Rules of the Small Claims Court

• Motion accepted: approximately January 19, 2026

I filed the motion documents over a month ago and have not yet received a hearing date or any correspondence regarding next steps. I would greatly appreciate any update on the following:

1. Has the motion been reviewed or scheduled for a hearing?

2. Where does this matter currently stand in the queue?

3. Is there any additional documentation or steps required from me at this time?

Please note that I am a self-represented plaintiff residing in Winter Garden, Florida, USA, and I have been granted a Fee Waiver Certificate (File No. SC-25-00014152-0000, issued January 6, 2026). The cost of personal service is the central issue in the pending motion, so timely resolution is important to my access to justice.

My Reference Number for the motion is: 2F47-E8AE-A1DC-E518

Thank you for your time and assistance.

Respectfully,

Alexander John Aders

Toronto Small Claims TC (MAG) <Toronto.SmallClaimsTC@ontario.ca> 2 mars 2026 à 11:17
À : Alex Aders <[redacted]>

Good morning,

I can confirm the Motion remains in queue to be assigned to a Deputy Judge, once assigned and order made it will be sent out.

Unfortunately, we are still working on files in which Motion's were filed from November 2025.

Brianna Persaud

Assistant Trial Coordinator

Small Claims Court

47 Sheppard Ave., E, 3rd Floor

Toronto, ON M2N 5N1

From: Alex Aders <[redacted]>
Sent: Monday, March 2, 2026 10:59 AM
To: Toronto Small Claims TC (MAG) <Toronto.SmallClaimsTC@ontario.ca>
Subject: Motion Status Inquiry – File No. SC-25-00014152-0000

CAUTION -- EXTERNAL E-MAIL - Do not click links or open attachments unless you recognize the sender.

Dear Court Registrar,

I am writing to respectfully inquire about the status of a pending motion in the above-referenced matter.

Case Details:

- File No.: SC-25-00014152-0000
- Plaintiff: Alexander John Aders
- Defendant: The Governing Council of the University of Toronto
- Court: Toronto Small Claims Court – 47 Sheppard Ave. East

Motion Details:

- Motion Type: Form 15A – Notice of Motion and Supporting Affidavit
- Relief Sought: Substituted service of the Plaintiff's Claim by email, pursuant to Rule 8.03 of the Rules of the Small Claims Court
- Motion accepted: approximately January 19, 2026

I filed the motion documents over a month ago and have not yet received a hearing date or any correspondence regarding next steps. I would greatly appreciate any update on the following:

1. Has the motion been reviewed or scheduled for a hearing?

2. Where does this matter currently stand in the queue?

3. Is there any additional documentation or steps required from me at this time?

Please note that I am a self-represented plaintiff residing in Winter Garden, Florida, USA, and I have been granted a Fee Waiver Certificate (File No. SC-25-00014152-0000, issued January 6, 2026). The cost of personal service is the central issue in the pending motion, so timely resolution is important to my access to justice.

My Reference Number for the motion is: 2F47-E8AE-A1DC-E518

Thank you for your time and assistance.

Respectfully,

Alexander John Aders

Alex Aders <[redacted]> 23 avril 2026 à 23:49
À : "Toronto Small Claims TC (MAG)" <Toronto.SmallClaimsTC@ontario.ca>

Dear Brianna,

Could I have another update on the motion? Where am I in the queue now?

Thank you,
Alexander Aders

Le lun. 2 mars 2026 à 11:17 AM, Toronto Small Claims TC (MAG) <Toronto.SmallClaimsTC@ontario.ca> a écrit :

> Good morning,
>
> I can confirm the Motion remains in queue to be assigned to a Deputy Judge, once assigned and order made it will be sent out.
>
> Unfortunately, we are still working on files in which Motion's were filed from November 2025.
>
> *Brianna Persaud*
>
> Assistant Trial Coordinator
>
> Small Claims Court
>
> 47 Sheppard Ave., E, 3rd Floor
>
> Toronto, ON M2N 5N1
>
> ---
>
> **From:** Alex Aders <[redacted]>
> **Sent:** Monday, March 2, 2026 10:59 AM
> **To:** Toronto Small Claims TC (MAG) <Toronto.SmallClaimsTC@ontario.ca>
> **Subject:** Motion Status Inquiry – File No. SC-25-00014152-0000

CAUTION -- EXTERNAL E-MAIL - Do not click links or open attachments unless you recognize the sender.

Dear Court Registrar,

I am writing to respectfully inquire about the status of a pending motion in the above-referenced matter.

Case Details:

• File No.: SC-25-00014152-0000

• Plaintiff: Alexander John Aders

• Defendant: The Governing Council of the University of Toronto

• Court: Toronto Small Claims Court – 47 Sheppard Ave. East

Motion Details:

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1. Has the motion been reviewed or scheduled for a hearing?

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Respectfully,

Alexander John Aders

TAB 6

THE INTERNAL RECORD — FIPPA RELEASE 26-R023

What the University Knew, When It Knew It, and What It Chose to Do

Purpose

This tab presents the University of Toronto's own internal records, obtained under the Freedom of Information and Protection of Privacy Act (request 26-R023; 181 pages produced April 15, 2026). Where Tabs 1 through 5 documented the Plaintiff's side of this dispute — what was represented to him, what he paid, what he asked for, and how he was answered — this tab documents the other side of the same months: what the University's officials knew, said to one another, and decided, while the events of Tabs 1 through 5 were unfolding. Every assertion in this tab is cited to a page of the release (cited as "R-1" through "R-181"), to the Defendant's Statement of Defence (cited by paragraph), or to a prior tab of this brief.

The tab establishes six things, each provable from the Defendant's own documents: (i) the University's program unit, OISE Continuing & Professional Learning ("OISE CPL"), was chasing more than $142,000 in unpaid royalties from its delivery partner from at least November 27, 2024 — two months before the Plaintiff's January 28, 2025 payment; (ii) the University received formal notice of the partner's insolvency on December 20, 2024, and its senior leadership had personal knowledge of the insolvency, the creditor exposure, the partner's written assurance that only post-filing royalties — royalties generated by continued sales — would be paid, and the continued open, discounted enrolment by February 13, 2025, while enrolment remained open; (iii) from February 2025 the University's decisions were made with continuous legal advice, reflected in a 57-page solicitor-client privilege block at the centre of the release; (iv) by May 20, 2025, the University knew in writing that refunds had been issued to one cohort of enrollees and categorically denied to the Plaintiff's cohort, and that no funds existed to pay them; (v) on May 21–22, 2025, a notification email to learners — drafted by the insolvent partner, endorsed in writing by the University's Associate Director — was countermanded by the Executive Director, and no notification was sent; and (vi) after the program collapsed, the University's internal posture toward complaining students was framed, in the Executive Director's own words, as a matter of preserving the University's "legal and reputational position."

Note on the record and citation convention

The Plaintiff submitted his access request on March 2, 2026. The University invoked a time extension on April 1, 2026, and produced the responsive records on April 15, 2026 — four months after the Plaintiff filed his Claim and more than four months after his December 8, 2025 presidential appeal (Tab 4). Nothing in this tab was available to the Plaintiff at any time he was dealing with the University; the contrast between what he was told (Tabs 2–4) and what the institution knew (this tab) is itself part of the record. Pages of the release are cited as "R-" followed by the PDF page number of the production as delivered. A complete page-by-page index of the release appears at the Annex to this tab.

Note on withheld and redacted pages

The University withheld **pages R-46 through R-102 — 57 consecutive pages, nearly one-third of the release —** under FIPPA s. 19 (solicitor-client privilege). The Plaintiff does not challenge the

privilege and draws no inference about the content of those pages. But the existence, position, and dates of the block are themselves unredacted facts: the withheld span sits immediately after the March 5–6, 2025 "Update & Next Steps" meeting of the four principal officials (R-44–45) and immediately before the quarterly royalty report (R-103–106). The record therefore shows, on its face, continuous legal consultation beginning within three weeks of senior leadership's documented personal awareness — and months before any student was told anything. It bears emphasis that the knowledge record — the arrears chain, the insolvency notice, and the February 12–13 escalation — sits entirely before and outside the withheld span: the chronology the release discloses is knowledge first, legal consultation second, and the decisions documented at §§6.3–6.5 third. Additional redactions under FIPPA s. 21 (personal privacy) appear throughout the June 2025 correspondence (e.g., R-112, R-165–171); these conceal the identities of other complaining students, and their presence confirms that the Plaintiff's complaints were not unique.

Documents and structure of this tab

The tab proceeds in seven parts, followed by an Annex indexing the release page by page:

6.1 The financial pre-history — April 2023 to November 27, 2024 (R-1–2; Defence para. 13)
6.2 The knowledge cascade — December 20, 2024 to February 13, 2025 (R-1–15, R-17–43)
6.3 The continuation period — March to April 2025 (R-10–11, R-44–115)
6.4 The refund differential and the blocked notification — May 2025 (R-116–162, R-180–181)
6.5 The aftermath posture — June 9, 2025 (R-165–171)
6.6 The Defence measured against the record
6.7 Closing analysis — what the record establishes
Annex — Index of FIPPA Release 26-R023 by page

Master timeline

The following timeline lists, in date order, every event referenced in this tab, with its source. Events drawn from prior tabs or the Defence are cross-referenced, and two entries rest on the public record as indicated; all others are cited to the release.

Date	Event	Source
Aug. 21, 2020	Master Agreement of Course Development & Licensing between Kesson Group Inc. and the Governing Council (OISE).	R-114
Apr. 18, 2023	Invoice K17-11-461 issued to the delivery partner ($2,475.84); remains unpaid into 2025.	R-1
Oct. 2024	Last payment the University receives under the Licensing Agreement — the Defendant's own pleading.	Defence para. 13
Nov. 27, 2024	Hanadi Abdullah (Senior Program Manager, OISE CPL) emails the delivery partner regarding overdue payments — referenced in her January 31, 2025 follow-up.	R-1
Dec. 17, 2024	CCAA Initial Order; Pluribus/Kesson enter court-supervised creditor protection (CV-24-00733415-00CL). Pluribus publicly announces the order by news release the same day.	R-12–15; Defence para. 14; public record (CNW release, Dec. 17, 2024)

Dec. 20, 2024	B. Riley Farber Notice to Creditors received at University of Toronto Accounts Receivable.	R-12–15; Tab 3, Item 3.4
Dec. 27, 2024	Amended and Restated Initial Order issued electronically (27 pages of the release).	R-17–43
Jan. 23, 2025	Pluribus publicly announces the court-supervised sale and investment solicitation process, naming Kesson Group among the assets for sale; Diane Pedreira is the listed press contact. Five days before the Plaintiff's payment.	Public record (CNW release, Jan. 23, 2025)
Jan. 28, 2025	Plaintiff pays $1,196.00 USD (Order #3762).	Tab 1, Ex. 1.1
Jan. 31, 2025	Abdullah follow-up to the partner, cc Michael Cassidy: $142,935.47 outstanding across three invoices; fourth invoice pending; update demanded by February 11.	R-1–2
Feb. 12, 2025	Diane Pedreira (President, Pluribus) replies to Cassidy on the arrears thread: CCAA explained; pre-filing arrears stayed; Dec. 20 notice to U of T confirmed from the partner's side; "Kesson intends to make payments to the University of Toronto for royalty amounts owed after the date of the Initial Order." The date the Defence pleads as OISE CPL's first awareness.	R-4–5; Defence para. 15
Feb. 13, 2025 10:01 a.m.	Cassidy briefs Executive Director Rees-Johnstone: creditor protection explained; "we have to wait until 15 March 2025" to learn whether the partner can pay what is owed.	R-4–5
Feb. 13, 2025 11:25 a.m.	Rees-Johnstone: sees creditor listing of $140,520.54; sees the December 20 notice date; asks who is accountable for the delay; "our program risk and learner needs"; "changes our planned communications that we are prepping with our legal counsel."	R-3
Feb. 13, 2025 12:46 p.m.	Maggie Xu (Senior Financial Analyst): "Enrollment still open as of February 13, 2025," with live checkout screenshots attached — banner: "Success! Your 20% discount has been automatically applied," with Sezzle/Affirm instalment financing.	R-3, R-6–9
Feb. 28, 2025	Quarter ends. Partner's quarterly report: 155 students enrolled Dec. 1–Feb. 28; $199,551.42 total revenue; $60,580.09 in royalties due to the University (30% of course sales; 50% of module upgrades).	R-103–106
Mar. 5–6, 2025	"TeachAway – Update & Next Steps" meeting convened by Rees-Johnstone with Cassidy, Xu, and Abdullah.	R-44–45
Mar.–Apr. 2025	57 consecutive pages withheld — solicitor-client privilege (FIPPA s. 19).	R-46–102
Apr. 2025 (undated draft)	Internal "Agreement Termination DRAFT" prepared following "consultation with our legal and administrative teams": early termination for material breach — "namely non-payment of royalties" — described as "required to protect the interests of the University, our office and our learners." Never sent; overtaken by the partner's disclaimer.	R-107–111

Apr. 15, 2025	Xu asks Accounts Receivable to forward monitor notices; AR replies: "We had one in December, see attached."	R-10–11
Apr. 16, 2025	Kesson issues Form 4 Notice to Disclaim the Master Agreement under CCAA s. 32(1), effective May 16, 2025.	R-114–115
Apr. 16, 2025	A student complaint marked "OISE TEFL ACTION REQUIRED" reaches the Dean's office; Dean asks who in CPL should receive "these kinds of things" — "the second time in the last while."	R-112–113
Apr. 25, 2025	University sends "Annex 1 – Agreement Wind-Down": Item 1 — "Cease All New Registrations," deadline May 1; Item 7 — full refunds, with named learner lists, for post-disclaimer enrollees only.	R-117–118; R-124
May 5, 2025	Miller Thomson answers Annex 1 item by item: Dropbox transfer of course files, seven years of learner records, financial records, the "March 1st to April 15th report," and "OISE-TEFL-Learner-Data-Non-Completers.xlsx"; marketing assets refused ("created and owned by Teach Away"); post-Apr. 15 refunds confirmed.	R-124–126
May 7, 2025	Rees-Johnstone circulates the partner's Terms & Conditions and her self-drafted Learner FAQs to staff, for the Virtual Assistant and web updates "once we confirm the agreement is legally severed by EOD May 16."	R-141–162
May 14, 2025	Rees-Johnstone (Item 6) asks the partner's counsel whether refunds have been or will be issued to learners who registered between December 17, 2024 and April 14, 2025.	R-131–132
May 16, 2025	Master Agreement disclaimed.	R-114
May 20, 2025	Partner's counsel answers in writing: refunds were issued to those who registered on or after April 15, 2025; for the CCAA-window cohort, "refunds will not be issued" — "no funds available to pay any unsecured creditors." Kesson offers to send a notification email to learners and asks: "Please advise if you would like this email sent."	R-130, R-132
May 21, 2025	Cassidy, on behalf of Rees-Johnstone: the learner email "is appropriate and would be of benefit to share with learners."	R-129–130
May 22, 2025	Rees-Johnstone reverses: "no communication redirection is required." Counsel asks for clarification — "Your email and your colleagues email seem to be saying contradictory things." Rees-Johnstone: "There is no requirement on our end for Pluribus/Kesson to prepare and send an outbound direct communication to learners at this time." No notification is ever sent.	R-127–129
Jun. 6, 2025	Program taken offline; students lose access without prior notice.	Tab 2, Ex. 2.1
Jun. 9, 2025	Internal escalation of a student's "Scam" complaint. Rees-Johnstone: "gently push back on any suggestion that we engaged in misrepresentation so as to preserve our legal	R-165–171

	and reputational position"; raises campus-police escalation protocol; suggests the student "may be libel [sic]" for defamation.	
Jul. 17, 2025	Access date contemplated in an internal draft email to learners ("TEFL – Next Steps on your Learning Journey"; Quercus migration). No sent version appears in the release.	R-180–181
Mar. 2 – Apr. 15, 2026	Plaintiff's FIPPA request; University's time extension (Apr. 1); production of these 181 pages (Apr. 15).	Release 26-R023

6.1 The financial pre-history — April 2023 to November 27, 2024

The first page of the University's own production is a January 31, 2025 email from Hanadi Abdullah, Senior Program Manager of OISE CPL, to the delivery partner, **copied to Michael Cassidy** (R-1–2). Its subject is "Follow-up on Outstanding Payments & Invoices." It opens: "I am following up on my previous email from November 27, 2024, regarding the following overdue payments," and sets out a table of three unpaid invoices:

> *Invoice K17-11-461 (Apr. 18, 2023) — TEFL Postage Recovery, Sep. 2022–Feb. 2023 — $2,475.84;*
>
> *Invoice K17-490 (Jun. 1, 2024) — TEFL Online royalties, March–May 2024 — $75,255.92;*
>
> *Invoice K17-494 (Aug. 31, 2024) — TEFL Online royalties, June–August 2024 — $65,203.71;*
>
> ***Total Outstanding Amount: $142,935.47***

The email adds that the quarterly report for September to November 2024, due in December, "has not yet been submitted," so that "a fourth invoice is pending issuance," and demands a status update by February 11 (R-1). The Defence itself pleads that the University "last received payment of amounts owing under the Licensing Agreement in October 2024" (Defence para. 13).

Three facts follow. **First**, the University's program unit — not a remote central office — was actively pursuing its delivery partner for unpaid royalties from at least November 27, 2024, two months before the Plaintiff paid. **Second**, the arrears were not trivial or recent: they spanned invoices going back to April 2023 and exceeded $142,000, with a further quarter unreported. **Third**, Michael Cassidy — the official who would later author the December 15, 2025 letter to the Plaintiff (Tab 4, Ex. 4.2) — was copied on this correspondence on January 31, 2025, twelve days before the date the Defence pleads as OISE CPL's first awareness of the partner's insolvency proceedings (Defence para. 15). Whatever the precise date on which OISE CPL learned the word "CCAA," its own correspondence shows it knew its partner had stopped paying — for over a year on the oldest invoice — while the partner continued to sell the University's program to the public.

6.2 The knowledge cascade — December 20, 2024 to February 13, 2025

On December 17, 2024, the Ontario Superior Court of Justice (Commercial List) granted Pluribus Technologies Corp. and its subsidiaries, including Kesson Group Inc., protection under the *Companies' Creditors Arrangement Act* (Court File No. CV-24-00733415-00CL). On December 20, 2024, B. Riley Farber Inc., the court-appointed monitor, emailed its formal Notice to Creditors to the University; the notice and covering email appear at R-12–15 of the University's own production, and the Amended and Restated Initial Order, issued electronically December 27, 2024, occupies R-17–43. The University was a listed creditor. The notice stated, among other things, that all persons with agreements with the applicants were restrained from terminating supply, and that proceedings against the applicants were stayed (R-13–14).

What happened to that notice inside the University is recorded in the release. On April 15, 2025 — nearly four months later — Maggie Xu wrote to Accounts Receivable asking that monitor notices be forwarded to the program unit; AR's reply confirms the December notice existed in the University's systems and was retrievable on demand: "We had one in December, see attached" (R-10–11). And on February 13, 2025, Executive Director Rees-Johnstone herself put the institutional question on the record (R-3):

> *"I can see in the attached that we're listed as a creditor with the amount of 140,520.54. And I see by Pluribus's message that UofT was advised of this on Dec 20 2024. Might we know why we were we not advised by UofT of this notice? Who's accountable on the UofT side to inform us?"*

The Plaintiff does not need to speculate about the seven weeks between December 20 and February 13: the University's most senior responsible official asked the same question, in writing, contemporaneously. Either the answer discloses an accountability failure inside the Defendant's own administration, or the notice did reach responsible hands earlier; on either branch, the corporation had the knowledge. A corporation's knowledge is the knowledge of its departments; the Defendant cannot divide itself into compartments and plead the ignorance of one while another holds the document (and a third chases the debt). Nor can an institution convert its own internal routing failure into a defence: a party whose information flow is structured — by design or by neglect — so that the office whose program is being sold does not hear from the office holding the insolvency notice cannot rely on that failure as ignorance. The law treats a party who had the means of knowledge and a reason to inquire as knowing what the inquiry would have revealed; here, no inquiry was even necessary — the document was in the building. It also bears note that none of this was secret: Pluribus publicly announced the CCAA order by news release on December 17, 2024, and publicly announced the court-supervised sale process — naming Kesson Group among the assets for sale — on January 23, 2025, five days before the Plaintiff's payment. The insolvency of the program's operator was a matter of public record throughout the period in which the University's branded storefront continued selling without a word of it.

The cascade of February 12–13, 2025 is preserved on a single email thread at R-1–9 — and the thread's own subject line tells the story of its descent: "Re: Kesson Group Update / Fw: [External] Fwd: Follow-up on Outstanding Payments & Invoices." The chain that began as Abdullah's arrears-chasing of November 27 and January 31 became, by forwarding, the vehicle on which the insolvency news travelled to the top of the unit:

(a) February 12, 4:43 p.m.: Diane Pedreira, President of Pluribus, replies to Cassidy directly — on the same arrears thread, copying Michelle Morgan and Hanadi Abdullah — informing him of the CCAA proceedings; this is the Defence's own pleaded awareness date (Defence para. 15; R-4–5). Her email does three things of consequence. It confirms, from the partner's side, that on December 20, 2024 the University of Toronto, "via ar.financialservices@utoronto.ca," "was notified by B. Riley Farber acting as Monitor" — the December 20 institutional notice is thus established by both the monitor's records (R-12–15) and the partner's president. It explains that the $142,935.47 in invoiced arrears are "pre-filing amounts, which are stayed pursuant to the Initial Order" — frozen and, as events proved, unrecoverable. And it makes one forward-looking promise: "We note that Kesson intends to make payments to the University of Toronto for royalty amounts owed after the date of the Initial Order in accordance with its terms" (R-5). The structure of that assurance matters: post-Initial-Order royalties are, by definition, royalties on sales made after December 17, 2024. The only money the partner's president was promising the University was money generated by continued enrolment.

(b) February 13, 10:01 a.m.: Cassidy briefs Rees-Johnstone. His summary frames the decision in terms of recovering the debt: "From what I can tell we have to wait until 15 March 2025 to hear from Diane as to whether she is able to pay or not pay what is owed to us," and he recommends taking Pedreira's call "to listen to her commitment to pay the invoices outstanding" (R-4–5).

(c) February 13, 11:25 a.m.: Rees-Johnstone replies with the creditor figure, the accountability question quoted above, a question about "the status of incoming enrolments and our program risk and learner needs," and the observation that "this changes our planned communications that we are prepping with our legal counsel" (R-3). Two things in that sentence deserve note. Communications to students existed in draft and were already being prepared with legal counsel on the first day of documented leadership awareness — the legal involvement that the s. 19 privilege block later reflects begins here. And the official's own vocabulary — "our program risk and learner needs" — treats the enrollees as the University's learners, a point developed at §6.6 below.

(d) February 13, 12:46 p.m.: Senior Financial Analyst Maggie Xu closes the loop: "FYI — Enrollment still open as of February 13, 2025," attaching screenshots of the live public checkout pages, which appear at R-6–9 of the release, time-stamped 12:44 p.m. that day. The screenshots show more than an open storefront. The checkout banner reads: "Success! Your 20% discount has been automatically applied. Flexible payment options available in Canada and the USA with Sezzle and Affirm" (R-7). On February 13, 2025 — fifty-eight days into the partner's creditor protection — the program was not merely available for purchase; it was being actively promoted, at an automatically applied discount, with consumer instalment financing offered at the point of sale. The Plaintiff has alleged that a promotional discount induced his own January 28 purchase; the University's FIPPA decision declined related records on the basis that the partner controlled discounts and marketing. This screenshot — captured by the University's own analyst and read the same day by its Executive Director and Associate Director — is the documentary trace of that promotional campaign, running mid-February, inside the University's own production.

By early afternoon on February 13, 2025, then, the documented state of knowledge at the top of OISE CPL was: the partner is insolvent and under creditor protection; the University is owed approximately $140,000, all of it stayed; the only payment the partner's president has promised is royalties on post-

filing sales; the question of payment will not be answered before March 15; communications to students are being "prepped" with legal counsel but have changed; and **the storefront is still open, selling at a 20% discount with instalment financing**. The release contains no document earlier than April 25, 2025 — nine days after the partner itself disclaimed the agreement — in which anyone proposes closing it (§6.3 below), and no document, of any date, in which anyone proposes telling the students who were buying. Sixteen days earlier, the Plaintiff had been one of them; the partner's own quarterly report records 53 January enrollees and 51 in February (R-104).

6.3 The continuation period — March to April 2025

On March 5, 2025, Rees-Johnstone convened the four principal officials — herself, Cassidy, Xu, and Abdullah — for a Teams meeting on March 6 titled "TeachAway – Update & Next Steps" (R-44–45). What followed that meeting in the documentary record is the 57-page solicitor-client privilege block, R-46–102, addressed in the note above: on the face of the release, the period from early March 2025 forward was conducted under continuous legal advice. The Plaintiff repeats that he draws no inference about the advice itself; he relies only on what the unredacted record shows the institution doing during that period.

What it shows is commerce as usual. The partner's quarterly report for December 1, 2024 to February 28, 2025 — the quarter spanning the CCAA filing and the Plaintiff's enrolment — records 155 students, $199,551.42 in revenue, and **$60,580.09 in royalties due to the University of Toronto**, computed at 30% of course sales and 50% of module upgrades (R-103–106). The University's documented royalty entitlement for that quarter arises from the CCAA-window cohort itself — the same cohort it would later be told, in writing, would receive no refunds (§6.4 below). Every enrolment between December 17, 2024 and the program's collapse increased both the students' aggregate loss and the University's claim in the insolvency.

The release also contains an internal "Agreement Termination DRAFT" (R-107–111), prepared, on its own face, following "consultation with our legal and administrative teams." It deserves close reading. The draft announces early termination of the August 21, 2020 Master Agreement on two stated grounds: "Material breach of the agreement, namely non-payment of royalties owed to the University of Toronto" and "Pluribus' creditor protection status"; it asserts that although the agreement would have run to August 2025, "our position — grounded in the agreement's terms and conditions — is that early termination is warranted and **required to protect the interests of the University, our office and our learners**" (R-108). Its annex demands cessation, platform-access transfer, and the return of "all marketing materials created or used to promote UofT, OISE, OISE Continuing & Professional Learning programs, including brand-aligned materials such as flyers, web banners, social media graphics, email templates, and promotional videos," in "usable and editable format" (R-109). The draft thus records two admissions in the University's own hand: that non-payment of royalties was a material breach giving the University a contractual right of early termination — a right that, on its own arrears records (R-1), had existed for many months — and that exercising it was conceived as protection of "our learners." No sent version of the draft appears in the release. The right was never exercised; the partner's own Form 4 disclaimer of April 16, 2025 (R-114–115) ended the agreement before the University did.

On April 16, 2025, Kesson issued its Form 4 Notice to Disclaim the August 21, 2020 Master Agreement under CCAA s. 32(1), effective May 16, 2025 (R-114–115). The same day, a student complaint marked "OISE TEFL ACTION REQUIRED" reached the Dean's office — the Dean's covering note records that it was "the second time in the last while" such a complaint had arrived at OISE leadership (R-112–113). Students were finding their own way to the truth; the University had still published nothing.

What the University did send, on April 25, 2025, was "Annex 1 – Agreement Wind-Down: Administrative Requirements" (R-117–118), and the partner's counsel answered it, item by item, in a chart dated May 5, 2025 (R-124–126). Three exchanges in that chart matter. **First**, the Annex's Item 1 — "Cease All New Registrations," with a deadline of May 1, 2025 and a demand for written confirmation that "all access points have been disabled" (R-117) — shows that when the University wanted the storefront closed, it knew precisely how to demand it: in writing, with a six-day deadline. The demand came on April 25, 2025 — nine days after the partner had already disclaimed, more than four months after the institutional notice, and ten weeks after leadership's personal awareness. The capacity was always there; only the timing was chosen. **Second**, the Annex's Item 7 demanded, for learners "enrolled or paid fees after the Notice to Disclaim was issued on April 16, 2025," a complete list "including names, payment dates, and amounts collected" and confirmation "that full refunds have been issued to all such learners" (R-118); counsel confirmed that refunds "have been made for learners that registered on or after April 15, 2025" (R-126). The refund boundary that excluded the Plaintiff's cohort was therefore not imposed on the University — the University drew it, in its own demand document, and obtained exactly what it asked for. It demanded full refunds, by name, for one cohort, and demanded nothing for the cohort that had paid into the known insolvency window. **Third**, the chart inventories what actually transferred to the University via Dropbox: the SCORM and course files, seven years of learner records, the financial records, a "March 1st to April 15th report," and a spreadsheet of impacted learners titled "OISE-TEFL-Learner-Data-Non-Completers.xlsx" (R-125–126). From May 5, 2025, the University possessed a named list of the non-completing learners of the collapse — the Plaintiff's cohort — with their payment data. One demand was refused: to the Annex's request for "all marketing materials and editable source files," counsel answered, "Marketing data was created and owned by Teach Away" (R-125). The promotional apparatus that sold the program — including the discount campaign visible at R-7 — remained, on the partner's assertion, outside the University's files. The transfer inventory matters for a further reason. An institution that asserted creditor standing in the insolvency (R-3), took delivery of the course files, the financial records, and seven years of learner records (R-125–126), and built its successor program on what it received (R-111, R-164) cannot selectively inherit the value of the collapsed partnership while disclaiming the obligations that attach to the same revenue stream. The assets and the liabilities of the window arose from the same transactions — including the Plaintiff's.

Throughout, the University was planning its exit and its replacement program while the legacy storefront remained open: the termination draft's public messaging anticipated the successor ("If you are exploring the program, exciting updates are on the way" — R-111), and the asset-retrieval task list at R-164 ("Download and archive: SCORM packages…") completes the picture of the University taking carriage of the course assets from which its successor program would be built.

6.4 The refund differential and the blocked notification — May 2025

May 2025 is the month in which every element of this case converges, and it is documented nearly hour by hour in the Rees-Johnstone–Mahar correspondence (Miller Thomson LLP acting for Kesson in the insolvency) at R-116–138.

(a) The refund differential

On May 14, 2025, at 10:42 p.m., Rees-Johnstone wrote to Kesson's counsel under "Item 6: Reimbursement of Learners Post-CCAA Protection" (R-131–132). Her email acknowledges "your confirmation that refunds have been issued to learners who registered on or after April 15, 2025," and asks, for clarity, about "learners who registered between December 17 2024 (the date of CCAA protection) and April 14 2025," particularly those who did not complete the program or did not receive full delivery of services — a description that fits the Plaintiff exactly. The cohort boundary she was describing was the one the University itself had drawn ten days earlier in Item 7 of its own Annex 1 (§6.3 above). She asks: "Please confirm whether refunds have been issued – or are intended to be issued – to these learners," and requests copies of any communications issued or planned to them. The email also states that the University remains "committed to ensuring learners are not adversely impacted by the transition." The Plaintiff acknowledges that sentence and asks the Court to measure it against what the same official did eight days later.

On May 20, 2025, Kesson's counsel answered in writing, inline (R-130; text at R-132):

> *"With respect to any learners that registered during the CCAA proceedings and prior to the disclaimer of the contract, refunds will not be issued. Unfortunately the sale transaction did not result in sufficient funds to repay the Applicants' secured creditor in full and therefore there are no funds available to pay any unsecured creditors."*

From May 20, 2025, therefore, the University knew three things in writing: **(i)** refunds had in fact been issued — to the post-April 15 cohort; **(ii)** the Plaintiff's cohort — those who paid between December 17, 2024 and April 14, 2025, while the University and its partner both knew of the insolvency — would receive nothing; and **(iii)** the entity to which the University would spend the following months directing refund claimants had, on its own counsel's statement, no funds with which to pay them. The University's published FAQ nonetheless directed: "For refund-related concerns, contact: info@pluribustechnologies.com" (R-162; see also R-172–179), and the University maintained that direction in correspondence with the Plaintiff into the autumn (Tab 3) and in its Defence (para. 20).

(b) The blocked notification

The same May 20 reply contained an offer. Counsel wrote that Kesson had "not issued any formal communication to the learners," had been directing inquiries to oise.cpl@utoronto.ca, and was "prepared to send the following as an email to the learners" — a short notice telling learners the program was no longer supported by Teach Away and directing them to the University. Counsel closed: "Please advise if you would like this email sent" (R-132). What followed is recorded across R-127–130 and is quoted here in sequence:

May 21, 2025, 5:16 p.m. — Michael Cassidy, writing "On behalf of Elisabeth":

> *"Item 6: We agree that the Email note you've drafted to learners is appropriate and would be of benefit to share with learners." (R-129–130)*

May 22, 2025, 12:04 p.m. — Rees-Johnstone:

> *"Thank you for the clarification on learner refund status and that no communication to learners was prepared or issued to learners by Pluribus/Kesson. Thank you as well for the proposed communications redirection; we can confirm that no communication redirection is required." (R-129)*

May 22, 2025, 12:22 p.m. — Kesson's counsel, seeking confirmation:

> *"Just to clarify, you do not want the proposed email communication sent out to learners. Your email and your colleagues email seem to be saying contradictory things so I want to clarify." (R-128)*

May 22, 2025, 12:47 p.m. — Rees-Johnstone:

> *"Apologies; to clarify: There is no requirement on our end for Pluribus/Kesson to prepare and send an outbound direct communication to learners at this time. If there are plans to continue to respond to any future inbound inquiries, then redirection to our office, as outlined, is appropriate." (R-127)*

Counsel replied, "Thank you for the clarification" (R-127). No notification was sent. The exchange needs no characterization beyond its own text: the insolvent partner offered to tell the students; the University's Associate Director agreed in writing; the Executive Director countermanded him within a day, in a reversal abrupt enough that opposing counsel paused to confirm she had understood it. Inbound inquiries — from students who had already discovered the problem themselves — would be answered; outbound disclosure — to students who had not — was declined.

The release also contains the University's own internal draft of a learner communication, "TEFL – Next Steps on your Learning Journey" (R-180–181), describing a completed migration to the Quercus platform with access "starting July 17, 2025." No sent version of that draft appears anywhere in the release, and the Plaintiff — an enrolled student throughout — never received it. On June 6, 2025, the program simply went dark (Tab 2, Ex. 2.1).

(c) The terms and conditions

Meanwhile, on May 7, 2025, Rees-Johnstone had circulated to staff the partner's Terms & Conditions together with Learner FAQs she described as having "just drew … up quickly," her covering summary to her team beginning: "No refunds are provided after enrolment regardless…" — and directing that the materials inform the Virtual Assistant, program administration responses, and web updates "once we confirm the agreement is legally severed by EOD May 16" (R-141–142; the T&C and FAQ attachments occupy R-143–162). The no-refund terms the University would later invoke against the Plaintiff (Defence paras. 9–10) were thus being read, summarized, and operationalized by the University itself — in the same fortnight in which it learned that refunds for his cohort "will not be issued" and declined to have him told.

6.5 The aftermath posture — June 9, 2025

Three days after the program went offline, a student's complaint — styled "Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies" — was escalated internally (R-165–171; the student's identity is redacted under FIPPA s. 21). The student's position, quoted in the chain, was that the University and Teach Away "are deflecting the blame on one another" (R-169). Rees-

Johnstone's response to her team, sent at 3:02 p.m. on June 9, 2025, sets out the institutional posture in her own words (R-166):

> *"It is important that we repeat our communications and reassert our good-faith actions (waitlist program, independent study, recognition of learning with proof of completion), gently push back on any suggestion that we engaged in misrepresentation so as to preserve our legal and reputational position."*

The same email raises an escalation protocol involving campus police for "continuing" emails, asks whether the standard operating procedure has been updated, and suggests the complaining student "may be libel [sic] with his public defamatory commentary" (R-166). Of the FAQs — the documents directing refund claimants to an entity the University had known since May 20 had no funds — she writes: "these FAQs were reviewed by our legal team and should be shared again, and again, and again. We can't share them enough" (R-166).

The Plaintiff makes two observations. First, the framing is explicit: student complaints of misrepresentation were to be managed as a legal-reputational risk, with a pre-scripted, legally-reviewed rebuttal — not investigated as potentially well-founded. Second, the contemplated responses to a student seeking a four-figure refund were campus security and defamation liability. The June 9 chain is the posture into which the Plaintiff's own September 2025 correspondence (Tab 3) subsequently arrived, and it explains the uniformity of the answers he received: the answers were scripted before he asked.

6.6 The Defence measured against the record

The Statement of Defence was filed on May 20, 2026, over the signature of Senior Legal Counsel. Its central architecture — the University as bystander to a third party's commerce — must now be read against the University's own production. The table below sets the principal pleadings beside the record.

The Defence pleads	The Defendant's own records show	Sources
The Plaintiff "entered a contract with a third-party that had a licensing agreement with the University" and "was not … a student enrolled in a degree program at the University" (para. 3).	The University's internal vocabulary, before any dispute existed, is uniformly possessive and pastoral: "our program risk and learner needs" (Rees-Johnstone, Feb. 13); "Reimbursement of Learners" (Item 6, May 14); "Learner FAQs" drafted by the Executive Director herself (May 7); and "learner records" received and retained "in accordance with University of Toronto data governance and privacy policies." The Defence's arm's-length framing of the Plaintiff as a stranger who contracted elsewhere was invented for litigation; the institution's own contemporaneous language treated the enrollees as its learners and their records as its records. (See also Tab 1, responding to the same paragraph at the point of sale.)	Defence para. 3; R-3; R-131–132; R-141; R-176; Tab 1

"OISE CPL only became aware of Pluribus's CCAA proceedings on February 12, 2025" (para. 15).	OISE CPL's Senior Program Manager was chasing $142,935.47 in arrears from November 27, 2024, copying Cassidy on January 31, 2025; the University received the monitor's Notice to Creditors on December 20, 2024; the Defence itself admits no payment had been received since October 2024. The unit may have learned the statute's name on February 12; it knew the partner's financial failure long before.	R-1–2; R-12–15; Defence paras. 13, 15
Awareness dates asserted across the Defendant's statements are mutually inconsistent: December 2024 receipt (admitted Sept. 23, 2025), February 12, 2025 (Defence para. 15), and the later awareness asserted in the December 15, 2025 letter.	All three dates appear in the Defendant's own documents, and the release now adds a fourth, earlier anchor: November 27, 2024. The inconsistency is the Defendant's, not the Plaintiff's.	Tab 3, Item 3.4; Defence para. 15; Tab 4, Ex. 4.2; R-1
"Notwithstanding that it had entered creditor protection, Kesson Group Inc. continued to enrol participants in the Program and collect payments from them" (para. 14) — pleaded as the partner's conduct alone.	The University's own Senior Financial Analyst documented — with screenshots — "Enrollment still open as of February 13, 2025," in a thread read the same day by the Executive Director and Associate Director. The release contains no demand to halt enrolment earlier than April 25, 2025 — nine days after the partner itself had disclaimed — when the University's Annex 1 ordered "Cease All New Registrations" within six days. The demand proves the capacity existed throughout; only its timing was chosen. The University's royalty entitlement was accruing on those very sales, and no document of any date proposes warning purchasers.	R-3, R-6–9; R-117; R-103–106
"The University did not collect payments for the Program from registrants" and was merely "entitled to subsequently receive royalty fees" (para. 7).	The royalty entitlement was 30% of course sales and 50% of module upgrades — $60,580.09 on $199,551.42 for the single quarter spanning the Plaintiff's enrolment — and the University asserted creditor standing of $140,520.54 in the partner's insolvency. A party with a 30% revenue share and a creditor's claim is not a stranger to the transaction.	R-103–106; R-3
"Although it had no legal obligation to do so, the University took good faith actions" for affected participants (para. 17).	On May 21–22, 2025, a notification email to learners — drafted by Kesson, endorsed in writing by Cassidy as "of benefit to share with learners" — was countermanded by Rees-Johnstone; no notification was sent; the program then went dark on June 6 without warning. The University's internal draft learner email was likewise never sent. "Good	R-127–130, R-132; R-180–181; Tab 2, Ex. 2.1

	faith" is measured against a documented decision not to tell.	
Refund claimants were properly "directed to contact Pluribus/Kesson Group Inc. to inquire about refunds" per the published FAQ (para. 20).	From May 20, 2025, the University knew in writing that for the Plaintiff's cohort "refunds will not be issued" and that "there are no funds available to pay any unsecured creditors." It maintained the redirection in its FAQ, in correspondence, and in its pleading regardless — a referral it knew to be futile when made.	R-130, R-132; R-162; Tab 3
The no-refund Terms bar the claim (paras. 9–10).	Refunds were in fact issued — to learners who registered on or after April 15, 2025. The bar was applied differentially: the cohort enrolled while both companies knew of the insolvency, and the University knew of the arrears, was excluded. The 2020 Terms were drafted for ordinary commerce, not to allocate the loss of a known, undisclosed insolvency onto the purchaser.	R-132; R-114; R-141–162

The Plaintiff emphasizes that nothing in this section relies on his own account of events. Every entry in the right-hand column is the Defendant's own document: its pleading, its officials' emails, its partner's reports to it, or its admissions in correspondence.

6.7 Closing analysis — what the record establishes

The record discloses a coherent economic logic, stated most plainly by the University's own Associate Director on February 13, 2025: the question was whether the partner would "pay or not pay what is owed to us" (R-4). The structure of that question was set by the Initial Order itself, as the partner's president explained to Cassidy on February 12: the $142,935.47 in pre-filing arrears was stayed — frozen, and as events proved, lost — while the only payment Kesson promised was "royalty amounts owed after the date of the Initial Order" (R-5). Post-filing royalties are royalties on post-filing sales. From February 12, 2025 onward, the University's only documented prospect of recovering anything from its partner ran *through* continued enrolment: every new student — enrolling at an automatically applied 20% discount (R-7) — generated the one category of revenue the insolvent partner had undertaken to share. Terminating the relationship, halting sales, or warning purchasers would have converted hope into certain loss and ended that stream. Continuing — quietly — preserved everything: the promised post-filing royalties recorded in the quarterly report (R-103–106), the creditor claim in the insolvency, and, ultimately, the course assets from which the successor program was built (R-164). On every branch of that choice, the institution's financial position was protected. The only parties whose position was not protected were the students paying into the window — because protecting them required the one thing the record shows the University repeatedly declined to do: tell them.

The Plaintiff does not ask this Court to find that any individual acted from malice. He asks the Court to find what the documents themselves establish:

1. Knowledge. The University knew of its partner's sustained non-payment from at least November 27, 2024 (R-1; Defence para. 13), held the monitor's formal insolvency notice from

December 20, 2024 (R-12–15), and had personal knowledge at the Executive Director and Associate Director level by February 12–13, 2025 (R-3–5; Defence para. 15) — in every case before or within days of the Plaintiff's January 28, 2025 payment, and months before any public statement.

2. Silence while selling continued. With that knowledge, enrolment remained open — documented with screenshots by the University's own analyst (R-3, R-6–9) — and the University's royalty entitlement accrued on every sale (R-103–106).

3. A decision not to disclose. The silence was not inadvertence. A notification to learners was drafted, endorsed in writing by one senior official, and countermanded by a more senior one, in an exchange so stark that the partner's counsel paused to confirm it (R-127–130). The University's own draft learner email was never sent (R-180–181).

4. A refund differential the University knew about. Refunds were issued to post-April 15, 2025 enrollees and categorically denied to the Plaintiff's cohort, and the University had written notice of both facts — and of the emptiness of the estate — by May 20, 2025, yet continued to direct the Plaintiff's refund claim to that estate (R-130, R-132; R-162; Tab 3; Defence para. 20).

5. A scripted posture. Post-collapse, complaints alleging misrepresentation were met with a legally-reviewed script whose stated purpose was the preservation of the University's "legal and reputational position" (R-166) — the same script later reproduced in the December 15, 2025 letter (Tab 4) and in substance in the Defence [redacted]

6. The consequence for the pleaded defences. A no-refund clause drafted in 2020 for ordinary commerce cannot be invoked by a party that knew, at the moment of sale, facts making full delivery doubtful and chose not to disclose them; a "go to Kesson" referral cannot be made in good faith by a party holding written confirmation that Kesson would and could pay nothing; and a corporate defendant cannot plead the ignorance of one office while the record shows the knowledge of three.

The Plaintiff's claim is for $1,196.00 USD. The University's own quarterly report shows that his payment, like every payment in his cohort, carried a 30% royalty entitlement to the University (R-103–106). He asks the Court to hold that the loss of the known, undisclosed insolvency falls on the institution that knew, profited, and chose silence — not on the student who paid in reliance on its name.

SIGNIFICANCE OF TAB 6

Taken together, the records in this tab establish, from the Defendant's own documents, that the University possessed material knowledge of its delivery partner's financial failure before and at the time of the Plaintiff's enrolment; that it permitted the discounted sale of its branded program to continue, and its royalty entitlement to accrue, throughout the insolvency window; that it made a deliberate, documented decision not to notify enrolled learners; that it knew the refund redirection it published and pleaded was futile when made; and that its responses to complaints were scripted to preserve its own position. This evidence is responsive to the whole of the Defence and supports each element of the Plaintiff's pleaded claims — the misrepresentation by silence at the point of sale, the total failure of consideration, the University's enrichment at the Plaintiff's expense, and the absence of good faith in the remediation that followed.

Two further consequences deserve statement. **First**, the transaction itself was formed on January 28, 2025 — eleven days after the program's operator entered court-supervised creditor protection and thirty-nine days after the University received written notice of it — a contract for a year of future delivery, sold under the University's name and crest, by a counterparty already under CCAA protection, with neither fact disclosed to the purchaser. Whether a consumer contract formed in those circumstances was capable of binding the consumer to its no-refund term from inception is among the questions only this Court can answer, and the Defence does not address it. **Second**, the receipt's own header — "OISE University of Toronto TEFL Certification," over the University's crest (Tab 1, Ex. 1.1) — engages s. 14 of the Consumer Protection Act, 2002, which deems false or misleading a representation of sponsorship, approval, or affiliation that the supplier does not have. The University cannot have it both ways: either the affiliation the receipt represented was real — in which case the obligations of the principal follow — or it was not the relationship the Defence now describes — in which case the representation itself was misleading at the point of sale. On the record of this tab, the affiliation was real in branding and in royalties, and disclaimed only when it began to carry obligations.

Tab 6 is the final tab of this brief because it answers the question the first five tabs raise: the Plaintiff's experience was not the accident of a partner's collapse, but the foreseeable result of choices the University made, in writing, with full knowledge.

Annex — Index of FIPPA Release 26-R023 by page

The release as produced runs 181 PDF pages. Approximately 98 pages are image-only scans; the index below identifies every document by its position in the production. Withheld and redacted material is identified by the exemption claimed on the face of the page.

Pages	Date	Document
R-1–2	Jan. 31, 2025	Email, H. Abdullah (OISE CPL) to M. Morgan (Teach Away), cc M. Cassidy: "Follow-up on Outstanding Payments & Invoices." Invoice table totalling $142,935.47; references prior email of Nov. 27, 2024; demands update by Feb. 11.
R-3	Feb. 13, 2025	Email thread (single chain with R-1–9): M. Xu, 12:46 p.m., "Enrollment still open as of February 13, 2025"; E. Rees-Johnstone, 11:25 a.m., creditor figure $140,520.54, accountability questions, "changes our planned communications."
R-4–5	Feb. 12–13, 2025	Email, M. Cassidy to E. Rees-Johnstone, Feb. 13, 10:01 a.m. (CCAA explained; "wait until 15 March 2025" re payment), forwarding email of D. Pedreira (President, Pluribus) to Cassidy, Feb. 12, 4:43 p.m., cc M. Morgan, H. Abdullah: pre-filing arrears stayed; Dec. 20, 2024 notice to ar.financialservices@utoronto.ca confirmed; "Kesson intends to make payments to the University of Toronto for royalty amounts owed after the date of the Initial Order."
R-6–9	Feb. 13, 2025	Attachment: screenshots of live public Teach Away/OISE TEFL checkout pages, time-stamped 12:44 p.m. Banner at R-7: "Success! Your 20% discount has been automatically applied. Flexible payment options available in Canada and the USA with Sezzle and Affirm."
R-10–11	Apr. 15, 2025	Emails, M. Xu ↔ Accounts Receivable: notice-forwarding request; AR confirms "We had one in December, see attached."

R-12–15	Dec. 20, 2024	Email, E. Merrick (B. Riley Farber) to creditors, with Notice to Creditors: CCAA Initial Order of Dec. 17, 2024 (CV-24-00733415-00CL); stay of proceedings; monitor appointment.
R-16	—	Letter, PowerSchool Canada ULC to University of Toronto (assignment/administrative).
R-17–43	Dec. 27, 2024	Amended and Restated Initial Order, Ontario Superior Court of Justice (Commercial List), issued electronically (27 pages).
R-44–45	Mar. 5–6, 2025	Meeting invitation, E. Rees-Johnstone: "TeachAway – Update & Next Steps," Teams, Mar. 6, 10:30 a.m., with Cassidy, Xu, Abdullah.
R-46–102	—	WITHHELD — 57 consecutive pages, FIPPA s. 19 (solicitor-client privilege).
R-103–106	Dec. 1, 2024 – Feb. 28, 2025	OISE TEFL Quarterly Report: 155 students; $199,551.42 revenue; $60,580.09 royalties due to U of T (30% course sales / 50% module upgrades); refund and enrolment tables; Appendix A reference.
R-107–111	Undated (Apr. 2025)	"Agreement Termination DRAFT" (internal; never sent): early termination of the Master Agreement for material breach, "namely non-payment of royalties," and creditor-protection status; termination "required to protect the interests of the University, our office and our learners"; annex demands incl. cessation, platform access, and return of all marketing materials (flyers, web banners, social media graphics, email templates, promotional videos) in "usable and editable format"; successor messaging ("exciting updates are on the way").
R-112–113	Apr. 16, 2025	Email chain, "OISE TEFL ACTION REQUIRED": student complaint reaching Dean's office (s. 21 redactions); Dean notes second such complaint; Rees-Johnstone loops in Abdullah and Cassidy. Includes a double-charge refund request.
R-114–115	Apr. 16, 2025	Form 4, Notice by Kesson Group Inc. to Disclaim the Master Agreement of Course Development & Licensing dated Aug. 21, 2020; disclaimer effective May 16, 2025; monitor approval (DocuSign).
R-116–118	Apr. 25, 2025	Rees-Johnstone letter and "Annex 1 – Agreement Wind-Down: Administrative Requirements" to K. Mahar (Miller Thomson): Item 1 — "Cease All New Registrations," deadline May 1, 2025, written confirmation that "all access points have been disabled"; Item 2 — return of program, course, and marketing assets; Item 3 — 7-year learner-record transfer; Items 4–6 — accounting, certification integrity, termination acknowledgement; Item 7 — identification of all post-disclaimer enrollees with "names, payment dates, and amounts collected" and confirmation "that full refunds have been issued to all such learners."
R-119–126	Apr.–May 2025	Mahar ↔ Rees-Johnstone correspondence and Miller Thomson letter of May 5, 2025 with item-by-item response chart (R-124–126): Dropbox links for SCORM/course files, learner records (7 years), and financial records; "March 1st to April 15th report has been sent to OISE"; impacted-learner spreadsheet "OISE-TEFL-Learner-Data-Non-Completers.xlsx"; marketing demand answered "Marketing data was created and owned by Teach Away"; certification answer "OISE

		has always generated the certificates"; refunds confirmed "for learners that registered on or after April 15, 2025."
R-127–130	May 20–22, 2025	The notification exchange: Mahar answers "in red" (May 20); Cassidy endorses learner email as "of benefit" (May 21, 5:16 p.m.); Rees-Johnstone "no communication redirection is required" (May 22, 12:04 p.m.); Mahar seeks clarification — "contradictory things" (12:22 p.m.); Rees-Johnstone "no requirement on our end" (12:47 p.m.); Mahar acknowledges (12:50 p.m.).
R-131–132	May 14 / 20, 2025	Rees-Johnstone Item 6 inquiry (refunds by cohort; requests copies of learner communications) with counsel's inline answers: post-Apr. 15 refunds issued; CCAA-window cohort "refunds will not be issued"; "no funds available"; draft learner email offered — "Please advise if you would like this email sent."
R-133–138	Apr. 28 – May 7, 2025	Earlier rungs of the same chain: Rees-Johnstone May 7 acknowledgement; Mahar Apr. 28 transmission of Dropbox links; Miller Thomson retainer statement and confidentiality footers.
R-139–140	2025	Emails, Rees-Johnstone ↔ D. Frey (Teach Away): "Support for OISE TEFL Students"; redirection of inquiries to oise.cpl@utoronto.ca.
R-141–142	May 7, 2025	Email, Rees-Johnstone to Abdullah, Cassidy, Mazzotta, Houghton, Xu, Ghanta: circulates T&C and self-drafted Learner FAQs; summarizes no-refund terms; directs use in Virtual Assistant, administration responses, and web updates "once we confirm the agreement is legally severed by EOD May 16."
R-143–160	Stamped May 7, 2025	Attachment 1: Teach Away Terms and Conditions / Refund Policy (full text).
R-161–162	May 2025	Attachment 2: Learner FAQs (draft): enrolment closure framing; certificate verification; "For refund-related concerns, contact: info@pluribustechnologies.com."
R-163	2025	Website landing page draft: "TEFL Online Certificate Program – A New Chapter Begins."
R-164	Undated	"Course & Platform Asset Retrieval" task list: download/archive of SCORM packages and related assets (named staff).
R-165–171	Jun. 9, 2025	Internal escalation of student complaint "Scam involving University of Toronto (OISE), Teach Away, and Pluribus Technologies" (s. 21 redactions): Rees-Johnstone 3:02 p.m. email — "gently push back on any suggestion that we engaged in misrepresentation so as to preserve our legal and reputational position"; campus-police escalation SoP; "may be libel [sic]"; "shared again, and again, and again." Student's quoted Teach Away response and complaint text.
R-172–179	2025	Published/near-final Transition Q&A and landing-page versions (two sets), incl. "All enrolment and payment processing was managed completely" by the partner and refund redirection.
R-180–181	Undated (pre-Jul. 2025)	Internal draft email to learners: "TEFL – Next Steps on your Learning Journey" — Quercus migration complete, access "starting July 17, 2025," survey link. No sent version appears in the release.